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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

June 9, 2026

WEBVTT

1
00:00:17.320 --> 00:00:23.279
Boardroom: Thank you. Hello, everyone, good evening. I'm calling the meeting to order.

2
00:00:24.160 --> 00:00:41.519
Boardroom: It is… oh my gosh, Tuesday, June 9th, 2026, and it is 6.09 PM. Clerk, can you please start us off with a roll? Councilmember Kisnerwani? Here. Taplin? Present. Bartlett is currently absent.

3
00:00:42.570 --> 00:00:43.010
Boardroom: drag up?

4
00:00:43.010 --> 00:00:44.670
Brent Blackaby: I was to go back and.

5
00:00:44.670 --> 00:00:45.700
Boardroom: Peasant.

6
00:00:45.990 --> 00:00:48.750
Boardroom: O'Keefe? Here. Blackie?

7
00:00:48.750 --> 00:00:49.470
Brent Blackaby: Here.

8
00:00:49.900 --> 00:01:03.040
Boardroom: Unapara? Here. Humbert? Here. And Mayor Ishii? Here. Okay, quorum is present. Okay, so for the report out from the closed session, the City Council met in closed session on June 8th, 2026.

9
00:01:03.040 --> 00:01:20.980
Boardroom: Pursuant to Government Code Section 54956.9 Subsection D, and provided directions to outside counsel and approved a settlement by compromise and release as to a workers' compensation matter assigned claim number BER2300046,

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10
00:01:20.980 --> 00:01:28.210
Boardroom: And WCAB case number ADJ18585885.

11
00:01:28.820 --> 00:01:31.410
Boardroom: Okay, very good.

12
00:01:32.670 --> 00:01:39.859
Boardroom: I just realized it's the first meeting of the month, and so, I will read us the land acknowledgement statement.

13
00:01:40.400 --> 00:01:57.120
Boardroom: The City of Berkeley recognizes that the community we live in was built on the territory of Huchun, the ancestral and unceded land of the Chocheno-speaking Ohlone people, the ancestors and descendants of the sovereign Verona Band of Alameda County. This land was and continues to be of great importance to all

14
00:01:57.410 --> 00:02:00.460
Boardroom: of the Ohlone tribes and descendants of the Verona Band.

15
00:02:00.530 --> 00:02:14.720
Boardroom: As we begin our meeting tonight, we acknowledge and honor the original inhabitants of Berkeley, the documented 5,000-year history of a vibrant community at the West Berkeley Shell Mound, and the Ohlone people who continue to reside in the East Bay. We recognize

16
00:02:14.720 --> 00:02:24.290
Boardroom: that Berkeley's residents have and continue to benefit from the use and occupation of this unceded, stolen land since the City of Berkeley's incorporation in 1878.

17
00:02:24.420 --> 00:02:43.390
Boardroom: As stewards of the laws regulating the City of Berkeley, it is not only vital that we recognize the history of this land, but also recognize that the Ohlone people are present members of Berkeley and other East Bay communities today. The City of Berkeley will continue to build relationships with the Lijan tribe and to create meaningful actions that uphold the intention of this land acknowledgement.

18
00:02:43.610 --> 00:02:50.510
Boardroom: We are now moving on to ceremonial matters. So I will actually call forward Stephanie Allen

19

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00:03:04.750 --> 00:03:06.400
Boardroom: Thank you, Mayor.

20
00:03:06.810 --> 00:03:11.600
Boardroom: I'm here tonight on behalf of the School District Gardening Program.

21
00:03:11.840 --> 00:03:15.020
Boardroom: It's called Cans to Carrots.

22
00:03:15.220 --> 00:03:16.820
Boardroom: And…

23
00:03:16.930 --> 00:03:34.550
Boardroom: As you know, funding for education has been devastated in this state, in this country, so we have to do a number of things in order to keep programs going. The gardening program exists at every school in the district. It's very popular with the children.

24
00:03:34.610 --> 00:03:42.250
Boardroom: And we recently began a campaign to collect cans, which could then be turned into the recycling center.

25
00:03:42.380 --> 00:03:48.489
Boardroom: For money, to help fund the program, but also to teach children about recycling.

26
00:03:49.220 --> 00:03:55.980
Boardroom: The program got kicked off with the essential help of City Manager Paul Budenhagen.

27
00:03:56.110 --> 00:03:58.879
Boardroom: We wouldn't have been able to do it without him.

28
00:03:59.310 --> 00:04:04.999
Boardroom: So, this award… is for him.

29
00:04:05.460 --> 00:04:11.590
Boardroom: On behalf of the program, from our students, our staff, thank you very much.

30
00:04:12.990 --> 00:04:24.109

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Boardroom: I don't know. That's so cute, it has carrots! Okay. Go ahead, Paul.

31
00:04:24.670 --> 00:04:26.110
Boardroom: Oh, God.

32
00:04:31.460 --> 00:04:32.969
Boardroom: Thank you.

33
00:04:33.400 --> 00:04:34.910
Boardroom: That's so nice of you.

34
00:04:36.210 --> 00:04:37.260
Boardroom: Alright.

35
00:04:40.260 --> 00:04:42.389
Boardroom: Yep. Thank you.

36
00:04:45.290 --> 00:04:52.779
Boardroom: Yay! Thank you very much, that was very nice of you, that was very helpful. Oh, no, we wouldn't have gotten started without you.

37
00:04:53.730 --> 00:04:54.610
Boardroom: Thank you.

38
00:04:59.710 --> 00:05:04.979
Boardroom: Yeah, everyone is welcome to bring an award for Paul during ceremonial matters.

39
00:05:05.450 --> 00:05:11.509
Boardroom: Okay, well, it's actually time for your comments, so I'll give you a moment to walk on over in case there's anything you want to add.

40
00:05:14.000 --> 00:05:15.190
Boardroom: Oh, no.

41
00:05:16.850 --> 00:05:17.640
Boardroom: Thank you.

42
00:05:22.480 --> 00:05:25.749
Boardroom: Anything for your city manager comments section?

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43
00:05:25.850 --> 00:05:39.530
Boardroom: I'm still so, stunned and pleased, thank you. No, I don't have any comments other than thank you to, to Ms. Allen, and I want to thank her also for the outstanding work that they've done on the Cans to Carrots program. It's a really important program, so thank you.

44
00:05:40.380 --> 00:05:51.960
Boardroom: Very sweet, thank you. Okay, and so… oh, I'm… we are also actually adjourning in memory, so apologies, for Alan Toby, which was requested by Councilmember Trey Gubb.

45
00:05:52.150 --> 00:06:00.469
Boardroom: And so, would you like to read? Go ahead, Councilman Patrick.

46
00:06:04.010 --> 00:06:23.599
Boardroom: Thank you. I'm, yes, I would like for us to adjourn in memory of Alan Toby. I… we also have, his wife, Ruth, here, and we have his son, John, online, who may say a few words.

47
00:06:26.680 --> 00:06:39.379
Boardroom: We were all, very saddened to hear that Alan Toby passed away on February 24th of this year, following a long and courageous struggle with Parkinson's.

48
00:06:39.950 --> 00:06:49.020
Boardroom: But that terrible disease did not define him. The zest for life and commitment Alan put into everything he did.

49
00:06:49.390 --> 00:06:58.219
Boardroom: did define him, and this is his story. He was born in Brooklyn, New York, on December 11th, 1944.

50
00:06:58.790 --> 00:07:12.699
Boardroom: He graduated from MIT in 1966 with a Bachelor's of Science in Literature and Biology, and went on to earn a Master's of Divinity degree from Luther Seminary in 1970.

51
00:07:13.110 --> 00:07:22.770
Boardroom: In June 1968, he married Ruth Jensen in Cambridge, Massachusetts. They raised two children, Chandra Toby and John Toby.

52
00:07:22.830 --> 00:07:37.100

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Boardroom: After hearing Ron Dellum speak on the UC Berkeley campus, where he enrolled to study sociology, he volunteered for Dellum's first congressional campaign, beginning a lifelong commitment to civic engagement and progressive causes.

53
00:07:37.420 --> 00:07:44.319
Boardroom: Alan became active in the Berkeley Tenants Organizing Committee, which promoted the city's rent control ordinance.

54
00:07:44.550 --> 00:07:59.669
Boardroom: He was also a founder of Stop Institutional Creep, a community effort that sought to preserve a historic residence at the corner of Ridge Road and Scenic Avenue, where the Graduate Theological Union Building and Library now stand.

55
00:08:00.540 --> 00:08:03.060
Boardroom: Alan's work at Wine and the people.

56
00:08:03.110 --> 00:08:16.409
Boardroom: A Berkeley store specializing in home winemaking and brewing supplies that also produced its own wines led him to advocate for legislation allowing brew pubs to manufacture and sell their beer in Berkeley.

57
00:08:16.420 --> 00:08:30.290
Boardroom: He was both an inspiration and an instigator in Berkeley's becoming a pioneer in the legalization of microbrewing. Professionally, Alan built a career in management and marketing for high-tech companies.

58
00:08:30.520 --> 00:08:41.860
Boardroom: In retirement, he continued his commitment to public service and environmental stewardship, serving on the boards of the Sierra Club and Berkeley's Livable Berkeley organizations.

59
00:08:42.820 --> 00:08:57.410
Boardroom: And the Sierra Club is when I first got to work with him as a fellow member of the Sierra Club's Northern Alameda County Group Executive Committee. I got to watch how beautifully he brought together people that normally wouldn't agree

60
00:08:57.410 --> 00:09:03.530
Boardroom: Or even talk to each other, and how prescient his commitment to housing for all was.

61

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00:09:03.730 --> 00:09:06.300
Boardroom: Getting them to actually do it together.

62
00:09:07.050 --> 00:09:14.610
Boardroom: At his West Berkeley home, Alan was well known for bringing neighbors together and strengthening community ties.

63
00:09:14.840 --> 00:09:27.709
Boardroom: Among his many local accomplishments was being the squeaky wheel that led to the city's installing a stop sign at the intersection of Gilman and Palta, which he would tell me was one of his proudest achievements.

64
00:09:27.960 --> 00:09:45.030
Boardroom: Throughout his life, Alan championed big ideas, but never lost sight of the wise learning that for those ideas to be embraced, it was on us to meet people where they were at. We will always remember him for his dedication to social justice.

65
00:09:45.270 --> 00:09:52.799
Boardroom: Environmental advocacy, community building, public service, and his slogan of choice, for the people.

66
00:09:53.210 --> 00:09:59.189
Boardroom: Alan, you truly epitomized always being there for the people. Presente.

67
00:10:00.370 --> 00:10:04.769
Boardroom: And we have, I think, John, online.

68
00:10:05.530 --> 00:10:07.050
Boardroom: Hopefully.

69
00:10:07.050 --> 00:10:08.930
Jon Tobey: Yes, I'm here, Igor, can you hear me?

70
00:10:09.690 --> 00:10:10.920
Boardroom: Yes, we can.

71
00:10:11.230 --> 00:10:14.410
Jon Tobey: Excellent. Thank you for those very kind words.

72

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00:10:15.590 --> 00:10:22.500
Jon Tobey: Good evening, I'm, I'm John Toby, Alan's youngest son, proudly born and raised in Berkeley.

73
00:10:22.890 --> 00:10:29.749
Jon Tobey: Mayor Ishii, Deputy Mayor Trega, members of the Council, thank you for honoring my father today.

74
00:10:30.330 --> 00:10:37.580
Jon Tobey: alan believed a city reveals what its people value.

75
00:10:37.960 --> 00:10:40.770
Jon Tobey: The shape of a street, the scale of a building.

76
00:10:41.100 --> 00:10:47.830
Jon Tobey: Whether a neighborhood stays walkable, These are choices about what kind of life people are allowed to have.

77
00:10:48.990 --> 00:10:53.729
Jon Tobey: He lived in Berkeley for more than 50 years, and he became part of its fabric.

78
00:10:54.220 --> 00:10:55.830
Jon Tobey: He paid attention to it.

79
00:10:56.130 --> 00:10:57.559
Jon Tobey: He argued with it.

80
00:10:57.840 --> 00:10:59.069
Jon Tobey: He defended it.

81
00:10:59.780 --> 00:11:03.250
Jon Tobey: He believed in the city that was something you participated in.

82
00:11:03.420 --> 00:11:05.130
Jon Tobey: Not something you occupied.

83
00:11:06.300 --> 00:11:14.720
Jon Tobey: He loved his little neighborhood of Westbrae most of all, a neighborhood where people knew each other because they were so often on foot, passing each other's porches.

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84
00:11:15.990 --> 00:11:23.039
Jon Tobey: As Igor said, he spent considerable energy fighting for a stop sign at the corner of Gilman and Peralta.

85
00:11:23.690 --> 00:11:25.150
Jon Tobey: A simple stop sign.

86
00:11:25.340 --> 00:11:30.119
Jon Tobey: Because he understood that small things Or where real life happens.

87
00:11:30.350 --> 00:11:32.100
Jon Tobey: Kids crossing the street.

88
00:11:32.500 --> 00:11:34.230
Jon Tobey: Neighbors walking home.

89
00:11:34.710 --> 00:11:38.210
Jon Tobey: The ordinary details that tell you a place is cared for.

90
00:11:39.660 --> 00:11:45.429
Jon Tobey: Through Livable Berkeley and his writing for Berkeleyside and other venues, he carried those values into the wider city.

91
00:11:46.160 --> 00:11:47.560
Jon Tobey: Affordable housing.

92
00:11:47.670 --> 00:11:50.130
Jon Tobey: Preservation alongside progress.

93
00:11:50.480 --> 00:11:54.119
Jon Tobey: A Berkeley that made room for people instead of pushing them out.

94
00:11:54.950 --> 00:11:57.280
Jon Tobey: His guiding idea was simple.

95
00:11:57.760 --> 00:12:00.979
Jon Tobey: In the words of one of my favorite chefs, Jose Andres.

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96
00:12:01.610 --> 00:12:05.419
Jon Tobey: You should build longer tables, not taller fences.

97
00:12:06.950 --> 00:12:11.619
Jon Tobey: He had very little patience for posturing or for process used as theater.

98
00:12:12.360 --> 00:12:16.200
Jon Tobey: If he thought something was standing in the way of a livable city, he said so.

99
00:12:16.880 --> 00:12:18.770
Jon Tobey: Sometimes diplomatically.

100
00:12:19.240 --> 00:12:21.350
Jon Tobey: And as Igor said, sometimes not.

101
00:12:22.200 --> 00:12:24.210
Jon Tobey: But even that came from caring.

102
00:12:24.750 --> 00:12:28.480
Jon Tobey: He expected better, because he believed better was possible.

103
00:12:29.530 --> 00:12:31.720
Jon Tobey: To many people, Alan was a plant.

104
00:12:31.950 --> 00:12:35.010
Jon Tobey: Anna, an advocate, a public voice.

105
00:12:35.180 --> 00:12:37.010
Jon Tobey: To me, he was just Dad.

106
00:12:37.550 --> 00:12:39.629
Jon Tobey: The person who made dinner every night.

107
00:12:39.960 --> 00:12:42.299
Jon Tobey: Who loved a terrible pun.

108
00:12:42.800 --> 00:12:45.600
Jon Tobey: Who asked impossible questions about everything.

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109
00:12:46.900 --> 00:12:48.790
Jon Tobey: Losing him leaves a silence.

110
00:12:49.410 --> 00:12:51.340
Jon Tobey: But it also makes something clear.

111
00:12:52.190 --> 00:12:54.240
Jon Tobey: Love leaves an inheritance.

112
00:12:54.360 --> 00:12:56.630
Jon Tobey: Standards. Curiosity.

113
00:12:57.210 --> 00:13:00.720
Jon Tobey: The belief that paying attention is its own form of love.

114
00:13:01.310 --> 00:13:05.080
Jon Tobey: That if something matters, you should care enough to say so.

115
00:13:05.890 --> 00:13:08.259
Jon Tobey: Alan gave Berkeley 50 years of that.

116
00:13:08.490 --> 00:13:10.250
Jon Tobey: And he gave it to us, too.

117
00:13:10.520 --> 00:13:11.340
Jon Tobey: Thank you.

118
00:13:13.880 --> 00:13:15.050
Boardroom: Thank you.

119
00:13:15.690 --> 00:13:22.050
Boardroom: Thank you very much for sharing that, and thank you to Councilmember Trekov for bringing forward our adjournment and memory this evening.

120
00:13:22.510 --> 00:13:26.969
Boardroom: We'll now move on to public comment on non-agenda matters.

121
00:13:43.080 --> 00:13:47.340

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Boardroom: Okay, so, public comments on non-agenda matters.

122
00:13:47.540 --> 00:13:50.789
Boardroom: We'll draw 5 cards for in-person.

123
00:13:51.060 --> 00:13:57.160
Boardroom: speakers, and… Then the first 5 hands raised.

124
00:13:57.330 --> 00:14:04.890
Boardroom: on the Zoom, we'll be allowed to speak, one minute per speaker.

125
00:14:05.440 --> 00:14:09.730
Boardroom: So I'll draw the 5 cards, and if you're on the Zoom and you want to give

126
00:14:09.860 --> 00:14:18.120
Boardroom: non-agenda public comments, again, only comments on items that are not on the agenda, then you can raise your hand on the Zoom.

127
00:14:43.930 --> 00:14:53.680
Boardroom: Alright, the 5 in-person speakers are… Teresa Gonzalez, Falique, Loudermilk.

128
00:14:54.420 --> 00:15:00.560
Boardroom: Andrew Fisher, Cornelius Smith, and Celeste Marks.

129
00:15:01.120 --> 00:15:04.830
Boardroom: So you can come up in any order, and you'll have 1 minute per speaker.

130
00:15:23.240 --> 00:15:24.790
Boardroom: Good evening.

131
00:15:25.300 --> 00:15:35.179
Boardroom: Mayor Ishii, City Manager Boot again, and members of the City Council. My name is Teresa Gonzalez, I am the State Director of Live Free California.

132
00:15:35.790 --> 00:15:41.019
Boardroom: I'm here to urge you to fund the Berkeley Gun Violence Intervention and Prevention Program.

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133
00:15:41.170 --> 00:15:54.660
Boardroom: To address the funding gap for FY27, to make us whole, because we weren't in the FY27 budget either, and also a baseline commitment for continued operations through FY28.

134
00:15:55.240 --> 00:16:08.329
Boardroom: The results speak for themselves. When we initially came on and submitted our proposal, we were striving for a 10% gun violence reduction. We landed at 100%, in 2025.

135
00:16:08.450 --> 00:16:23.190
Boardroom: In addition to that, we just, sent over some information for you all. Today, the National Institute for Criminal Justice Reform, published, the first of its kind Berkeley Gun Violence, the Costa Gun Violence Report.

136
00:16:23.360 --> 00:16:29.889
Boardroom: It has been proven that… I have one… Thank you. Virtual. Oh.

137
00:16:30.750 --> 00:16:32.210
Boardroom: I have a virtual.

138
00:16:32.910 --> 00:16:36.089
Boardroom: Oh, a minute from Santina Gonzalez.

139
00:16:39.060 --> 00:16:41.940
Boardroom: Okay.

140
00:16:44.250 --> 00:16:45.990
Boardroom: Hi, Santina?

141
00:16:46.650 --> 00:16:48.819
Boardroom: Are you yielding your time?

142
00:16:51.180 --> 00:16:52.730
Santina: Yes, I'm yielding my time.

143
00:16:54.080 --> 00:17:13.670
Boardroom: The National Institute for Criminal Justice Reform documented that one single fatal shooting cost Berkeley taxpayers $3.2 million. In

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2024, Berkeley had 3 fatal and 5 non-fatal shootings, the non-fatal over $700,000. A combined taxpayer cost of more than $13 million.

144
00:17:13.670 --> 00:17:24.239
Boardroom: was spent in 2024. In 2025, the cost was zero, and we gave that money back to the taxpayers because they deserve it.

145
00:17:24.240 --> 00:17:41.860
Boardroom: That was a 13 to 1 return on a $1 million investment per year. We also extended and were fiduciary responsible and extended our funding for a whole nother year without asking you all. So we really got, for $2 million, 3 years' worth of program services.

146
00:17:42.000 --> 00:18:04.230
Boardroom: We ask for continued support and integrity, we appreciate all of the support that you all have showed us thus far, and we ask that we don't just focus on cost savings, but the impact of human lives and the ripple effect that it has on our entire Berkeley community. We thank you for this resource and the continued investment also in prevention efforts. Thank you. So we don't have to see this anymore. Thank you. I'm sorry, thank you.

147
00:18:04.720 --> 00:18:07.970
Boardroom: Oh, Rosa, I didn't hear it beep the second time.

148
00:18:08.620 --> 00:18:11.149
Boardroom: I'm spending my minute to speak.

149
00:18:15.910 --> 00:18:22.099
Boardroom: I'm Dr. Steven Alpert. During the last council meeting, Mayor Ishii interrupted my public comment remarks.

150
00:18:22.350 --> 00:18:30.870
Boardroom: Information provided by the First Amendment Coalition indicates that your interruption was a violation of the First Amendment to the right of free speech.

151
00:18:31.140 --> 00:18:32.879
Boardroom: The Ninth Circuit has ruled

152
00:18:33.270 --> 00:18:45.070
Boardroom: that criticism of specific members of a governing body is a violation of the First Amendment. Your interruption was, quote, just a

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reminder not to refer to individual council members, refer to us as a body.

153
00:18:45.250 --> 00:18:53.779
Boardroom: Moreover, I was not addressing Councilmember Humbert, but instead clearly referring to misinformation on this website as displayed on this poster.

154
00:18:54.080 --> 00:19:05.379
Boardroom: For Government Code 54960, a formal cease and desist letter was forwarded demanding that this Council acknowledge the violations and make an unconditional commitment

155
00:19:05.430 --> 00:19:18.919
Boardroom: not to interrupt any speaker addressing statements or positions publicly made by individual council members or other city officials. The Council has 30 days to comply with all matters of this cease and desist letter. Thank you.

156
00:19:22.790 --> 00:19:23.819
Boardroom: Thank you.

157
00:19:31.500 --> 00:19:36.700
Boardroom: Good evening, I'm Cornelius Smith. I'm here on behalf of Berkeley High School and Live Free.

158
00:19:36.810 --> 00:19:39.670
Boardroom: I'm a school safety officer and mentor at Berkeley High.

159
00:19:40.040 --> 00:19:49.880
Boardroom: I'm speaking on behalf of Live Free because on numerous occasions, Live Free have come in and helped me mediate situations with young men and women in conflict.

160
00:19:50.260 --> 00:19:56.410
Boardroom: And the reason you need Live Free in your budget? It makes the community safe for all community members, young and old.

161
00:19:56.730 --> 00:20:02.980
Boardroom: When the last time, like me, in Live Free, have you been to court for a kid, or given money out your pocket or clothes?

162
00:20:03.150 --> 00:20:15.239

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Boardroom: It's not a tax write-off for me, it's how we were raised. You reach one to teach one. So you need live free, and you need mentors to make sure the community is safe, not just for the kids, but for you all sitting up here.

163
00:20:15.990 --> 00:20:22.130
Boardroom: If you notice in social media, it's a lot of young people losing their lives over social media and conflict.

164
00:20:22.250 --> 00:20:29.259
Boardroom: Substance abuse is rampant, so we need Live Free in order to make it safe for everyone. Thank you.

165
00:20:30.340 --> 00:20:31.510
Boardroom: Thank you.

166
00:20:41.580 --> 00:20:59.320
Boardroom: Good evening, Mayor, Honorable Mayor, and City Council members. Nice to meet some of you. I know who our faces are in the community. My name is Andrew Fisher, and I'm here to say a few words on behalf of and in support of the Live Free organization.

167
00:20:59.610 --> 00:21:15.620
Boardroom: I've lived in Berkeley for close to 50 years. I've built a small business here, along with my wife, that has grown and flourished in this community for 20 years and counting. Our kids currently attend BUSD, that community.

168
00:21:15.620 --> 00:21:23.330
Boardroom: Much like you, I'm thankful for where I live, and I feel a strong sense of pride, especially seeing the city's evolution over the course of my time here.

169
00:21:23.330 --> 00:21:29.640
Boardroom: there's another… there's no other place on Earth like Berkeley, and I think the surrounding communities.

170
00:21:30.120 --> 00:21:48.409
Boardroom: As part of this community, and with an interest in keeping to what I think are our core beliefs of compassion and leading, and lending a helping hand to our neighbors, and our, excuse me, people in need, I would like to strongly encourage the Honorable Mayor to fund Live Free. Thank you.

171

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00:21:58.710 --> 00:22:04.129
Boardroom: Hi, my name is Malik Loudermilk. I would like to pass my minute over to Reverend Angela.

172
00:22:04.460 --> 00:22:06.000
Boardroom: Thank you.

173
00:22:06.340 --> 00:22:23.520
Boardroom: Hello, my name is Reverend Angela Jernigan. I am a resident of West Berkeley, and I am here to really morally insist that the city find the money to maintain the baseline for Live Free funding.

174
00:22:23.520 --> 00:22:48.170
Boardroom: This is a program that pastors and community leaders fought hard for to get to this city for a decade. And we finally got the funding, finally put it in action, and it ended gun violence in this city in one year. It is the cheapest way to intervene on gun violence. If you just look at the numbers

175
00:22:48.170 --> 00:23:02.449
Boardroom: numbers alone, it is the cheapest way to maintain the peace. It is also morally inconsionable to not fund a program that we know saves lives.

176
00:23:02.650 --> 00:23:10.940
Boardroom: Please read the letter that I and a dozen other clergy and community leaders signed for you. Thank you. Thank you.

177
00:23:17.780 --> 00:23:25.970
Boardroom: Okay, we have, going to speakers on Zoom now. First one is, Russell.

178
00:23:29.420 --> 00:23:34.810
Russell's S24 FE: Hi, everybody, Russell Beach here. The murderous rampage…

179
00:23:35.420 --> 00:23:43.089
Russell's S24 FE: by the China entity all around the Middle East, in Palestine, in Lebanon.

180
00:23:43.340 --> 00:23:45.869
Russell's S24 FE: in… and Iran.

181

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This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:23:45.920 --> 00:24:04.100
Russell's S24 FE: is going on and on and on, and I insist at some point in the near future that a Gaza Genocide Relemorance Day be brought forward to the City Council of Berkeley. Thomas Massey had guts enough to bring up the USS Liberty attack by the Zionist entity.

182
00:24:04.170 --> 00:24:19.979
Russell's S24 FE: Yesterday in Congress, it was a great speech, 25 minutes, I suggest listening to it. They need to be stopped. Gaza needs to be remembered. And I would ask you, very politely at this point, to consider that for the future. Thank you very much.

183
00:24:20.350 --> 00:24:21.359
Boardroom: Thank you, Russell.

184
00:24:24.020 --> 00:24:29.640
Boardroom: Next is… Sandiah?

185
00:24:46.430 --> 00:24:47.569
SANDHYA: Can you hear me?

186
00:24:47.910 --> 00:24:48.780
Boardroom: Yes. Yes.

187
00:24:48.780 --> 00:24:58.769
SANDHYA: Yes. Om Shanti. Om Shanti means I'm a peaceful soul. My name is Sandhya, and I represent Anubhuti Meditation and Retreat Center in Navato.

188
00:24:58.770 --> 00:25:08.519
SANDHYA: Anubhuti is part of the Rama Kumaris, a worldwide woman-led non-profit organization with centers in over 140 countries and affiliated with the

189
00:25:08.520 --> 00:25:20.250
SANDHYA: United Nations through Economic and Social Council, ECO, SOC, and UNICEF. Our mission is to empower individuals through meditation, self-awareness, and spiritual

190
00:25:20.250 --> 00:25:35.619
SANDHYA: values to create a more peaceful world. Today, I am delighted to invite you and your family to our Wellness Wonderland Family Fair on June 20th, celebrating the International Day of Yoga and the spirit of family and community.

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191
00:25:35.620 --> 00:25:54.499
SANDHYA: This free event is being organized in collaboration with several Bay Area organizations, and will feature wellness booths, yoga, meditation, Ayurveda, holistic health, scientists and speakers exploring well-being and consciousness, cultural program, and activities for all ages.

192
00:25:54.500 --> 00:25:55.090
Boardroom: Thank you so much.

193
00:25:55.090 --> 00:25:56.170
SANDHYA: Thank you.

194
00:25:57.880 --> 00:26:01.169
Boardroom: Next is Taveo Smith.

195
00:26:05.900 --> 00:26:07.119
Taveo Smith: Hello, can you hear me?

196
00:26:07.380 --> 00:26:08.390
Taveo Smith: Yes, yes.

197
00:26:08.820 --> 00:26:09.590
Taveo Smith: Wow.

198
00:26:09.990 --> 00:26:11.949
Taveo Smith: First and foremost, hello to you all.

199
00:26:12.230 --> 00:26:14.609
Taveo Smith: So, hello, my name is Tavio Smith.

200
00:26:14.900 --> 00:26:22.489
Taveo Smith: First and foremost, I want to say that I am a proud member from Berkeley, along with my family. I've been here for many generations.

201
00:26:22.850 --> 00:26:31.050
Taveo Smith: wanted to say that the Live Free program is extremely important to me and my community, and honestly, it should be to you, too.

202
00:26:31.180 --> 00:26:36.889

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Taveo Smith: Todd Walker, my co-slash-mentor and role model, Shoulders as a kid.

203
00:26:37.290 --> 00:26:38.840
Taveo Smith: Violence wasn't the way.

204
00:26:39.080 --> 00:26:42.600
Taveo Smith: And he showed us this through a Scare Straight program.

205
00:26:42.740 --> 00:26:51.519
Taveo Smith: The lessons that he taught us was, if we wanted to go down that road, there's only two ways that we're gonna end up either dead in the streets, in a violent way.

206
00:26:51.700 --> 00:26:53.429
Taveo Smith: Or… in prison.

207
00:26:57.630 --> 00:27:00.539
Taveo Smith: With that lifestyle. So…

208
00:27:01.500 --> 00:27:06.569
Taveo Smith: We are here to police our community, so I just want you guys to let us police our community.

209
00:27:06.790 --> 00:27:07.650
Taveo Smith: Thank you.

210
00:27:08.910 --> 00:27:10.050
Boardroom: Thank you.

211
00:27:14.090 --> 00:27:20.040
Boardroom: Last is a phone number caller, phone number ending in 211.

212
00:27:26.320 --> 00:27:37.210
1510****211: Well, first of all, I'd like Mr. Eid to ask a prayer for this beautiful woman who was murdered by her boyfriend in California Street. This is awful. This is awful. This is Berkeley.

213
00:27:37.330 --> 00:27:39.770
1510****211: Berkeley is a peaceful town. Town of peace.

214

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00:27:40.060 --> 00:27:49.579
1510****211: Roy handy, manager Roy handed you a bunch of paper. Very easy to look at it. I think I recommend a friendly meeting, we can do something. People in Berkeley actually need us more.

215
00:27:49.800 --> 00:27:52.610
1510****211: And… ever. We'll be in the business 56 years.

216
00:27:53.070 --> 00:27:57.759
1510****211: What we're looking at right now We're seeing our country dismantled.

217
00:27:57.910 --> 00:27:58.990
1510****211: Demolished.

218
00:27:59.540 --> 00:28:04.220
1510****211: I can't describe it. I've been in Berkeley for 63 years.

219
00:28:04.650 --> 00:28:09.320
1510****211: I have never expected the… the beauty.

220
00:28:09.600 --> 00:28:21.290
1510****211: and the elegance of the city, and the state, and the country getting demolished. And I agree with Brussel Bate, by the way, about Gaza, that Senator Macy was great.

221
00:28:21.470 --> 00:28:30.309
1510****211: This company, the USS Liberty. I was a kid in Egypt when I was… my head was bombed in 1948 and 1956 by Israel.

222
00:28:30.310 --> 00:28:31.340
Boardroom: Activity?

223
00:28:31.340 --> 00:28:32.620
1510****211: Egypt defeated Israel.

224
00:28:32.620 --> 00:28:33.750
Boardroom: Thank you for your comment.

225
00:28:34.940 --> 00:28:41.470
Boardroom: That's it. That was the last, commenter. Okay, thank you very much. We will move on to the consent calendar.

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226
00:28:42.050 --> 00:28:49.620
Boardroom: There is a… I should note that there is another opportunity for non-agenda public comments at the end of the meeting.

227
00:28:50.020 --> 00:28:52.700
Boardroom: Thank you. Thank you. Yes. Yes.

228
00:28:53.060 --> 00:28:56.300
Boardroom: Do any of my… Sorry?

229
00:29:00.330 --> 00:29:01.989
Boardroom: Yeah, I'm so sorry.

230
00:29:03.950 --> 00:29:10.639
Boardroom: got deleted from my agenda somehow. But yes, are there any public comments by employee unions?

231
00:29:12.460 --> 00:29:14.690
Boardroom: 30 days, or you get a suit.

232
00:29:15.160 --> 00:29:16.000
Boardroom: Okay.

233
00:29:17.180 --> 00:29:19.909
Boardroom: Anyone online from an employee union?

234
00:29:25.070 --> 00:29:25.910
Boardroom: Okay.

235
00:29:26.550 --> 00:29:33.349
Boardroom: Alright, thank you very much. Thank you. My gosh. Okay, anyone have any comments from…

236
00:29:33.470 --> 00:29:34.940
Boardroom: On the consent calendar?

237
00:29:36.870 --> 00:29:38.050
Boardroom: My colleagues?

238

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00:29:38.800 --> 00:29:41.199
Boardroom: Yes, Councilmember O'Keefe.

239
00:29:41.320 --> 00:29:45.459
Boardroom: I have… other comments I'll make in a second, but I wanna…

240
00:29:45.840 --> 00:29:48.179
Boardroom: Recuse myself from one of the items.

241
00:29:49.090 --> 00:29:52.179
Boardroom: Item 22?

242
00:29:52.930 --> 00:29:54.850
Boardroom: Hot tub item?

243
00:29:55.880 --> 00:30:13.829
Boardroom: I don't know, do I have to leave the room or something, or can I just say I'm recusing and then not talk about it? Yeah, so we'll have to take, two votes on the consent calendar, we'll take one vote separately on item 22, and then another vote on the remainder. Okay, sorry about that, everyone, but trying to do it right.

244
00:30:14.380 --> 00:30:17.509
Boardroom: Thank you, I appreciate that. Councilmember Kisarwani.

245
00:30:18.810 --> 00:30:27.019
Boardroom: Thank you very much, Madam Mayor. I'd like to be recorded as donating $100 to item number 19. This is the…

246
00:30:28.050 --> 00:30:30.399
Boardroom: Poet Laureate program.

247
00:30:30.560 --> 00:30:47.209
Boardroom: and $100 towards item number 21, which is the Holocaust Remembrance Day program. And, I would like to be added as a co-sponsor to item number 22 to streamline our approval of hot tubs. Thank you very much.

248
00:30:48.620 --> 00:30:52.070
Boardroom: Thank you. Can we move on, Councilmember Humbert, please?

249
00:30:55.590 --> 00:30:59.020

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Boardroom: Missed that. Thank you, Madam Mayor.

250
00:30:59.920 --> 00:31:18.539
Boardroom: I want to, draw attention to items 18A and 18B, policy recommendations for the City of Berkeley regarding event producers and civic events, that's A, and companion report is B, policy recommendations for the City of Berkeley regarding event producers and civic events.

251
00:31:18.960 --> 00:31:22.349
Boardroom: I just want to make… confirm that,

252
00:31:22.450 --> 00:31:34.470
Boardroom: And when we vote on the consent calendar, we'll vote on adopting, the recommendations in the City Manager's Companion Report, 18B.

253
00:31:34.840 --> 00:31:49.349
Boardroom: Yes, we would be adopting this, for the purposes of… of adopting 18B. Thank you. Thank you. And then, with respect to 19, which is the Poet Laureate program, I'd like to contribute $100 for my…

254
00:31:49.700 --> 00:31:51.640
Boardroom: Discretionary office account.

255
00:31:51.810 --> 00:32:01.209
Boardroom: Also $100 to $20, which is the Chavez Huerta tribute site, or formerly named that, $100.

256
00:32:01.550 --> 00:32:16.009
Boardroom: I would like, as to item 21, the 2027 Holocaust Remembrance Day program, I'd like to contribute $500 from our, G8 discretionary account.

257
00:32:16.410 --> 00:32:21.130
Boardroom: And then with respect to item 22, the final item,

258
00:32:21.240 --> 00:32:26.279
Boardroom: on the consent calendar, having to do with amendments to Berkeley Municipal Code section.

259
00:32:26.850 --> 00:32:32.720
Boardroom: that relates to hot tubs, I'd like to add… Councilmember…

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260
00:32:32.850 --> 00:32:40.760
Boardroom: Councilmembers Bartlett, Kesarwani, and Tragoob, as co-sponsors, on this item for their requests.

261
00:32:41.160 --> 00:32:42.790
Boardroom: That's all I have. Thanks.

262
00:32:43.470 --> 00:32:45.820
Boardroom: Thank you very much. Councilmember Bartlett.

263
00:32:47.000 --> 00:32:49.040
Boardroom: Thank you, Madam Mayor.

264
00:32:50.310 --> 00:32:59.440
Boardroom: Through this, item 19, the, Berkeley Poet Laureate Program, I'd like to, donate $200 from my D13 account to support this wonderful program.

265
00:32:59.800 --> 00:33:10.390
Boardroom: Item 20, thank Councilor Kesarwani for this. Oh, Mauricius is yours, thank you. $200 as well to the Chavez Huerta tribute site.

266
00:33:10.420 --> 00:33:22.130
Boardroom: Should be wonderful. 20… Item 21, the, 2027, Holocaust Rememers Day program, another $200 to support this, wonderful annual event. And,

267
00:33:22.250 --> 00:33:36.639
Boardroom: I think that's it. But lastly, for the Live Free people that are here, I wanted to just recognize you, and thank you for the work you've done. It's been many years working on this, and now finally got it funded. It's working tremendously. I want to thank you for all your work.

268
00:33:39.490 --> 00:33:51.039
Boardroom: Thank you very much. Councilmember Lunopara. Thank you. I'd like to donate $200 each to items 19, 20, and 21, and thanks to the authors.

269
00:33:52.850 --> 00:33:59.720
Boardroom: Thank you. I'm trying to do math while I'm calling on you all to add these numbers. Okay, Councilmember Trakub, Vice Mayor Trajub.

270

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00:34:02.040 --> 00:34:11.469
Boardroom: Thank you, Madam Mayor, and thank you to our staff and administration across all departments for your work on many complex items.

271
00:34:11.590 --> 00:34:13.480
Boardroom: on…

272
00:34:14.370 --> 00:34:27.429
Boardroom: There are several items, that I'm excited about in terms of continuing our partnership with Business Improvement District, such as the North Shattuck Association and Visit Berkeley.

273
00:34:27.500 --> 00:34:34.859
Boardroom: On item 10, which is a contract, that will,

274
00:34:36.429 --> 00:34:52.499
Boardroom: ease, the burden to dispatchers and provide more consistent responses for, public dispatch. I want to thank staff very much for bringing forward this item.

275
00:34:52.780 --> 00:35:03.679
Boardroom: I, our office has, been receiving, input from constituents about sometimes there is,

276
00:35:03.880 --> 00:35:23.140
Boardroom: less than consistent, response that they receive, when they call, and I think this is a systems issue, not a people issue, and I think this will really help. And I also want to appreciate, staff's,

277
00:35:23.140 --> 00:35:37.360
Boardroom: comprehensive, write-up, of the sole source and the single source justification. I think this is a gold standard for, what I,

278
00:35:37.480 --> 00:35:49.150
Boardroom: Appreciate seeing, in items before us where there is a single, contract or vendor to be, selected from.

279
00:35:49.530 --> 00:35:52.420
Boardroom: Moving on, I would…

280
00:35:53.050 --> 00:36:16.119

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Boardroom: on items 18A and 18B, while I will be supporting a motion to approve 18B, which is the companion report, I want to thank the Civic Arts Commission, as well as staff. We all share the desire for a more equitable, transparent, efficient, and predictable

281
00:36:16.120 --> 00:36:23.370
Boardroom: special event program in Berkeley. Our office has also been working on an item in support of these goals.

282
00:36:23.370 --> 00:36:45.809
Boardroom: That will serve as a complement to these efforts, and I want to thank, the Commission for bringing this forward today, and staff for, working on, well, assessing the feasibility of implementation, and trying to really, get through what are the things that we can do on this front right now.

283
00:36:46.100 --> 00:36:55.260
Boardroom: I would like to contribute $150 each to, items 19 and 20.

284
00:36:55.460 --> 00:37:07.240
Boardroom: And I would like to thank my colleagues, as well as the mayor, for putting together item 22,

285
00:37:08.780 --> 00:37:16.719
Boardroom: 21, thank you. 21, which is the Holocaust Remembrance Day program, and those are all my comments. Thank you.

286
00:37:18.530 --> 00:37:20.989
Boardroom: Thank you very much. Councilmember Taplin.

287
00:37:21.130 --> 00:37:23.420
Boardroom: Thank you, Madam Mayor, and good evening, everybody.

288
00:37:24.120 --> 00:37:29.079
Boardroom: On item 19, I would like to be recorded as relinquishing $1,000 by D13.

289
00:37:29.320 --> 00:37:35.020
Boardroom: And I, if there's room, I would request being added as a co-sponsor.

290
00:37:35.790 --> 00:37:43.780

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Boardroom: Sorry, which item was that? 19, the Poet Laureate. Yes, yes, please, we'd love to have you join us. Thank you very much, and we appreciate your work on this front.

291
00:37:44.640 --> 00:37:49.930
Boardroom: On item, number 20, I'd like to be recorded as relinquishing $250.

292
00:37:50.520 --> 00:37:55.349
Boardroom: On IM21, I would like to be recorded as relinquishing $500 from AD-13.

293
00:37:55.470 --> 00:38:00.759
Boardroom: And I would, if there's room, request to be listed as a co-sponsor on this one as well.

294
00:38:04.750 --> 00:38:06.610
Boardroom: the 2027…

295
00:38:06.810 --> 00:38:13.890
Boardroom: I think that you should… that we should have space on that one, is that correct, Councilmember Trajub, Vice Mayor Trey Gobb?

296
00:38:14.270 --> 00:38:20.159
Boardroom: I believe so. Yes. Thank you. Thank you very much. Those complete… that completes our remarks.

297
00:38:20.990 --> 00:38:23.770
Boardroom: Okay, back to Councilmember O'Keefe.

298
00:38:24.160 --> 00:38:26.719
Boardroom: Thank you, these are my real comments.

299
00:38:27.520 --> 00:38:34.400
Boardroom: Oh, first of all, I'm told I was supposed to say why I'm recusing. It's because I have formed an intent to purchase a hot tub, so…

300
00:38:34.830 --> 00:38:37.769
Boardroom: Kind of obvious, but I have to say it for the record.

301
00:38:37.890 --> 00:38:49.250

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Boardroom: So I shouldn't vote on it. My real comments are, I would like to be recorded as donating, $200 to item 19, item 20, and item 21.

302
00:38:49.800 --> 00:38:52.719
Boardroom: Thank you very much for bringing those forward. And then…

303
00:38:52.830 --> 00:39:01.870
Boardroom: Lastly, I want to just really, express some appreciation for item 18, the whole concept of it, A and B, because I really feel like…

304
00:39:02.030 --> 00:39:18.530
Boardroom: Our civic events are really under threat right now for a number of reasons, and they have… it's hard to defend them, because they don't really… it's hard to quantify or point to their value, but I think we can all feel it, that they really… they have a really intangible,

305
00:39:18.790 --> 00:39:25.139
Boardroom: Value to our community, so anything we can do to… to help promote them, keep them…

306
00:39:25.560 --> 00:39:27.270
Boardroom: Promote them, keep them,

307
00:39:28.040 --> 00:39:34.779
Boardroom: from dying out, and maybe even have more one day. That'd be great. So, just happy to support item 18.

308
00:39:36.690 --> 00:39:44.350
Boardroom: Thank you very much, and I'm so sorry, Councilmember Blackaby, I missed you, because your little hand is being covered by my captions.

309
00:39:44.600 --> 00:39:49.300
Brent Blackaby: I'll just jump up and down next time, no problem. Thank you.

310
00:39:49.410 --> 00:40:07.939
Brent Blackaby: I'll be quick. Again, I wanted to echo thanks to the economic development team for their work on the Telegraph bid and the North Shattuck bid, as well as the Visit Berkeley bid. That work is so important to our business climate activity… business activity in the city, so I just appreciate these items coming forward.

311
00:40:07.940 --> 00:40:11.350

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Brent Blackaby: On, item…

312
00:40:11.350 --> 00:40:30.739
Brent Blackaby: 18, similarly to my other… to colleagues, I really do appreciate the Civic Arts Commission bringing this forward, helping us think through how best we can support, our events activity in the city, and I do support the feasibility analysis that the City Manager recommends to make sure that whatever we

313
00:40:30.740 --> 00:40:45.410
Brent Blackaby: pursue, is thoughtful and rooted in, economic cost and economic benefit. But again, I see them connected, and so I just wanted to thank everybody's work on those items. And then on the, relinquishment items.

314
00:40:45.410 --> 00:40:51.679
Brent Blackaby: I'd like to be recorded as, contributing $500 to the Berkeley Poet Laureate Program.

315
00:40:51.900 --> 00:41:01.700
Brent Blackaby: $500 for the Huerta, Chavez Huerta tribute site, and $1,500 to Holocaust Remembrance Day. And thank you to my colleagues.

316
00:41:03.180 --> 00:41:06.060
Boardroom: Thank you very much. I…

317
00:41:06.520 --> 00:41:20.020
Boardroom: Okay, so I did just want to mention, that I'm very grateful for staff's ability to continue leveraging, dollars. On tonight's agenda, we're going to be submitting a grant in the total of

318
00:41:20.090 --> 00:41:41.009
Boardroom: $315,267 from the state of California for FY27 through FY29 for the Maternal, Child, and Adolescent Health Program. The city is estimated to provide $123,550 in matching fund… matching fund revenue and draw down $105,089 in state revenue each fiscal year.

319
00:41:41.010 --> 00:41:49.510
Boardroom: Thank you so much to the Civic Arts Commission for their policy recommendations, and as was mentioned by Councilmember Humbert, we will be,

320
00:41:49.510 --> 00:41:58.060

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Boardroom: Accepting this report, 18b with the intention of, accepting 18B.

321
00:41:58.270 --> 00:42:09.610
Boardroom: And lastly, thank you so much to everyone who put in funding towards the Poet Laureate, the Tribute Site, and the Holocaust Remembrance Day for FY2027.

322
00:42:09.750 --> 00:42:18.559
Boardroom: And I think that that is it for me. Okay, do we have any public comment on consent calendar or information items only?

323
00:42:20.700 --> 00:42:21.809
Boardroom: Come on up.

324
00:42:28.410 --> 00:42:31.090
Boardroom: Good evening.

325
00:42:31.200 --> 00:42:43.340
Boardroom: My name is Daniel McChesney-Young, and I am the Ecology Center's Farmers Market Program Manager. I am here this evening to speak in support of items 18A and

326
00:42:43.410 --> 00:42:57.799
Boardroom: B, and just say that I appreciate the city staff's commitment to working with event producers, and especially thank Peter Radu and Carrie Arredondo for their thoughtful consideration.

327
00:42:57.840 --> 00:43:02.460
Boardroom: of the Event Producer's Bill of Rights in Item 18A.

328
00:43:02.470 --> 00:43:18.129
Boardroom: The Berkeley Farmers Markets advance the city's cultural, economic, climate, health, and strategic goals, and we look forward to the continued city support to ensure the future of Berkeley's farmers markets and other special cultural events.

329
00:43:19.680 --> 00:43:20.780
Boardroom: Thank you!

330
00:43:21.860 --> 00:43:29.149
Boardroom: Anyone online to speak on the consent calendar information items only? Oh, I'm sorry, Moni, were you coming?

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331
00:43:31.720 --> 00:43:44.960
Boardroom: I want to thank Councilmember O'Keefe about the comment on the civic organizations and the arts and culture. That's what Berkeley's all about, and the Indigenous Peoples Day Pow Wow Committee, I'm honored to be a part of that. Choctaw, Mississippi…

332
00:43:44.960 --> 00:44:01.050
Boardroom: relatives that I have, I've been in powwow committees in Yakima, Washington, Seattle, and here, and we want that to thrive and continue. So we really appreciate the Council's support of that, and Live Free, and prevention of violence. My sister… my aunt was killed in her bed

333
00:44:01.290 --> 00:44:03.070
Boardroom: And my cousin as well.

334
00:44:03.720 --> 00:44:12.650
Boardroom: Violence, when it arises to that level, prevention is everything, and this program is saving lives. So I really appreciate, also, Councilmember Bartlett's comments. Thank you.

335
00:44:13.100 --> 00:44:14.010
Boardroom: Thanks.

336
00:44:14.330 --> 00:44:26.149
Boardroom: Anyone online? For consent calendar information items only? Yes, we have, 7 hands raised. First speaker is Lisa Bullwinkle.

337
00:44:29.010 --> 00:44:40.159
Lisa Bullwinkel: Hi, good evening, everyone. I want to thank you so much for your contributions to the Poet Laureate program. Susan Felix, who was our…

338
00:44:41.840 --> 00:44:54.840
Lisa Bullwinkel: art ambassador to the city really encouraged me to kind of push this through the Civic Arts Commission, and lo and behold, we've raised almost $5,000, too, for our next Poet Laureate. Thank you so much.

339
00:44:54.930 --> 00:45:14.320
Lisa Bullwinkel: Also, I want to thank the city staff for their amazing work and positivity in going forward with the event producers policy. This was no small task, and we're really excited to see how much joy we can bring to the city by producing events

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340
00:45:14.770 --> 00:45:25.930
Lisa Bullwinkel: in collaboration with you, and so I thank you again, especially Peter Radu and Carrie, and the City Manager. It's just been great trying to get this done, and I think we're there.

341
00:45:27.350 --> 00:45:30.739
Boardroom: Thank you, Lisa, and thanks for all your work. I know you do a lot, too.

342
00:45:32.020 --> 00:45:34.680
Boardroom: Next is… Cameron Wu.

343
00:45:40.540 --> 00:45:42.020
Cameron Woo: Good evening, everyone.

344
00:45:42.130 --> 00:45:44.380
Cameron Woo: Thank you for taking my comments.

345
00:45:44.540 --> 00:45:49.070
Cameron Woo: I come to you tonight to speak as a…

346
00:45:49.470 --> 00:45:56.330
Cameron Woo: private citizen of Berkeley, not as a art commissioner, which I am, on the Civic Arts Commission.

347
00:45:57.050 --> 00:45:59.939
Cameron Woo: But I come to you tonight as a private citizen.

348
00:46:00.850 --> 00:46:06.930
Cameron Woo: I'd like to mention kudos to the Mayor and the Berkeley City Council for contributing to Berkeley's

349
00:46:07.040 --> 00:46:10.339
Cameron Woo: Pause Laurier program with passing item 19 tonight.

350
00:46:10.800 --> 00:46:18.220
Cameron Woo: With Berkeley's long and rich tradition, literary tradition, it would be a shame to lose this valuable program.

351
00:46:18.710 --> 00:46:22.240

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Cameron Woo: It's a modest sum, but one that is greatly appreciated.

352
00:46:23.710 --> 00:46:29.910
Cameron Woo: Also, thanks for all the work you've done, and the hopeful passage of item 18.

353
00:46:30.320 --> 00:46:37.490
Cameron Woo: Littlety events, producers, Comments… And revisions.

354
00:46:37.870 --> 00:46:41.429
Cameron Woo: Much needed. Thank you all for your hard work.

355
00:46:41.540 --> 00:46:42.710
Cameron Woo: Thanks again.

356
00:46:43.410 --> 00:46:45.850
Boardroom: Thank you. Thank you. Thanks, Cameron.

357
00:46:46.610 --> 00:46:48.509
Boardroom: Next is Kelly.

358
00:46:52.720 --> 00:46:55.059
Kelly’s iPad: Thank you, can you hear me okay?

359
00:46:55.060 --> 00:46:56.490
Boardroom: Yes, loud and clear.

360
00:46:56.490 --> 00:46:57.420
Kelly’s iPad: Okay.

361
00:46:57.790 --> 00:47:07.390
Kelly’s iPad: I have a problem with Holocaust Remembrance Day, as it is as if the Shoah, the Holocaust, was so horrific

362
00:47:07.550 --> 00:47:11.140
Kelly’s iPad: That it is the only genocide to remember.

363
00:47:11.450 --> 00:47:19.969
Kelly’s iPad: We don't recognize the NACBA and the current genocide that we as a country participate in through financing and arming.

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364
00:47:20.910 --> 00:47:29.720
Kelly's iPad: We recite at our meetings the land acknowledgement, but we don't state that we live in a country created through genocide and ethnic cleansing.

365
00:47:30.220 --> 00:47:37.870
Kelly's iPad: I'd like us to live in a city, a country, and a world where we condemn all genocides.

366
00:47:38.070 --> 00:47:45.309
Kelly's iPad: Instead of blinding our eye and excusing some, depending on who is suffering and who is committing them.

367
00:47:46.300 --> 00:47:47.250
Kelly's iPad: Thank you.

368
00:47:50.410 --> 00:47:54.559
Boardroom: Next is a caller with a phone number ending in 211.

369
00:48:04.990 --> 00:48:06.659
Boardroom: You should be able to unmute.

370
00:48:15.340 --> 00:48:16.020
1510****211: Hi.

371
00:48:16.210 --> 00:48:19.820
1510****211: Consent item 4, go down, walk down Telegraph.

372
00:48:20.010 --> 00:48:39.979
1510****211: About 4 out of 5 storefronts are closed, shut down forever. Do something with friends who have this place empty. Second, with the fact Holocaust, human memory is very short. Hitler killed over so many beautiful Jews in the dark. Nobody now with TVs. Every day, you watch little kids.

373
00:48:40.100 --> 00:48:44.339
1510****211: In Gaza, in Lebanon, getting shot in their heads.

374
00:48:44.610 --> 00:48:53.410
1510****211: Is it saying 70,000? No, it's more like half a million Palestinians are dead. By the way, the word somatic…

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375
00:48:53.580 --> 00:48:58.110
1510****211: It's in Palestinian.

376
00:48:58.310 --> 00:49:04.970
1510****211: Don't wait until just to wait till a split-header do. It's worthless.

377
00:49:05.080 --> 00:49:06.189
1510****211: He's a criminal.

378
00:49:06.480 --> 00:49:07.200
1510****211: Thanks.

379
00:49:13.090 --> 00:49:13.800
Boardroom: Okay.

380
00:49:14.640 --> 00:49:18.880
Boardroom: Next speaker is Alex Knox.

381
00:49:22.490 --> 00:49:40.139
Alex Knox: Good evening, Mayor and Councilmembers Alex Knox, Telegraph Business Improvement District. Just want to say, echo Councilmember Blackaby's, thanks for the Office of Economic Development and their critical work to ensure that, you know, we're able to continue operating and, and put,

382
00:49:40.270 --> 00:49:52.550
Alex Knox: you know, put these steps through, motion, and I'm also very pleased to report that just today, we approved and finalized our new strategic plan for the Telegraph District.

383
00:49:52.880 --> 00:50:07.860
Alex Knox: which we will be unveiling and publicizing over the coming weeks, but really establishes an ambitious, forward-thinking vision for the Telegraph District. I'll be pleased to share that with you.

384
00:50:08.090 --> 00:50:11.980
Alex Knox: As also a contributor and…

385
00:50:12.210 --> 00:50:27.110
Alex Knox: collaborator on the policy recommendations from the Berkeley event producers. I want to say that I, you know, really thank the group

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of people that came together to bring those recommendations together, but really recognize and thank the City Manager's Office.

386
00:50:27.110 --> 00:50:27.620
Boardroom: Thanks, Alice.

387
00:50:27.620 --> 00:50:30.250
Alex Knox: For their good faith efforts. Thank you.

388
00:50:32.040 --> 00:50:34.310
Boardroom: Next is, Russell.

389
00:50:38.060 --> 00:50:55.119
Russell's S24 FE: Thank you, everybody. Norman Finkelstein wrote a book called, The Holocaust Industry, where he details how it's become big business and a way to guilt trip people out of money. I suggest that

390
00:50:55.310 --> 00:51:10.590
Russell's S24 FE: for the sake of balance, the City of Berkeley does the Gaza Genocide Remembrance Day. At the same time, the other Holocaust Remembrance Day goes on. Otherwise, it's proving the…

391
00:51:10.860 --> 00:51:27.460
Russell's S24 FE: The oppressed become the oppressor, the first chance they get, and the Palestinian people have been oppressed for 78 years. So, for the sake of balance, consider the Gaza Remembrance… Gaza Genocide Remembrance Day. Thank you very much.

392
00:51:30.180 --> 00:51:30.920
Boardroom: Okay?

393
00:51:31.340 --> 00:51:33.869
Boardroom: Next is Della Luna.

394
00:51:38.980 --> 00:51:47.729
Della Luna (she/her) Huichun: Yes, I agree with some of the speakers, seeking balance in regards to Holocaust Remembrance Day. There should… I mean, we don't…

395
00:51:48.310 --> 00:52:03.810
Della Luna (she/her) Huichun: want to only just remember one genocide, it just honestly doesn't make any sense to take that stance. But I was…

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wanted to speak about number 18A and 18B, and I'm really glad to see that this, is on the agenda, and

396
00:52:04.440 --> 00:52:20.799
Della Luna (she/her) Huichun: I guess being passed. I hope it's being passed. And, I wanted to say I hope it means that the bathrooms will be open again for the farmers market. For years, we've had access to bathrooms at the Saturday Farmers Market specifically, and we've used the park.

397
00:52:21.030 --> 00:52:33.909
Della Luna (she/her) Huichun: With no problems, and it seems in recent years, the way the city has tried to manage that space has only just made it worse, and the numbers are going down at the market, and the vendors are upset, like, everything's just cranky.

398
00:52:33.910 --> 00:52:41.900
Della Luna (she/her) Huichun: And so I just hope that you can restore it to a space that's actually an event that's normal to be at, like a regular Saturday afternoon. Thank you.

399
00:52:41.900 --> 00:52:43.570
Boardroom: Noah.

400
00:52:44.560 --> 00:52:47.059
Boardroom: And the last speaker is M.

401
00:52:47.420 --> 00:52:48.500
Boardroom: Jervis.

402
00:52:51.230 --> 00:52:55.870
mjervis@downtownberkeley.com: Hi everybody, Matthew Jervis, thank you. Everyone I wanted to speak in,

403
00:52:55.890 --> 00:53:05.120
mjervis@downtownberkeley.com: Obviously, we're, excited about 18A and B, and the direction of the conversations that have been going about the event producers and the partnership with the city.

404
00:53:05.120 --> 00:53:20.670
mjervis@downtownberkeley.com: the community really expresses itself in these amazing events that we're able to put on, and I'm looking forward to partnership with the city and making more of them. So thank you very much for your help, and all the city staff and event producers that have

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405
00:53:20.670 --> 00:53:25.850
mjervis@downtownberkeley.com: come together in this very constructive, conversation. Thank you.

406
00:53:25.850 --> 00:53:26.760
Boardroom: Thank you.

407
00:53:29.420 --> 00:53:31.749
Boardroom: That's it. Okay, thank you.

408
00:53:31.880 --> 00:53:34.809
Boardroom: Alright, so…

409
00:53:35.220 --> 00:53:51.780
Boardroom: Is there a motion to… oh, sorry, I see that Councilmember Taplin has his… Thank you very much. I wanted to thank the Mayor and the Vice Mayor again for their authorship of the Holocaust Remembrance Day program item.

410
00:53:52.150 --> 00:53:57.899
Boardroom: This is a very important event. I'm very proud that this Council has continued to support this event.

411
00:53:58.020 --> 00:54:10.479
Boardroom: And even today, in 2026, we see, on an almost daily basis, the grim reminder of both the impact and the presence of noxious anti-Semitic thought and conservatorial thinking.

412
00:54:10.910 --> 00:54:18.669
Boardroom: And with that, I move adoption of the consent calendar. Second. So that would the consent calendar, perhaps.

413
00:54:18.910 --> 00:54:30.770
Boardroom: Yeah, so, minus the, yeah, minus 22, and then we can ask Councilmember O'Keefe to step up. Correct. Is that okay? Yes. Okay. And okay, to the seconder as well? Alright. So this is,

414
00:54:32.960 --> 00:54:35.090
Boardroom: Well, this is the one you would be recused on.

415
00:54:35.360 --> 00:54:38.409

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Boardroom: This is everything except… Everything except 22. Right.

416
00:54:41.350 --> 00:54:47.099
Boardroom: Oh, yes, you're correct. Sorry, so there's items 1 to 21, Councilmember Kesarwani.

417
00:54:48.380 --> 00:54:50.120
Boardroom: Yes.

418
00:54:50.590 --> 00:54:57.080
Boardroom: Taplin? Aye. Bartlett? Yes. Trego? Aye. O'Keefe? Yes. Blackaby? Aye.

419
00:54:57.080 --> 00:54:57.780
Brent Blackaby: Yes.

420
00:54:58.280 --> 00:55:15.309
Boardroom: Lunapara? Yes. Humbert? Yes. And Mary Ishii? Yes. Okay. Yes. Thank you. Motion carries. Is there a motion to… wait, let me just… Okay, is there a motion to approve number 22 on the consent calendar? So moved. Second.

421
00:55:15.800 --> 00:55:26.879
Boardroom: Okay, can you take the roll on that, please? For item 22, on consent, Councilmember Kesarwani? Yes. Taplin? Aye. Bartlett? Yes. Tragub?

422
00:55:27.140 --> 00:55:27.910
Boardroom: Aye.

423
00:55:28.080 --> 00:55:31.520
Boardroom: O'Keefe is recused. Blackaby.

424
00:55:31.520 --> 00:55:32.220
Brent Blackaby: Yes.

425
00:55:32.530 --> 00:55:38.279
Boardroom: Luna Parra? Yes. Humbert? Yes. And Mary Ishii? Yes. Okay, that motion carries as well.

426
00:55:38.590 --> 00:55:40.010
Boardroom: Thank you very much.

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427
00:55:40.840 --> 00:55:53.599
Boardroom: Okay, so we are moving on to the action calendar. We have a number of public hearings, so I'd like to open the public hearing for item number 23. Oh, Councilmember O'Keefe, you can come back.

428
00:55:54.450 --> 00:56:06.959
Boardroom: Number 23 is changes to the environmental health fee schedule, and I am so sorry that we were not able to hear those… this item and the next two at the previous meeting, so I will let you hop right in.

429
00:56:08.570 --> 00:56:27.309
Boardroom: Thank you, Mayor and Council Members. My name is Scott Gilman, I'm the Director of Health, Housing, and Community Services. I have the pleasure of introducing our Deputy Director, Tanya Bustamante. Approximately 6 months ago, Tanya became responsible for the Environmental Health Division, and she has a brief presentation to review our fee proposal.

430
00:56:34.620 --> 00:56:53.930
Boardroom: Thank you, Scott. Good evening, Honorable Mayor and Council. Good to see you all again. So this evening, I have a brief presentation, to walk you through our environmental health permit fee increases. Can you just put it a little closer to you? I don't know why, it still sounds a little quiet. Can you hear me better? That's better, yeah, thank you.

431
00:56:54.960 --> 00:56:56.510
Boardroom: Alright.

432
00:56:57.090 --> 00:57:04.779
Boardroom: So, this evening, I will provide you with a brief background of our Environmental Health Food Safety Program.

433
00:57:05.050 --> 00:57:12.189
Boardroom: Provide you with a rationale for our fee increases, and also talk a little bit about the fee increase impacts.

434
00:57:15.720 --> 00:57:23.579
Boardroom: So to start off with our background, food safety and inspection really comprises the bulk of our environmental health division's work.

435
00:57:23.950 --> 00:57:43.029

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Boardroom: The Environmental Health Division is responsible for permitting and inspecting all food facilities, and that includes school kitchens, retail and non-retail food establishments, mobile food vendors, temporary event booths, restaurants, bars, farmers markets, and so on and so forth.

436
00:57:43.710 --> 00:58:02.999
Boardroom: The Division's approach focuses on the prevention of foodborne and food-related illness by emphasizing the importance of education on key food safety principles, and also by following the Federal Food and Drug Administration retail food program standards.

437
00:58:03.880 --> 00:58:14.999
Boardroom: Follow-up inspections occur when a facility doesn't meet minimum standards of the California Retail Food Code, which is a subset of our California Health and Safety Code.

438
00:58:18.150 --> 00:58:30.710
Boardroom: So, our current fees have remained largely unchanged since 2011. Fees were never set at 100% of the full cost of our operations.

439
00:58:30.710 --> 00:58:40.920
Boardroom: Additional facility categories and fees were added to the division's fee schedule back in 2016, 2021, and 2024.

440
00:58:41.010 --> 00:58:54.819
Boardroom: But those were really to reflect newly created categories of food facilities as defined in the California Retail Food Code. But existing fees overall were not updated or increased at those times.

441
00:58:55.520 --> 00:59:03.390
Boardroom: The proposed fee structure outlines fee increases that are needed to sustain our division operations.

442
00:59:03.530 --> 00:59:12.029
Boardroom: Additionally, the proposed fee structure reflects a 40% increase in inflation and cost of living.

443
00:59:15.660 --> 00:59:34.639
Boardroom: So I'd like to give you a little bit of our… I'd like to give you a scope of our food facilities, which make up the majority of the types of facilities that our environmental health inspectors inspect in Berkeley. So the City of Berkeley inspects approximately 900… over 950 food facilities.

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444
00:59:34.820 --> 00:59:43.560
Boardroom: We also have non-food facilities, which include pools and spas, body art, cannabis and tobacco distribution, etc.

445
00:59:44.010 --> 01:00:00.769
Boardroom: So, to help you understand the difference between risk categories in our food facilities, it really is largely dependent on the type of food that is prepared and served, and also the food preparation that is involved. So…

446
01:00:00.780 --> 01:00:04.710
Boardroom: A low-risk facility, for example, might be…

447
01:00:04.790 --> 01:00:09.379
Boardroom: Might include something like a cafe that serves prepackaged foods.

448
01:00:09.490 --> 01:00:13.839
Boardroom: A medium-risk facility might be something like a yogurt shop.

449
01:00:14.340 --> 01:00:20.419
Boardroom: Whereas a high-risk facility might be… might include something like a sushi bar or restaurant.

450
01:00:21.240 --> 01:00:38.420
Boardroom: The Environmental Health Division team has only 4 field… 4 active field inspectors currently, and the City requires 6 to meet its inspection targets. I'm sharing this with you because our high-risk facilities require more inspections.

451
01:00:38.480 --> 01:00:44.020
Boardroom: And typically, those are the ones that we get the most complaints on from community members.

452
01:00:49.180 --> 01:00:57.980
Boardroom: Our proposed fees are based on a comprehensive fee study. So facilities are categorized based on the type of facility that they are.

453
01:00:58.250 --> 01:01:01.900
Boardroom: The risk level, and also the square footage.

454
01:01:02.250 --> 01:01:09.990

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Boardroom: Fees were calculated based on the staff time that it takes to complete inspection activities and services.

455
01:01:10.280 --> 01:01:16.899
Boardroom: And we also take into consideration complaint investigations and follow-up re-inspections.

456
01:01:21.980 --> 01:01:44.780
Boardroom: The recommended increases and the creation of a new fee structure will increase the division's revenue to more appropriately cover the costs of delivering both mandated, state and local, and non-mandated services to the community, and adequately inspect our over 1,100 facilities that we have in Berkeley.

457
01:01:45.240 --> 01:01:52.839
Boardroom: Mandated services include our mandated facility inspections for all of our establishments.

458
01:01:53.020 --> 01:02:12.479
Boardroom: Noise permits, stormwater inspections, etc. Non-mandated services include things like general nuisance complaint investigations, noise studies, expanded food program services. We often provide technological assistance and consultations to food business owners.

459
01:02:12.640 --> 01:02:19.260
Boardroom: We also do community outreach and education, and special event guidance beyond the required permitting.

460
01:02:19.970 --> 01:02:34.989
Boardroom: The fees would defray the cost of the division software transition, which is currently in process. We are transitioning to a new platform, which will increase accuracy and transparency of our facility inspection data.

461
01:02:35.720 --> 01:02:43.019
Boardroom: And it will also help to fund our new placardine program costs, which the division hopes to implement next year.

462
01:02:47.530 --> 01:02:49.339
Boardroom: Actually, I just wanna…

463
01:02:49.850 --> 01:03:14.230
Boardroom: add that these last three bullets are specifically in response to the City Auditor's recommendations, directly related to their audit

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findings. We are actively working on a new platform that will enable us to make our facility inspection reports more readily available to the public, and of course, we're keeping the City Auditor apprised on our progress. Expanding our capacity and modernizing the

464
01:03:14.230 --> 01:03:23.950
Boardroom: Division's operations will enable them to be more responsive to our community's needs, and more transparent with the outcome of the services that we provide.

465
01:03:24.440 --> 01:03:30.360
Boardroom: Obviously, these fee increases will have impacts on our businesses in Berkeley.

466
01:03:30.800 --> 01:03:40.260
Boardroom: Our Office of Economic Development is available to assist business owners in connecting to resources that can help sustain and grow their business in Berkeley.

467
01:03:41.690 --> 01:03:46.289
Boardroom: That concludes our brief presentation, and happy to answer any questions you have.

468
01:03:48.180 --> 01:03:54.800
Boardroom: Thank you very much. I think we have a number of questions for you, starting with… Councilmember Taplin.

469
01:03:57.110 --> 01:04:00.290
Boardroom: Sorry, Vice Mayor Jacob.

470
01:04:01.060 --> 01:04:15.179
Boardroom: Thank you so much. So I don't know if this is a question for, HHCS, or if Eleanor might be online,

471
01:04:15.280 --> 01:04:31.380
Boardroom: But, and I absolutely recognize the need for this fee increase. We have, of course, heard, some concerns from the, the small business community around the.

472
01:04:31.680 --> 01:04:50.169
Boardroom: the steep nature of this increase, and while I recognize that, there will be, almost a year for restaurant owners to plan for it, since fees were already assessed this year,

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473
01:04:50.220 --> 01:05:06.659
Boardroom: I am curious if, there are any concerns about, small business owners being able to pay the fee, and just what the rollout, plan is around.

474
01:05:06.690 --> 01:05:25.929
Boardroom: Education, change management, and, potential opportunities, if there are, demonstrated hardships to either have an installment plan or other,

475
01:05:25.930 --> 01:05:28.299
Boardroom: Possible ways to…

476
01:05:28.300 --> 01:05:35.680
Boardroom: Get to the intended goal, while also trying to hold on to the small businesses we have.

477
01:05:37.120 --> 01:05:45.530
Boardroom: Well, I can certainly speak to the outreach and education piece. We do plan to work with our business owners, and in fact, our

478
01:05:45.530 --> 01:06:02.559
Boardroom: Field inspectors, for the most part, have a very good rapport with the business owners that they do interface with. So we plan to do a mailing with all of them. We plan to do face-to-face interaction and communication, between our field inspectors and business owners.

479
01:06:02.560 --> 01:06:11.600
Boardroom: To address their concerns and hopefully work with them. And I'm not sure if Eleanor can add anything from the Office of Economic Development perspective.

480
01:06:16.170 --> 01:06:22.659
Boardroom: Did you want her to respond? Is she… is she here? I know she's online, but I don't know if she has anything to add.

481
01:06:23.540 --> 01:06:24.279
Boardroom: Oh, here's.

482
01:06:24.280 --> 01:06:37.600
Eleanor Hollander: I'm here. Thanks for the opportunity to talk. It's been great working with HHCS on this item. We stand ready to support

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small businesses as they're getting information about the changes and, helping them comply with the new policy.

483
01:06:38.690 --> 01:06:39.480
Eleanor Hollander: Thank you.

484
01:06:40.240 --> 01:06:41.580
Boardroom: Thank you.

485
01:06:42.500 --> 01:06:45.709
Boardroom: Alright, moving on to Councilmember O'Keefe.

486
01:06:49.270 --> 01:06:55.239
Boardroom: Did you skip someone? Go ahead, yeah, I was… I did, I just pressed it. So, Councilmember Bartlett, then Councilmember O'Keefe.

487
01:06:56.090 --> 01:07:03.789
Boardroom: Thank you, Madam Mayor. Thank you for your presentation. Can you go back to the chart of different cities and their fees?

488
01:07:05.390 --> 01:07:10.830
Boardroom: This one? So, this is interesting, as we go through this,

489
01:07:12.110 --> 01:07:16.940
Boardroom: I'm curious, and maybe Eleanor can answer, maybe you can as well. Why is San Dateo so high?

490
01:07:18.500 --> 01:07:19.789
Boardroom: Do you have any idea?

491
01:07:20.350 --> 01:07:21.759
Boardroom: That's a good question.

492
01:07:23.370 --> 01:07:28.959
Boardroom: No, we just surveyed what their current fees were, but why they're so high, we don't have information on that.

493
01:07:29.160 --> 01:07:30.100
Boardroom: Okay.

494
01:07:30.560 --> 01:07:33.279

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Boardroom: Just curious, they don't have that many restaurants there.

495
01:07:35.790 --> 01:07:36.590
Boardroom: Okay.

496
01:07:37.070 --> 01:07:38.390
Boardroom: And it's so…

497
01:07:42.890 --> 01:07:44.330
Boardroom: That's fine. Thank you.

498
01:07:44.530 --> 01:07:46.360
Boardroom: Thank you. Councilmember O'Keefe.

499
01:07:47.470 --> 01:07:52.420
Boardroom: Thank you. I think it's San Mateo County that has a lot of restaurants. The whole county, right?

500
01:07:52.530 --> 01:07:56.170
Boardroom: I haven't been to San Mateo, the city.

501
01:07:56.230 --> 01:08:00.419
Boardroom: My question has to do with the,

502
01:08:00.450 --> 01:08:18.610
Boardroom: status, you mentioned it in your presentation, the status of the, making available online the restaurant inspection information. I know that we had, we had a presentation about that quite some time ago, I don't remember how long ago, and, it was forthcoming then, so do you have a date? I know it's a little off-topic, but you brought it up, and I'm curious.

503
01:08:20.810 --> 01:08:34.869
Boardroom: Yeah, it's been… it's been a long road, but we hope to, launch it at the end of summer, early fall. Okay. And I just… I guess I remember I had a question last time that I'm still curious about, we don't have to get into it, but…

504
01:08:35.080 --> 01:08:38.240
Boardroom: My understanding is there is a PDF of all of the current…

505
01:08:39.010 --> 01:08:47.390

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Boardroom: Like, maybe it's… I'll talk to you about it offline, actually, it's not important for right now, but I thought there was an easier way. But anyway, we'll look forward to that. Thank you.

506
01:08:48.810 --> 01:09:03.129
Boardroom: Okay. Yeah, I was curious, actually on this chart as well, if there was a reason why our retail grocery store inspection is so much higher than Alameda's, because I feel like it's largely on par otherwise. Do you know?

507
01:09:08.060 --> 01:09:10.970
Boardroom: Can you speak to the last time that Alameda raised their fees?

508
01:09:11.330 --> 01:09:12.430
Boardroom: Yup.

509
01:09:12.880 --> 01:09:26.229
Boardroom: So, you'll see on the chart, Alameda's fees were effective in 2021, and so we believe that they're going to be adjusting fees as well. We don't have, you know, confirmation of when that's going to happen, but I think that's part of it.

510
01:09:26.490 --> 01:09:27.250
Boardroom: Hmm.

511
01:09:27.560 --> 01:09:36.179
Boardroom: Well, it's just that that one in particular is, is like half of ours. Even our older fee, you know.

512
01:09:36.760 --> 01:09:54.599
Boardroom: We also have some increased, but it's not going up that much between what existed before with us and now, so… Anyway, I'd be interested in understanding that a little bit better. And then the other question I had was about, ongoing increases. Do we have anything in place?

513
01:09:55.400 --> 01:09:56.219
Boardroom: For that?

514
01:09:58.910 --> 01:10:05.950
Boardroom: We don't have anything in place, but we do plan on, Being better about,

515

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01:10:06.140 --> 01:10:17.049
Boardroom: in keeping pace with the economy in terms of increasing our fees if we need to, and also keeping pace with the rest of the Bay Area jurisdictions.

516
01:10:19.070 --> 01:10:37.750
Boardroom: And cost of living, of course, is a factor as well. Thank you, and can you speak to any other features in this new program, this new system that would exist, just to understand that a little bit better? I know that more transparency for the public is great, but I'm wondering if it also provides any services for those that are being inspected as well.

517
01:10:38.750 --> 01:10:52.110
Boardroom: I don't fully understand the details, so we could, get back to you on that, but I do understand that there will be a public-facing portal, that the community members will be able, and business owners will be able to easily access.

518
01:10:52.870 --> 01:10:57.099
Boardroom: Okay, thank you. And then, oh, Vice Mayor Treykup, did you have something?

519
01:10:57.230 --> 01:11:03.540
Boardroom: You wanted to ask a question? I think Councilmember Blackaby may have had his hand up, but I do have a follow-up question.

520
01:11:04.960 --> 01:11:10.420
Boardroom: Oh, go for it. Sorry, I can't see you anymore, Councilmember. So, go ahead.

521
01:11:10.420 --> 01:11:19.839
Brent Blackaby: I'm hiding. Thanks, Director Gilman, Deputy Director Bustamonte. I just had a couple of questions, just to understand some of the big picture numbers as well, and…

522
01:11:19.850 --> 01:11:37.429
Brent Blackaby: the city manager may want to jump in here, too. So, on an annual basis, again, we're in budget season, so I'm kind of trying to put this in the context of the budget also. It's my understanding that the general fund reimburses EHF something on the order of about $980,000, right, to kind of

523
01:11:37.740 --> 01:11:40.050
Brent Blackaby: Level set the… that fund.

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524
01:11:40.250 --> 01:11:41.189
Boardroom: That's correct.

525
01:11:41.420 --> 01:11:50.210
Brent Blackaby: Okay. And then, so this, these new revenues, or these new fees would generate an additional $666,000

526
01:11:50.380 --> 01:12:02.600
Brent Blackaby: in revenue annually, estimated, but then we'd also be hiring two new resources to fill out some of the inspection program, and so the net…

527
01:12:02.790 --> 01:12:08.750
Brent Blackaby: The net revenue generated would be more on the order of about $229,000 or something, right?

528
01:12:09.760 --> 01:12:10.839
Boardroom: Yes, that's correct.

529
01:12:11.110 --> 01:12:14.559
Brent Blackaby: Okay, and so the general fund would still be…

530
01:12:14.760 --> 01:12:20.029
Brent Blackaby: Chipping in on an annual basis, kind of $750,000 plus.

531
01:12:22.420 --> 01:12:22.990
Boardroom: Yes.

532
01:12:23.420 --> 01:12:24.250
Brent Blackaby: Okay.

533
01:12:25.080 --> 01:12:27.540
Brent Blackaby: Maybe this question for the City Manager. Is the…

534
01:12:27.680 --> 01:12:31.540
Brent Blackaby: Is the goal of this fund?

535
01:12:31.690 --> 01:12:43.449
Brent Blackaby: that it should be self-sustaining, ultimately? Or is that the right way to think about it? Is the goal trying to get that to

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basically… to zero out, so that the general fund's contributing zero, or do we think this is…

536
01:12:43.760 --> 01:12:54.870
Brent Blackaby: Is there a reason that the general fund should be making… you know what I mean, is it by design that the fees should be covering the cost of running the program, or is this always going to be the case where we're going to have general fund contribution?

537
01:12:55.410 --> 01:13:09.719
Boardroom: It's a good question, Councilmember. Yes, our goal is to get the fees up to the point where there's a support… where they're fully supporting the program. As the Director and Deputy Director have said, that fees haven't been raised for a long time, so we're kind of in a catch-up mode, but that is the goal.

538
01:13:09.990 --> 01:13:21.019
Brent Blackaby: Okay, okay. You know, I know we're pretty deep into this particular budget process, but this does feel like an area, maybe as we're heading into the next fiscal year, that, you know.

539
01:13:21.150 --> 01:13:36.130
Brent Blackaby: you know, the county does, I think, a pretty decent job at this work. Should this be something that we at least look at? Are there some of these functions? Because again, this just feels like, again, in difficult budget situations, difficult kind of budget scenarios that we're in now.

540
01:13:36.130 --> 01:13:41.850
Brent Blackaby: You know, if this is a function that the county is providing to every other city in the county,

541
01:13:41.850 --> 01:13:54.410
Brent Blackaby: again, and again, I don't know what kind of cost we would sort of bear to make that transfer, but I at least think this should be on the list of things to look at. I know we're probably not going to be able to do it between now and June 30, that doesn't seem like that's prudent.

542
01:13:54.450 --> 01:13:57.360
Brent Blackaby: But I know we're also probably not gonna completely…

543
01:13:57.470 --> 01:14:09.619
Brent Blackaby: finish the job at sort of totally closing the structural deficit between now and June 30, so I think… I just want to come back to

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this, because this just feels like… and I appreciate all the effort and the work. We're getting better, we're getting closer.

544
01:14:09.620 --> 01:14:19.399
Brent Blackaby: But if this is just sort of a number that we're still gonna be $750,000 in the red from the general fund, if this is just something we need to leave on the table and look at next year.

545
01:14:19.440 --> 01:14:30.780
Brent Blackaby: what would it look like if we transferred some of this over? So I just… I want to at least leave that out there for consideration. But again, I appreciate the effort, and I appreciate that this is going to help us close the gap some, and also going to help us

546
01:14:30.780 --> 01:14:46.730
Brent Blackaby: get better service in the short term, because we'll have inspectors that are then, I think, again, filling the gap that we haven't had up to full staff per the auditor's report. I don't know, again, City Manager wanted to comment on that, but that's… just looking at the numbers, it's kind of… that's the question that kind of strikes me.

547
01:14:49.770 --> 01:14:59.079
Boardroom: We could certainly… we hear your request, and that's something we could certainly start to delve into, is doing more analysis of that, and understanding the costs and benefits, and understanding the…

548
01:14:59.200 --> 01:15:11.259
Boardroom: You know, both, like you were saying, both the cost to the general fund, as well as whatever gets raised through the special funds, as well as understanding the benefits of having staff who can do this work, so that we can present the picture to you.

549
01:15:11.680 --> 01:15:17.260
Brent Blackaby: Yeah, appreciate it, yeah. Again, between now and June 3, I don't think we'll have time, but just leave it for future. Okay, thank you.

550
01:15:17.440 --> 01:15:28.879
Boardroom: Thank you. Thank you very much, Councilmember. Vice Mayor Trey Gob, and then I do want to move on, because I know we have a couple more, fees in particular, and quite a few more things to cover.

551
01:15:29.610 --> 01:15:35.289
Boardroom: Understood, that would be as… concise as I can. I…

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552
01:15:35.640 --> 01:15:48.239
Boardroom: For this slide, the Bay Area comparison with the county, can you confirm whether this is unincorporated areas of the county, with the exception of

553
01:15:48.520 --> 01:15:53.890
Boardroom: San Francisco, or is it a median throughout the county?

554
01:15:55.620 --> 01:15:58.079
Boardroom: The services provided by the county.

555
01:15:58.860 --> 01:16:06.160
Boardroom: So, Berkeley's one of the few cities in the state that has its own environmental health division. Okay. So, these are all full counties.

556
01:16:06.590 --> 01:16:22.350
Boardroom: Okay, so I want to echo Councilmember Blackaby's, comment about just continue… I know we've been in dialogue around this piece, and I would like to continue, so my other question,

557
01:16:22.790 --> 01:16:29.470
Boardroom: On Table 2, with the new fee schedule, it looks like the,

558
01:16:30.220 --> 01:16:44.939
Boardroom: this is with the… with the two additional FTEs in FI27, the, expense increase would be about $10K, well, just a step function. But this is… the plan,

559
01:16:45.240 --> 01:16:54.190
Boardroom: Would be to, present the, higher… well, the positioning of the two FTEs.

560
01:16:54.190 --> 01:17:09.579
Boardroom: under AA01, and I'm wondering what that means in terms of expense projections, given if it's AO1 that's mid-fiscal year, then it probably takes time to hire those positions.

561
01:17:09.580 --> 01:17:17.060
Boardroom: Can you speak to whether the expense increase will actually be for $36,000?

562
01:17:22.320 --> 01:17:27.370

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Boardroom: That is our anticipated projection. We…

563
01:17:27.720 --> 01:17:39.810
Boardroom: took into account how much it costs, how much a registered environmental health specialist costs, and so that's… that… those are our projections for 2FTE.

564
01:17:40.440 --> 01:17:41.140
Boardroom: Okay.

565
01:17:41.230 --> 01:17:56.310
Boardroom: So I, if possible, I would like to bring back this discussion, certainly before a decision is made on hiring, additional FTEs. Thank you. Thank you.

566
01:17:56.400 --> 01:18:01.749
Boardroom: Is there any public comment on this item? We are on item number 23, changes to the Environmental Health Fee Schedule.

567
01:18:03.870 --> 01:18:05.190
Boardroom: Anyone online?

568
01:18:08.360 --> 01:18:10.810
Boardroom: No, there's no hands raised online.

569
01:18:12.600 --> 01:18:19.020
Boardroom: Okay, very good. Are there any other comments from… Our council members?

570
01:18:20.640 --> 01:18:25.549
Boardroom: Yes, Councilmember Humbert. Thank you, Madam Mayor. Yeah, I have a few.

571
01:18:25.800 --> 01:18:35.319
Boardroom: You know, I recognize that no one likes fee, and this is gonna address a number of the fee increase matters that we're hearing tonight.

572
01:18:35.620 --> 01:18:52.099
Boardroom: I recognize that no one likes fee increases. I understand why, to Berkeley residents and visitors, it feels like being nickeled and dimed, and I know this is especially unpleasant when we're dealing with rising inflation and amazingly rising gas prices.

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573
01:18:52.430 --> 01:18:56.060
Boardroom: But that said, we need to keep our city fees

574
01:18:56.450 --> 01:19:10.000
Boardroom: On, on parity with inflation, and actually reflect the costs of providing these services. So I've appreciated Councilmember Blackaby's and, Councilmember Tregoob's comments, in that regard.

575
01:19:10.160 --> 01:19:24.120
Boardroom: Now, unless residents are willing to approve much higher taxes that would enable us to subsidize these items, we need to adjust these fees, and that's also generally the fairest way of doing it, and I don't want to wind up where it's cost neutral.

576
01:19:24.600 --> 01:19:28.609
Boardroom: We live in a city with a lot of wonderful amenities and high level of services.

577
01:19:28.780 --> 01:19:37.080
Boardroom: Now, people may sometimes not feel that way because a garbage can is left uncollected, or a median gets overgrown, but that doesn't change the…

578
01:19:37.670 --> 01:19:52.909
Boardroom: The overall picture that Berkeley does a lot more than most cities its size, and to keep that up, we need to keep up with costs, so I plan to support this and the other fees that we have before us tonight. And we'll have some additional comments about the parking fees specifically. Thanks.

579
01:19:54.040 --> 01:19:56.750
Boardroom: Thank you. Any other Councilmember comments?

580
01:19:57.590 --> 01:20:10.500
Boardroom: I did just want to add that as well, that I know that it is really challenging for some of our small businesses, especially our restaurants, to have these fee increases, and so I do really want us to look into some kind of

581
01:20:10.520 --> 01:20:18.710
Boardroom: regular increases so that we don't have these jumps. I think that that creates a lot more uncertainty for our small businesses, and

582

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01:20:18.850 --> 01:20:37.290
Boardroom: And I will be supporting this as well, but I do want us to look into that, and also understanding cost-benefit analysis of having this in-house versus the county. And, yeah, I want to just also thank you for the presentation, for the information. The comparison, I think, is very helpful for us to understand.

583
01:20:37.370 --> 01:20:43.290
Boardroom: And with that, I will see if there is a motion to close the public hearing. So moved. Second.

584
01:20:43.430 --> 01:20:52.190
Boardroom: Can we take the roll on that, please? Okay, to close the public hearing, Councilmember Kasarwani? Yes. Kaplan? Aye. Bartlett?

585
01:20:55.850 --> 01:21:00.929
Boardroom: Yes. Dragum? Aye. O'Keefe? Yes. Blackaby?

586
01:21:00.930 --> 01:21:01.700
Brent Blackaby: Yes.

587
01:21:02.020 --> 01:21:12.130
Boardroom: Lunapara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay. Public hearing's closed. Okay. Is there a motion to approve the…

588
01:21:12.330 --> 01:21:14.469
Boardroom: Resolution. So moved. Second.

589
01:21:15.490 --> 01:21:30.090
Boardroom: Can we take the role on that, too, please? Okay. To, approve the changes to the environmental health fee schedule? Councilmember Kesarwani? Yes. Taplin? Aye. Bartlett? Yes. Dragub? Aye. O'Keefe? Yes. Blackby? Aye.

590
01:21:30.090 --> 01:21:30.770
Brent Blackaby: Yes.

591
01:21:31.170 --> 01:21:37.899
Boardroom: Unapara? Yes. Humber? Yes. And Marishi? Yes. Okay, motion carries. Thank you. Thank you both so much.

592
01:21:38.210 --> 01:21:52.560

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Boardroom: Okay, moving on to item number 24. So, by the way, my goal is to get through 24 and 25, hopefully within the next 30 minutes, we'll see, and then take a brief break. So, moving on to item 24, repeal and reenact.

593
01:21:52.670 --> 01:22:16.950
Boardroom: Berkeley Municipal Code Chapter 14.52 to adjust the GO Berkeley Parking Management Program, change parking permit fees, establish a new schedule for parking violations, fines, and late payment penalties, and rescind resolution number 71 comma 627-NS, which was also continued from May 19th, 2026. So again, apologies for you all having to come back again, that we weren't able to get to your item.

594
01:22:17.050 --> 01:22:21.069
Boardroom: Before the end of the evening, and I will pass it over to you.

595
01:22:21.810 --> 01:22:28.400
Boardroom: Thank you. Thank you. Good evening, Mayor. Councilmembers Wahita Miri, Interim, Director of Public Works.

596
01:22:28.570 --> 01:22:38.199
Boardroom: Tonight, we have, with us Mark Helenbrake, our Transportation Manager, and Elliot Schwimmer, our Go Berkeley, subject matter expert guru.

597
01:22:38.370 --> 01:22:44.800
Boardroom: We do have a brief presentation for you guys tonight, and I'm sure there's gonna be a lot of healthy questions afterwards, so…

598
01:22:45.250 --> 01:22:51.680
Boardroom: it over to Elliot to start the presentation, and then from there, we'll be happy to field any questions and inquiries.

599
01:22:52.500 --> 01:22:53.560
Boardroom: Make your hand.

600
01:22:55.770 --> 01:23:09.559
Boardroom: Good evening, Mayor, Vice Mayor, and Councilmembers. My name is Elliot Schwimmer, Senior Planner. Tonight, we are presenting a comprehensive proposal to adjust Berkeley's parking management program to ensure the long-term fiscal sustainability of our parking funds.

601
01:23:12.100 --> 01:23:25.090

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Boardroom: Council is being asked to take four key actions tonight. First, to repeal and reenact Chapter 14.52 of the Municipal Code to allow for extended meter operating hours from 6 to 8 p.m, operate meters on set…

602
01:23:26.150 --> 01:23:27.050
Boardroom: operate.

603
01:23:27.160 --> 01:23:35.149
Boardroom: Meters in new commercial areas of the city, and authorize a transition to cashless hardware to reduce long-term costs.

604
01:23:35.650 --> 01:23:40.710
Boardroom: The second action is to authorize Public Works to pass through parking vendor service costs to the customer.

605
01:23:41.010 --> 01:23:53.600
Boardroom: Third, we are proposing updates to the residential parking permit fee schedule for 2028. And fourth, a long overdue realignment of our parking violation fines to keep pace with inflation and align with nearby jurisdictions.

606
01:23:56.010 --> 01:24:00.529
Boardroom: To start, I want to provide a quick picture of what the city's parking program looks like today.

607
01:24:00.720 --> 01:24:11.989
Boardroom: For on-street parking, the city operates 1,945 single-space meters and 242 multi-space pay stations, generating $8.8 million in FY25.

608
01:24:12.260 --> 01:24:30.539
Boardroom: On the off-street side, the city owns and operates 3 parking garages, Center Street, Telegraph Chaining, and Oxford Garage, with 1,239 spaces in total. The garages generated $4.9 million in FY25. Combined, parking generated $13.7 million last year.

609
01:24:30.670 --> 01:24:33.859
Boardroom: With on-street meters accounting for about 64% of that.

610
01:24:34.630 --> 01:24:53.709
Boardroom: That $13.7 million is what funds our parking services team, including parking enforcement. It also funds our meter hardware, garage operations, and the $1.9 million annual debt service on the Center Street

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garage reconstruction. As you will see, it's not currently enough to cover all costs, which is what brings us here tonight.

611
01:24:55.660 --> 01:25:06.540
Boardroom: The core issue is this. Without action, the city's combined parking funds are projected to carry a deficit of roughly $1 million by the end of FY27.

612
01:25:06.830 --> 01:25:11.409
Boardroom: The near-term strategies Council approved in January 2026 make progress.

613
01:25:11.570 --> 01:25:13.400
Boardroom: But they're insufficient on their own.

614
01:25:13.830 --> 01:25:28.350
Boardroom: Second, our parking infrastructure is aging, mechanical coin and receipt mechanisms are the primary cause of meter downtime, and manually collecting physical cash from nearly 2,200 devices requires significant staff and armored transport costs.

615
01:25:28.860 --> 01:25:39.960
Boardroom: Third, evenings and Sundays consistently show high parking occupancy in our commercial districts, but those are the hours when our meters are off, so we're not able to manage parking during these times.

616
01:25:41.050 --> 01:25:45.100
Boardroom: Regarding RPP, the Residential Preferential Parking Program.

617
01:25:45.300 --> 01:25:52.109
Boardroom: The current price for a permit is the same regardless of how many permits you have, but this does not promote the city's environmental goals.

618
01:25:52.360 --> 01:26:06.969
Boardroom: These aren't just financial problems, they go directly against the four goals of the Go Berkeley program, making it easier to find parking, reducing greenhouse gas emissions from circling vehicles, improving turnover for local businesses, and making streets safer for pedestrians and cyclists.

619
01:26:10.100 --> 01:26:14.939
Boardroom: Our first recommendations address parking demand after 6pm and on Sundays.

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620
01:26:15.740 --> 01:26:19.350
Boardroom: Currently, meters operate Monday through Saturday, 9am to 6pm.

621
01:26:19.550 --> 01:26:27.080
Boardroom: We're proposing to extend that to 8pm, 2 additional hours every day, and to add Sunday operations from 9 to 8 p.m. as well.

622
01:26:27.690 --> 01:26:34.270
Boardroom: The data is clear. Parking demand in Berkeley's commercial cores remains high during evenings and on Sundays.

623
01:26:34.430 --> 01:26:40.529
Boardroom: When meters are inactive during peak demand periods, we lose both revenue and the ability to manage turnover.

624
01:26:40.650 --> 01:26:48.510
Boardroom: Drivers circle longer, double parking increases, and blocks fill up in ways that lock out short-term customers and delivery vehicles.

625
01:26:49.450 --> 01:27:08.750
Boardroom: These two changes are projected to generate approximately $1 million in net new annual revenue after accounting for the added enforcement costs. I'd also note that Berkeley would not be unusual here. San Francisco operates some meters until 10 p.m, and on Sundays, Oakland began Sunday operations from 12 to 6 p.m. citywide in January.

626
01:27:08.770 --> 01:27:12.850
Boardroom: Walnut Creek, Sacramento, Santa Cruz, Monterey also operate on Sundays.

627
01:27:15.700 --> 01:27:23.840
Boardroom: On zone expansion, we're proposing to install about 30 new pay stations in high-demand commercial areas that currently have no meters.

628
01:27:24.080 --> 01:27:28.680
Boardroom: Our data shows that these areas regularly exceed 85% occupancy.

629
01:27:28.860 --> 01:27:35.519
Boardroom: And that's the threshold at which parking availability effectively breaks down, and cars begin circling, looking for spaces.

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630
01:27:35.680 --> 01:27:41.599
Boardroom: Adding meters to these blocks encourages turnover and ensures a space or two is consistently available.

631
01:27:41.960 --> 01:27:50.069
Boardroom: Net new revenue is projected at $317,000 in the first year, following a one-time capital cost of $296,000.

632
01:27:50.950 --> 01:27:59.579
Boardroom: On the cashless transition, we're seeking authorization to replace aging meters that accept coins and print receipts with tap-to-pay units.

633
01:27:59.810 --> 01:28:04.069
Boardroom: Coin jams and printer failures are our top causes of meter downtime.

634
01:28:04.510 --> 01:28:13.030
Boardroom: Eliminating physical cash also removes roughly $95,000 in annual costs from armored transport, fewer parts, and less maintenance.

635
01:28:13.800 --> 01:28:19.469
Boardroom: We'd start with a pilot, survey users after 30 days, and expand district by district based on feedback.

636
01:28:19.760 --> 01:28:24.529
Boardroom: An important equity note, all new hardware would allow prepaid debit card functionality.

637
01:28:25.020 --> 01:28:37.570
Boardroom: While we are working on a Clipper card integration, prepaid debit cards could also be used right off the bat, which are available and reloadable at dozens of retail locations. This preserves access for residents who don't have credit cards or smartphones.

638
01:28:38.000 --> 01:28:43.850
Boardroom: And just to note, our public survey showed 70% of the 670 respondents support this approach.

639
01:28:48.810 --> 01:28:53.619
Boardroom: This map shows the 27 block faces we're proposing to bring into the Go Berkeley program.

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640
01:28:54.040 --> 01:29:00.409
Boardroom: All locations showed occupancy within or above the program's target range of 65-85%.

641
01:29:00.780 --> 01:29:02.900
Boardroom: On one or both sides of the street.

642
01:29:04.560 --> 01:29:07.810
Boardroom: You can see the blocks cluster into a few distinct areas.

643
01:29:07.960 --> 01:29:20.840
Boardroom: North Berkeley Commercial Corridors are on Hopkins and 5th Street, the West Berkeley Industrial District along 8th, 9th, Potter, and Hines, and several blocks along San Pablo, Milvia, Addison, and Telegraph in the central and southern parts of the city.

644
01:29:21.550 --> 01:29:31.250
Boardroom: Some blocks are significantly over target, even over 100% occupancy. So there are functionally no open spaces, and the block is generating congestion rather than managing it.

645
01:29:31.480 --> 01:29:45.549
Boardroom: Introducing meters at these locations is not about raising revenue in isolation, it's about making these corridors function the way the rest of the meter network already does, with consistent turnover and at least one or two spaces reliably available at any given time.

646
01:29:46.670 --> 01:29:47.350
Boardroom: You're welcome.

647
01:29:50.220 --> 01:29:59.259
Boardroom: Every time someone pays a Berkeley parking meter by credit card, the city pays the processing fee. That costs about $456,000 per year.

648
01:30:00.530 --> 01:30:12.600
Boardroom: We're proposing to pass that cost through as a transparent customer-paid service charge of 35 cents per transaction. This is consistent with the convenience fee model already used by… in the City of Berkeley by ParkMobile.

649
01:30:12.990 --> 01:30:15.239
Boardroom: Which is our mobile payment parking provider.

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650
01:30:15.600 --> 01:30:21.699
Boardroom: The charge will be displayed on the screen before the credit card transaction is confirmed, so drivers can choose to cancel if they prefer.

651
01:30:22.030 --> 01:30:33.540
Boardroom: After transitioning, the city would still owe a reduced annual service fee of about $50,000 to our vendor, but the net savings to the parking meter fund would be approximately $406,000 per year.

652
01:30:34.060 --> 01:30:39.470
Boardroom: 47% of public survey respondents supported this change, and only 33% opposed it.

653
01:30:43.360 --> 01:30:53.439
Boardroom: The residential parking permit program is operating at a significant deficit. We spend about $4.1 million per year administering the program.

654
01:30:53.770 --> 01:31:00.069
Boardroom: Primarily the personnel costs for our 21 parking enforcement officers, supervisors, and administrative staff.

655
01:31:00.230 --> 01:31:04.709
Boardroom: And collect only about $2.85 million in permit and citation revenue.

656
01:31:04.910 --> 01:31:07.410
Boardroom: That's a $1.3 million annual gap.

657
01:31:07.970 --> 01:31:14.990
Boardroom: We're proposing a new graduated fee structure for the FY28 permit year, taking effect May 1st, 2027.

658
01:31:15.620 --> 01:31:21.460
Boardroom: The key change is that permit fees would scale with the number of vehicles registered at an address.

659
01:31:21.590 --> 01:31:33.750
Boardroom: The first permit would go from $85 to $100, the second permit would be $125, and the third $150. Visitor passes and other permit types would also see modest adjustments as shown.

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660
01:31:34.360 --> 01:31:42.839
Boardroom: The rationale is straightforward. Households storing more vehicles on the public right-of-way are using a disproportionate share of limited curb space.

661
01:31:43.230 --> 01:31:50.179
Boardroom: A graduated structure creates a gentle incentive to use off-street parking where it's available, while keeping permits accessible.

662
01:31:50.400 --> 01:31:55.760
Boardroom: This change is projected to generate approximately $615,000 in new annual revenue.

663
01:31:56.480 --> 01:32:00.959
Boardroom: And I do want to note that this item is responsive to a council referral.

664
01:32:03.270 --> 01:32:05.990
Boardroom: Our parking fines tell a similar story.

665
01:32:07.330 --> 01:32:13.090
Boardroom: For most violation types, the last comprehensive update was in 2010, 16 years ago.

666
01:32:13.570 --> 01:32:19.069
Boardroom: Since then, cumulative inflation measured by the Consumer Price Index has been about 49%.

667
01:32:19.570 --> 01:32:23.130
Boardroom: The result is Berkeley's fines are well below those of neighboring cities.

668
01:32:23.820 --> 01:32:32.140
Boardroom: An expired meter citation in Berkeley is currently $43. In Oakland, the same violation is $64. In San Francisco, it's $108.

669
01:32:32.380 --> 01:32:41.860
Boardroom: When the financial penalty for overstaying a meter is low enough that it feels like a competitive parking alternative, compliance suffers, and so does availability for the next driver.

670

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This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:32:42.630 --> 01:32:56.259
Boardroom: We're proposing to adjust fines upward in line with cumulative inflation, since each fine was last set, meaning increases of between 3% and 49%, depending on when a particular violation was last updated or added to the schedule.

671
01:32:56.820 --> 01:33:00.470
Boardroom: An expired meter would go from $43 to $64.

672
01:33:00.690 --> 01:33:08.670
Boardroom: street sweeping violations from $49 to $73. These levels would still keep Berkeley meaningfully below San Francisco.

673
01:33:12.930 --> 01:33:32.449
Boardroom: And here's the full picture. The recommendations before you tonight are projected to generate $7.1 million in new annual revenue, with $2.3 million in new costs, and $500,000 in cost savings for a net annual increase of about $5 million. Without these measures, the combined parking fund balance is projected to fall negative

674
01:33:32.720 --> 01:33:44.979
Boardroom: to negative $1 million by the end of FY27. With them, the combined balance is still projected to be negative, but the trajectory of the balance would change in FY28, building up a balance instead of depleting it.

675
01:33:45.640 --> 01:33:57.139
Boardroom: The key point is that this package is self-reinforcing, operational changes increase curb access in busy commercial districts, generates revenue that funds better service, and supports continued cost recovery.

676
01:34:01.490 --> 01:34:09.859
Boardroom: The rollout for the Go Berkeley changes would be phased to prioritize education. It would begin with a citywide sign replacement program in early FY27,

677
01:34:10.090 --> 01:34:26.210
Boardroom: We would implement a pilot period for the new evening and Sunday hours during this month. Depending on parking enforcement, staff capacity, warning citations may be issued during the additional hours, giving motorists time to learn the new rules before financial penalties begin.

678
01:34:26.840 --> 01:34:30.900

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Boardroom: The full transition to cashless hardware would then follow over a 3-5 year period.

679
01:34:33.480 --> 01:34:36.479
Boardroom: Tonight, staff is asking Council to take four actions.

680
01:34:36.680 --> 01:34:46.020
Boardroom: Adopt first reading of the ordinance amending BMC Chapter 14.52, adopt the resolution transitioning parking meter transaction costs to a customer service charge.

681
01:34:46.190 --> 01:34:51.840
Boardroom: Adopt the resolution, Implementing the new graduated RPP fee structure for FY28.

682
01:34:52.050 --> 01:34:56.059
Boardroom: And adopt the resolution updating the schedule of parking violations and fines.

683
01:34:56.770 --> 01:35:00.880
Boardroom: Thank you for your time. My colleagues are here as well, and we're happy to answer any questions.

684
01:35:01.930 --> 01:35:06.660
Boardroom: Thank you very much. I think we have a number of questions, starting with Vice Mayor Treykub.

685
01:35:07.540 --> 01:35:14.009
Boardroom: Thank you so much. I have… 3, 4, 5…

686
01:35:14.640 --> 01:35:19.669
Boardroom: I have 6 questions, one in the report,

687
01:35:19.990 --> 01:35:37.870
Boardroom: There's a mention of an increase to a surcharge per additional annual or semi-annual residential permit, and I couldn't quite understand what that describes and how it's different from an additional, just paying for an additional parking spot.

688
01:35:38.040 --> 01:35:49.029
Boardroom: Yeah, that's the surcharge for the fourth and beyond residential permits, which requires a waiver form. Okay, got it. Okay, got it. Moving on,

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689
01:35:49.770 --> 01:35:51.590
Boardroom: How,

690
01:35:54.700 --> 01:36:17.220
Boardroom: Can you describe, the extent to which this proposal is coupled with other principles of Go Berkeley, in particular around, enhanced wayfinding and signage to, educate drivers on the existence of our two parking garages, as it concerns the downtown?

691
01:36:23.830 --> 01:36:41.260
Boardroom: It's a good point that curbside parking and garage parking policy are interrelated, and they need to be managed together. We are looking at other options for increasing signage to the Center Street garage, in particular, but this item does not include any wayfinding signage for garages.

692
01:36:42.050 --> 01:36:52.090
Boardroom: Okay, thank you. Can you speak to, planning for, is there going to be any…

693
01:36:52.720 --> 01:37:06.099
Boardroom: heightened enforcement in residential areas. I'm just thinking about the downstream impact. If I'm circling around and I see a parking meter where I'm not used to seeing one,

694
01:37:06.100 --> 01:37:13.529
Boardroom: without other options, I might look for a different parking spot off in a residential area. So, how,

695
01:37:13.740 --> 01:37:21.320
Boardroom: How will, this program be calibrated to account for those kinds of downstream impacts?

696
01:37:24.410 --> 01:37:39.929
Boardroom: This item does, propose a significant increase in parking enforcement staffing. If that's your question, I mean, there would be increased presence in RPP areas as well as, Go Berkeley meter per meter areas.

697
01:37:40.080 --> 01:37:59.990
Boardroom: Okay, thank you. Can you speak to the, planned education process when switching to cashless operations? And I am, in particular, thinking about those residents who… or non-residents who don't use

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698
01:38:00.430 --> 01:38:09.120
Boardroom: Don't use a card, use only cash. I understand there's Clipper compatibility, but how will they be educated about that?

699
01:38:12.930 --> 01:38:25.639
Boardroom: The pilot period, so, I mean, anticipating doing, like, a community message and getting the word out about the pilot period very significantly, working with, news organizations like Berkeley's side to get the word out.

700
01:38:26.860 --> 01:38:31.240
Boardroom: I think with… The community message, a website.

701
01:38:31.470 --> 01:38:37.110
Boardroom: And the pilot period, you know, hopefully folks would start to catch on, and…

702
01:38:37.300 --> 01:38:43.960
Boardroom: Observe that there are other options if they don't have a bank account or a credit… or a debit or a credit card.

703
01:38:47.910 --> 01:38:54.009
Boardroom: Okay, thank you. Two final questions,

704
01:38:55.110 --> 01:39:03.219
Boardroom: Sticking with the pilot, or the report mentioned that, the transition to…

705
01:39:03.860 --> 01:39:09.740
Boardroom: A modernized, set of parking meters will be,

706
01:39:10.050 --> 01:39:24.259
Boardroom: it'll be on one, particular block. I was curious if that block or area has been identified for the pilot. And also, it then said,

707
01:39:24.630 --> 01:39:37.449
Boardroom: the program would expand based on positive feedback. So, what would constitute positive feedback? I know this is not the most popular, thing in the world, talking about parking fee increases, so…

708
01:39:37.450 --> 01:39:45.930

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Boardroom: How would the data be disaggregated to be specific to the new and improved parking meters themselves?

709
01:39:51.520 --> 01:40:06.909
Boardroom: I think a survey would be critical to seeking feedback on that specific block for the… this is the cashless meters. The pilot period is really for items 1A and 1B, which are the hour extension and the Sunday parking, so that would be…

710
01:40:06.910 --> 01:40:17.200
Boardroom: the first month where, there'd be a pilot period to understand and to get the word out. But then the cashless meters would be on a block-specific

711
01:40:17.340 --> 01:40:20.830
Boardroom: Rollout timeframe.

712
01:40:21.010 --> 01:40:34.220
Boardroom: Where we would survey just the limited number of people on that block to see how they're experiencing it. And try to also do, like, dash flyers to try to understand how drivers are feeling. So it's a combination of business feedback and motorist feedback.

713
01:40:34.940 --> 01:40:49.209
Boardroom: Thank you. Is there a general area you've identified right now for pilot? We haven't yet. Okay, thank you. And last question is, I was looking at the…

714
01:40:50.100 --> 01:40:55.900
Boardroom: chart on… Figure… well…

715
01:40:56.410 --> 01:41:14.610
Boardroom: So, figure 2, I see where, by FY31, if we approve this, it's projected to almost get the, fund balance, the combined fund balance to break even.

716
01:41:14.610 --> 01:41:19.750
Boardroom: I'm curious, does Off-Street Fund 6 to 7 balance?

717
01:41:19.880 --> 01:41:23.679
Boardroom: Which looks steady state,

718
01:41:23.960 --> 01:41:30.479

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Boardroom: Between Figures 1 and 2, is the intention to kind of keep

719
01:41:30.600 --> 01:41:36.449
Boardroom: Like, are there plans to stabilize the funding for…

720
01:41:36.780 --> 01:41:45.740
Boardroom: that balance, or we would continue to run increasing deficits. Just kind of wondering beyond FY31.

721
01:41:47.400 --> 01:41:57.840
Boardroom: The off-street fund is challenging, because the garages… I mean, it's all under the Go Berkeley program, so it's all managed based on demand, so 65-85% target is our sweet spot.

722
01:41:57.950 --> 01:42:05.090
Boardroom: If… Occupancy exceeds that, we raise rates. If occupancy's below that, we're supposed to… lower rates.

723
01:42:05.240 --> 01:42:10.740
Boardroom: And for the garages, two of our garages are significantly below

724
01:42:10.930 --> 01:42:25.630
Boardroom: the target range. And so, for those garages, we, you know, the program guidelines would say that we should lower the rates, which would not build back, the revenue in that fund. So, it's a little challenging that we're not really able to…

725
01:42:26.010 --> 01:42:30.109
Boardroom: Increase rates in those garages to recover the balance there.

726
01:42:33.020 --> 01:42:34.650
Boardroom: long fun, right?

727
01:42:34.850 --> 01:42:35.960
Boardroom: Yeah.

728
01:42:36.490 --> 01:42:46.730
Boardroom: We also, have a $1.9 million annual debt obligation for the Center Street Garage, which is depleting that fund balance every year, or has been.

729

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01:42:48.360 --> 01:42:49.270
Boardroom: Yeah.

730
01:42:49.780 --> 01:42:52.589
Boardroom: When does that debt obligation run until?

731
01:42:52.970 --> 01:42:57.750
Boardroom: I believe it's 2046. Okay. Thank you. Those are all my questions.

732
01:42:58.180 --> 01:43:11.360
Boardroom: Okay, Councilmember Bartlett. And then, Councilmember Blackaby, you're next. Thank you, Madam Mayor. Thank you. Could we pull the chart back up that, the Vice Mayor was referencing?

733
01:43:12.190 --> 01:43:15.020
Boardroom: Curious about a number or two on here.

734
01:43:17.330 --> 01:43:19.579
Boardroom: Is that the chart in the report?

735
01:43:19.790 --> 01:43:27.760
Boardroom: Yeah, with the $7 million ultimate, earnings, in your presentation. Oh, in the presentation, yeah. Two away from the end, I think. Yeah.

736
01:43:32.840 --> 01:43:34.010
Boardroom: Yeah, that one.

737
01:43:36.400 --> 01:43:40.169
Boardroom: Page 11, yes. Here we go.

738
01:43:40.440 --> 01:43:49.219
Boardroom: So I'm wondering if… I'm curious, at the rate of noncompliance.

739
01:43:49.540 --> 01:43:52.969
Boardroom: Is this factored in into… into revenues?

740
01:43:53.960 --> 01:43:57.150
Boardroom: So, number of tickets issued, the anticipated issuing.

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741
01:43:57.250 --> 01:44:10.550
Boardroom: Is there some sort of a formula that you can… that… that time has shown, are likely to be issued? We… we do not account for an increase in compliance due to the changing, fine amounts.

742
01:44:11.020 --> 01:44:17.600
Boardroom: So this is just purely the number of citations issued times the increase in the rates.

743
01:44:17.900 --> 01:44:22.869
Boardroom: Is there, is there any, you know, any data at all around anticipated noncompliance?

744
01:44:26.680 --> 01:44:36.540
Boardroom: because I can imagine, you know, moving a whole new day, and two new hours each day, in highly demand areas, there'll be some tickets.

745
01:44:38.580 --> 01:44:41.290
Boardroom: Y-yeah, we… Yeah.

746
01:44:41.690 --> 01:44:56.259
Boardroom: I would put it at that there'll be a shift in noncompliance from current hours to the later hours, right? I mean, there's a non-compliance that happens as you get to the end of the regulations already, and those times are gonna shift with this

747
01:44:56.860 --> 01:44:58.660
Boardroom: Yeah.

748
01:44:59.680 --> 01:45:04.169
Boardroom: Okay, but no, no hard guesstimation as to what that could be, right?

749
01:45:04.760 --> 01:45:11.020
Boardroom: No? We haven't quantified that. Okay. And I'm curious about the survey respondents.

750
01:45:11.150 --> 01:45:16.430
Boardroom: This, 44%, was it, that support these increases?

751
01:45:16.690 --> 01:45:18.340
Boardroom: Who are these respondents?

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752
01:45:21.470 --> 01:45:33.339
Boardroom: We don't have identifying information of the respondents. I mean, it's… there were 669 respondents that were citywide, presumably, from a community message from the communications department.

753
01:45:34.720 --> 01:45:35.470
Boardroom: Team.

754
01:45:36.600 --> 01:45:37.360
Boardroom: Okay.

755
01:45:37.810 --> 01:45:45.840
Boardroom: And, did you, have any specific input from any interest groups, like the small business community, the seniors, people like that?

756
01:45:47.490 --> 01:45:59.980
Boardroom: Yeah, nothing specific from the senior community, but we did get specific requests for parking meters on certain blocks from businesses, and those blocks are proposed to, have meters.

757
01:46:00.480 --> 01:46:01.369
Boardroom: Thank you.

758
01:46:02.140 --> 01:46:02.930
Boardroom: Thanks so much.

759
01:46:03.280 --> 01:46:05.090
Boardroom: Thank you, Councilmember Bacabee.

760
01:46:08.090 --> 01:46:09.860
Brent Blackaby: Thanks, Madam Mayor.

761
01:46:10.000 --> 01:46:14.039
Brent Blackaby: Go ahead and leave this slide up. I had a couple questions about this slide as well.

762
01:46:14.760 --> 01:46:23.849
Brent Blackaby: Do all of the figures here, so the $5.3 million of net change, does that… does all that revenue accrue to the various parking funds?

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763
01:46:25.120 --> 01:46:25.810
Boardroom: No.

764
01:46:25.940 --> 01:46:34.080
Boardroom: No, so… The parking funds will see the extended hours to 8pm, Sunday operations, zone expansion.

765
01:46:34.190 --> 01:46:43.389
Boardroom: The cost savings from the cashless transition, the transaction charge pass-through, but then the bottom two, RPP fees and parking fines, those accrue to the general fund.

766
01:46:44.110 --> 01:46:46.209
Brent Blackaby: Got it.

767
01:46:46.670 --> 01:46:54.469
Brent Blackaby: So, question of the city manager, and I know… remind me, I think, again, putting back into the… into the budget process,

768
01:46:54.710 --> 01:47:08.910
Brent Blackaby: Currently, I think we have an assumption in fiscal 26 that we're transferring about a million from the general fund, plus or minus, to the parking fund to keep them solvent. Is that… is my recollection about right there?

769
01:47:08.910 --> 01:47:09.949
Boardroom: Yes, it is.

770
01:47:09.950 --> 01:47:24.630
Brent Blackaby: Okay, if we were to pass some of these new measures, how would that affect what we're able to do in the budget? Would we be able to dial that… would that… would that also give us some room in the fiscal 26 and fiscal 27 budget if we were to pass these increases?

771
01:47:25.370 --> 01:47:31.560
Boardroom: It wouldn't, because we're phasing these in over time, so they wouldn't hit right away. Okay.

772
01:47:32.030 --> 01:47:32.820
Boardroom: Yep.

773
01:47:33.260 --> 01:47:35.120

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Brent Blackaby: Okay, okay.

774
01:47:35.670 --> 01:47:45.989
Brent Blackaby: I wanted to zero in real quickly on the Sunday operations. So, observing, sort of, all of all the lined items on the chart, this is the one that gives me

775
01:47:46.290 --> 01:47:49.730
Brent Blackaby: The greatest pause, because it almost feels like, you know.

776
01:47:49.840 --> 01:48:06.399
Brent Blackaby: we're squeezing… basically, we're… it's… we're incurring… and again, I just want to say, I appreciate staff. I know we've had a back and forth on this on the last couple days, so I just thank you for indulging me in all the questions, because I'm really trying to understand, like, where are the biggest bangs for our buck in terms of doing this work? And clearly.

777
01:48:06.400 --> 01:48:17.040
Brent Blackaby: You know, the bottom two line items… actually, the bottom four line items are the most straight ahead. Like, we're not incurring any additional cost. We're either saving money or we're generating new revenue.

778
01:48:18.140 --> 01:48:40.100
Brent Blackaby: I will say of the top 3 line items, the Sunday operations feels like, well, I'm not really sure if the juice is worth the squeeze, right? I mean, we've heard a lot of people who have concerns, and I share concerns about it's nice to have a day a week where we're not worrying about paying for parking. I mean, again, that's, you know, that's not the biggest problem in the world, but it is a nice

779
01:48:40.100 --> 01:48:41.959
Brent Blackaby: benefit. It is nice to be able to go in

780
01:48:42.030 --> 01:48:56.589
Brent Blackaby: go downtown or go to other businesses and go to Saul's or do whatever you do on Sundays and not have to worry about paying the meter. And I'll also just observe that it's costing us $1.3 million to generate $1.4 million in revenue, which is, again, a very modest

781
01:48:56.620 --> 01:49:03.410
Brent Blackaby: Return for the infrastructure and the added operational costs relative to extending hours to 8.

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782
01:49:03.590 --> 01:49:17.190
Brent Blackaby: or expanding the zones to places where they… the parking meter should be expanded. So did you give any thought, just kind of back to the team, I mean, any thought about why the cost for the Sunday operations

783
01:49:17.520 --> 01:49:23.949
Brent Blackaby: you know, it runs relatively high relative to those other options, and why the margin is so small on the Sunday piece.

784
01:49:26.710 --> 01:49:27.470
Boardroom: Thank you.

785
01:49:28.330 --> 01:49:33.650
Boardroom: In the chart, in the staff report, there's some one-time costs.

786
01:49:33.650 --> 01:49:34.270
Brent Blackaby: Yeah.

787
01:49:34.270 --> 01:49:36.429
Boardroom: That are listed in here.

788
01:49:36.430 --> 01:49:37.060
Brent Blackaby: Yeah.

789
01:49:37.360 --> 01:49:41.539
Boardroom: And so… After year one in this,

790
01:49:42.310 --> 01:49:52.580
Boardroom: this projection changes. So there's 300 and currently in this report, $363,000, to outfit,

791
01:49:52.750 --> 01:49:55.100
Boardroom: Parking enforcement vehicles with,

792
01:49:55.100 --> 01:49:55.780
Brent Blackaby: Right.

793
01:49:57.010 --> 01:50:05.239

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Boardroom: license plate reader, technology, and so that would come off, afterwards. And then, right now, we're,

794
01:50:05.310 --> 01:50:18.159
Boardroom: also loading in quite a bit of the parking enforcement into Sunday, and the reality is item 1A, 1B, and 1C all consume a bit of that additional, parking enforcement cost, so…

795
01:50:18.730 --> 01:50:19.770
Brent Blackaby: Got it, okay.

796
01:50:20.370 --> 01:50:34.660
Brent Blackaby: Well, just… I'll come back to this in deliberations, because again, I appreciate the thrust of all this. That's the one, I think, of all the things on here that I'm… I'm the most… I'm the most reticent about. It doesn't… it feels like that's not a clear slam-dunk, easy win.

797
01:50:34.670 --> 01:50:49.990
Brent Blackaby: And so, so I want to come back to that into deliberations, but I appreciate all the time and the effort in pulling all of this together, and just getting into a better position where we will be more solvent, and the parking funds will be more sustainable for the long term. So thank you for doing all this work. And that's it.

798
01:50:50.410 --> 01:50:52.340
Boardroom: Thank you. Councilmember Humbert?

799
01:50:52.440 --> 01:51:11.199
Boardroom: Yes, thank you, Madam Mayor, and I want to thank, Mr. Schwimmer, Mr. Helmbrecht, and Director Amiri for all your hard work on this, and thank you, Mr. Schwimmer, for your presentation. I also want to talk about Sunday. I really just have questions about the Sunday enforcement, and…

800
01:51:11.640 --> 01:51:30.229
Boardroom: I appreciated Mr. Helmbrecht's answer that, you know, in the first year, there may be a, you know, $132,000 upside, but in subsequent years, it should be more significant than that, right? Is there any estimate of how that might go up? I mean, I suppose it's fairly easy math, right?

801
01:51:31.770 --> 01:51:36.550
Boardroom: In terms of what's in the report, we loaded all of the…

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802
01:51:36.550 --> 01:51:53.290
Boardroom: costs of outfitting the enforcement vehicles in this line item, and so it'll go up by $363,000 at a minimum. So that's, that's, that's fairly significant. And it's also the case, is it not, that on Sunday, I mean, I have to say, people store their cars

803
01:51:53.290 --> 01:52:05.939
Boardroom: in, in areas where meters are not operational, and that can affect turnover in terms of, you know, accessibility for people who are shopping on Sunday, and Sunday's a big shopping.

804
01:52:05.990 --> 01:52:11.779
Boardroom: day, these days. Maybe it wasn't a century ago when all the shops were shut, but…

805
01:52:11.820 --> 01:52:29.699
Boardroom: It is now, so, I mean, that's… the other factor really to consider, and I think you have considered it, is turnover, making parking available, and not just allowing people to store their cars and cause shoppers, for example, to have to park blocks and blocks and blocks away. Is that right?

806
01:52:30.160 --> 01:52:42.419
Boardroom: That's kind of a leading question, but… Yeah, no, that's exactly right. Yeah. Okay. Yeah, those are, those are my questions, thank you. Thank you. Councilmember Lunapara.

807
01:52:43.050 --> 01:53:00.980
Boardroom: Thank you, and thank you so much for the presentation. Can you, go back to the RPP slide? I'm curious if you have any information on nearby jurisdictions, or comparable jurisdictions that… and their RPP costs.

808
01:53:01.470 --> 01:53:05.060
Boardroom: How much, how much they, charge for RPP.

809
01:53:06.050 --> 01:53:11.289
Boardroom: Yeah, they're comparable. I don't have that information in front of me, but we can get it over to you.

810
01:53:11.400 --> 01:53:12.820
Boardroom: Okay, thank you.

811

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01:53:13.160 --> 01:53:17.349
Boardroom: Local cities are very comparable, and obviously San Francisco's much higher.

812
01:53:18.490 --> 01:53:21.500
Boardroom: Do you know how much San Francisco would be, approximately?

813
01:53:21.790 --> 01:53:34.629
Boardroom: To be quite honest with you, I'm trying to recall from memory, but it was quite a bit, like, double, if I recall correctly, but again, to Elliot's point, just the surrounding, it's comparable. Thank you.

814
01:53:36.140 --> 01:53:43.240
Boardroom: Okay, thank you. Councilmember Taplin. Thank you very much. I just have one question,

815
01:53:43.920 --> 01:53:47.689
Boardroom: I'm wondering what other jurisdictions also have Sunday parking?

816
01:53:49.880 --> 01:53:53.320
Boardroom: Yeah, good.

817
01:53:53.510 --> 01:53:56.159
Boardroom: Yeah, we… Yeah, yeah, yeah.

818
01:53:56.530 --> 01:53:57.289
Boardroom: It's pretty important.

819
01:54:03.080 --> 01:54:09.080
Boardroom: So Oakland began operating some parking meters on Sundays in January.

820
01:54:09.280 --> 01:54:14.880
Boardroom: Sacramento, LA, Seattle, Washington, D.C, Chicago operate until 8pm or later.

821
01:54:15.270 --> 01:54:19.600
Boardroom: And then it… Walnut Creek…

822
01:54:24.280 --> 01:54:27.569
Boardroom: Sacramento, Santa Cruz, Monterey, they all operate on Sundays.

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823
01:54:27.990 --> 01:54:34.019
Boardroom: They have a… some of them might have different operations for Oakland, I think they started later in the day, so…

824
01:54:34.200 --> 01:54:38.919
Boardroom: Ours is a little bit different as far as the operating hours, but the day is consistent.

825
01:54:39.560 --> 01:54:46.010
Boardroom: Yeah, thank you, thank you very much for that. Yeah, so it's not like, completely novel concepts.

826
01:54:46.630 --> 01:54:47.620
Boardroom: Appreciate it.

827
01:54:48.910 --> 01:54:50.730
Boardroom: Alright, any other questions?

828
01:54:51.010 --> 01:55:07.169
Boardroom: Okay, my one question was actually about, since we are removing the ability for people to use coins, and then we're having this card fee, I'm just wondering if there's a reason we can't just build the card fee in.

829
01:55:08.010 --> 01:55:10.900
Boardroom: Okay. Yeah.

830
01:55:10.980 --> 01:55:28.139
Boardroom: Gotcha. Because it's kind of like saying, like, oh, if you're using a card, but then you have to use a card, you know? We have a bit of work to do on this. We're having a meeting with Clipper momentarily. We've also talked to, Passport as part of our back office,

831
01:55:28.220 --> 01:55:40.950
Boardroom: integration of our parking system about being able to essentially refund, the cost of any cards, when you go to use the card, right? So, like, your first parking

832
01:55:40.980 --> 01:55:54.779
Boardroom: might be discounted by the $3 that the card costs. So, we're working on being able to resolve that issue, but we have a little bit of

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ways to go. And this is gonna be a long build-in. We have a lot of meters out there with coins.

833
01:55:54.840 --> 01:56:01.380
Boardroom: We've got a long way to go on this one. We're trying to get direction that we can go in this direction, then we'll bring information back.

834
01:56:05.170 --> 01:56:08.300
Boardroom: Okay, I'm not sure if that answered my question, but…

835
01:56:08.440 --> 01:56:25.540
Boardroom: That's okay. Let's, let's move to public comment, because I… we're already at 8.04, so we're way off my… we're way off my estimation. If you have public comment on, item number 24, which is the one about parking, please come on up.

836
01:56:25.950 --> 01:56:37.959
Boardroom: Thank you, go ahead, Carol. Of course, I'm concerned about the small businesses, but at the same time, we have to implement all these fees. It goes for the last presentation, too, and fines.

837
01:56:38.210 --> 01:56:55.270
Boardroom: we have this budget deficit, we have to preserve essential services, we have to have our fire, we have to have our police, we have to have our repairs accessible, we have to have homeless housing, I consider that an essential service, and…

838
01:56:56.740 --> 01:57:09.499
Boardroom: I hope that, 1383 will be enforced, the waste law, that's something that's going on enforced. The, and that's up to the local jurisdictions to…

839
01:57:09.630 --> 01:57:20.650
Boardroom: have a compliance plan. There is, also, the smoking. That's another possibility for fees. I see people smoking publicly.

840
01:57:21.450 --> 01:57:34.860
Boardroom: They're not getting citations. It's also happy in multi-residential housing. There is the, Rental Housing Safety Program that landlords are advised they have to.

841
01:57:35.850 --> 01:57:55.370

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Boardroom: inspect units by July 1st, but then the city doesn't really… it says right on the city website that there's nothing you have to file with the city. You should have to file something with the city, if we want people to do it. And then there should be a fine, if you don't.

842
01:57:55.560 --> 01:58:09.389
Boardroom: Instead, it's a very selective enforcement if just somebody happens to call up and it's complaint-triggered. So, there are things we're not doing. I can say I'm personally impacted by the, go-go grandparent.

843
01:58:09.870 --> 01:58:24.909
Boardroom: situation, the transportation, and yet, I have to say, objectively, it had to be done, because we all have to give… Sorry, Carol, can we keep it focused on this item, please? Well, I'm talking about fines and fees, and so that includes the parking.

844
01:58:25.210 --> 01:58:26.130
Boardroom: Thank you.

845
01:58:26.590 --> 01:58:32.930
Boardroom: Okay, thank you. Did you have a comment on this item? Do I need to fill out a sticker card? No, come on up.

846
01:58:37.790 --> 01:58:41.760
Boardroom: My name is Andrew Marowitz, I'm item number 28. You'll love me.

847
01:58:42.080 --> 01:58:46.909
Boardroom: I heard this… I heard the environmental fee for restaurants.

848
01:58:47.780 --> 01:58:49.919
Boardroom: It occurs to me that

849
01:58:50.110 --> 01:59:08.459
Boardroom: the city is just reaming through people financially. I'm sorry, just… I know you were talking about the restaurant fees, but that was the other item, so if you have a comment on the parking fee, then… Parking fees added to the environmental fees, figure those restaurants, those owners of those restaurants, operators' restaurants.

850
01:59:08.460 --> 01:59:23.369
Boardroom: They're gonna have to either pass it along, which is gonna drive out the customers, because they don't want to spend such high

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rates, they have to pay their minimum wage to servers and whatnot. You're gonna kill restaurants. They're not gonna wanna stay in business. They're gonna go somewhere else, or they're gonna just stop.

851
01:59:23.600 --> 01:59:36.870
Boardroom: It's just a short-sighted version of, we need more money, this is how we're gonna do it. But there's not a long view of what the impact is. And it's just to pay for salaries. Why not instead, for instance.

852
01:59:37.010 --> 01:59:46.859
Boardroom: The city has 13 paid holidays per year, why don't you go back, and that's more than any other city in the state, why not take away one paid holiday and pay for all of this?

853
01:59:47.890 --> 01:59:48.780
Boardroom: Thank you.

854
01:59:49.510 --> 01:59:53.939
Boardroom: Thank you. Anyone online have… Comments on item number 24.

855
01:59:55.280 --> 02:00:00.310
Boardroom: So we have, first speaker is Michael Katz.

856
02:00:02.670 --> 02:00:04.380
Michael Katz: Good evening. How long do I have?

857
02:00:05.210 --> 02:00:06.190
Boardroom: 2 minutes.

858
02:00:06.420 --> 02:00:16.350
Michael Katz: Thank you. I urge you to follow Councilmember Blackaby's lead, and at least get rid of the first three items and the card fee, if not the whole item.

859
02:00:16.410 --> 02:00:28.659
Michael Katz: I hope you'll have the wisdom to do that. Whenever this amorphous public comment or public survey happened, what's going on now is insane inflation due to Trump's war and Trump's tariffs.

860
02:00:28.700 --> 02:00:44.939
Michael Katz: And nationally, there is a democratic and progressive message to pursue affordability and reduce the pain on people. This city just seems to keep going in the opposite direction with sales tax hikes

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that would make our regressive sales tax one of the highest in the country.

861
02:00:45.010 --> 02:00:50.629
Michael Katz: And now this, which could kill off a whole bunch of restaurants, which are dropping like flies already.

862
02:00:50.710 --> 02:01:05.330
Michael Katz: And the thing I find most glaring here is there's no change in the double parking fee, which I think is $60 base, so the cost of an unexpired meter would be higher than creating an active hazard by double parking, which I'll come back to if I have time.

863
02:01:05.660 --> 02:01:16.110
Michael Katz: I, you know, if you look at what's happened with, tax measures in the East Bay last week, it doesn't look good for the people putting up with these kinds of

864
02:01:16.330 --> 02:01:26.220
Michael Katz: additional pain. And if the city's losing money on parking management, maybe this university city should be smarter about how it's managing parking.

865
02:01:26.330 --> 02:01:45.049
Michael Katz: The most cynical thing I see in this measure is the claim that this would somehow make cyclists safer by reducing double parking. There is no double parking enforcement in this city, as far as I can tell. I ride a bike every day. This is the worst hazard to cyclists. It's much worse than moving vehicles, because it forces us into oncoming traffic.

866
02:01:45.150 --> 02:01:49.749
Michael Katz: If we actually enforce double parking, $60 a pop, at least.

867
02:01:50.050 --> 02:01:59.019
Michael Katz: $263 a pop in transit-only lanes, and those are all the way up Durant, in the restaurant cluster, where there's some of the worst abuse.

868
02:01:59.140 --> 02:02:04.689
Michael Katz: PCOs could be sighting vehicles all day on Shattuck, Upper University, Durant.

869
02:02:04.860 --> 02:02:07.089

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Michael Katz: Put all that money in the city budget, and…

870
02:02:07.090 --> 02:02:07.750
Boardroom: Thank you.

871
02:02:07.750 --> 02:02:08.580
Michael Katz: add things.

872
02:02:08.580 --> 02:02:12.979
Boardroom: For your comment, your time is up. Next speaker is Kelly.

873
02:02:17.870 --> 02:02:19.020
Kelly's iPad: Can you hear me?

874
02:02:19.530 --> 02:02:20.590
Boardroom: Yes? Yes.

875
02:02:21.420 --> 02:02:25.779
Kelly's iPad: I just find this whole thing so completely annoying.

876
02:02:26.150 --> 02:02:31.609
Kelly's iPad: And I think Councilmember Bartlett was really getting to the right questions.

877
02:02:32.090 --> 02:02:40.500
Kelly's iPad: The big question I always… that I have looking at this is, who is making the money from managing the parking meters?

878
02:02:40.940 --> 02:02:50.280
Kelly's iPad: 9 a.m. to 8 p.m. every day is annoying. Sunday is a particularly bad day, can't we give people one day of rest?

879
02:02:50.660 --> 02:02:58.239
Kelly's iPad: I hate that I'm tracked everywhere, and now I have to use a card to park, so now I'm tracked again at another spot.

880
02:02:58.640 --> 02:03:08.549
Kelly's iPad: So we're gonna have to… we're gonna create anger and annoyance with Berkeley residents and visitors for $100,000 on Sundays. Is it really worth it?

881

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02:03:09.120 --> 02:03:17.740
Kelly’s iPad: Yeah, as the last speaker said, double parking, that's a big issue. It looks like, you know, this is gonna…

882
02:03:17.850 --> 02:03:37.450
Kelly’s iPad: push people to use Uber and Lyft and DoorDash a lot more. It's just, and then charging us for using a card when we have to use a card and we can't use coins anymore. It's just… everything with this is just totally wrong. I'm sorry that Public Works has pushed into trying…

883
02:03:37.580 --> 02:03:56.080
Kelly’s iPad: and charged with making parking a profit center for the city, but I just think this is totally the wrong direction, and you all need to reconsider here what you're doing, and just push this off for another day.

884
02:03:57.050 --> 02:04:00.649
Kelly’s iPad: So, that's all I have to say right now.

885
02:04:01.410 --> 02:04:04.619
Boardroom: Thanks, Kelly. Next is Della Luna.

886
02:04:08.180 --> 02:04:22.240
Della Luna (she/her) Huichun: Yes, I would like to follow up that speaker. I like that. Push this off for another day. This, one, doesn't seem like the right time. Costs are going up for people everywhere, so why just, like, hammer in a couple nails?

887
02:04:22.470 --> 02:04:24.639
Della Luna (she/her) Huichun: And a Sunday should…

888
02:04:24.960 --> 02:04:40.430
Della Luna (she/her) Huichun: be free, and it… people should definitely be able to go to church for free, so the later starting time that Oakland has makes sense, but I'm trying to imagine people in church trying to go out to pay their meter so they don't get a ticket. Also, the fees that the staff showed, it doesn't show…

889
02:04:40.510 --> 02:04:52.439
Della Luna (she/her) Huichun: the tiers of those fees, like, sure, it's $49, but that's for, I think, 21 days, and then it goes up quite significantly, and so I don't think that you all really got to see the, like, full impact of

890

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02:04:52.830 --> 02:05:03.520
Della Luna (she/her) Huichun: all of those fees in their tiers, and so if someone couldn't pay a $60 ticket, then it goes to, like, $128 or $229. It's really astronomical, the way it rises.

891
02:05:03.540 --> 02:05:21.040
Della Luna (she/her) Huichun: But overall, I want to just first speak about Sundays, but overall, I don't think that this should pass. Sunday is kind of like a more relaxed day, where people… where I would go downtown, or go hang out and go to shops, and kind of meander, rather than being on a mission or running errands, downtown. And so taking that away.

892
02:05:21.040 --> 02:05:31.480
Della Luna (she/her) Huichun: Again, I think it would harm the restaurants like another… a person spoke about, but I do feel like you're putting… you're not, the impact that this would have on the business districts

893
02:05:31.780 --> 02:05:46.169
Della Luna (she/her) Huichun: would be negative. So the overall net, I think, is not positive for Berkeley. And just think about Sundays, seeing that really only tying to, like, $100,000 revenue, it really didn't lift my spirits, as in, yay, we got this, that this is, like.

894
02:05:46.270 --> 02:05:53.400
Della Luna (she/her) Huichun: a plan. But also, I feel like we have to not only just generate revenue, but make sure we're spending the money appropriately.

895
02:05:53.660 --> 02:06:10.190
Della Luna (she/her) Huichun: that we do have the funds, so I think there's other ways, it seems like you just want to gouge constituents, like how much… you call it revenue, but you're just taking money out of our paychecks, just to exist, just to go to the market, or just to go downtown, and we have to pay just to exist in the city.

896
02:06:10.190 --> 02:06:10.590
Boardroom: Hello?

897
02:06:10.590 --> 02:06:12.390
Della Luna (she/her) Huichun: I feel like you should find other ways to gently.

898
02:06:12.390 --> 02:06:14.130

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Boardroom: Thank you, Della.

899
02:06:17.560 --> 02:06:19.239
Boardroom: That's it, that's the last speaker.

900
02:06:19.480 --> 02:06:23.780
Boardroom: Okay, thank you very much. Comments from my Council colleagues, starting with Councilmember Bartlett.

901
02:06:30.290 --> 02:06:31.659
Boardroom: I'm gonna find somebody.

902
02:06:32.580 --> 02:06:47.079
Boardroom: Thank you. Thank you. Thank you. Mr. Humbert. Thank you for the presentation, and is it on now? Like, I'm… I'm double, double-miked here. Okay, I'm back. Thank you, Madam Mayor.

903
02:06:47.220 --> 02:06:59.089
Boardroom: You know, look, I thank you for your presentation, thank you for the diligence here. I know this isn't, you know, is not in a vacuum. You know, this proposal, comes from a severe need. We have a… we have a…

904
02:06:59.090 --> 02:07:09.060
Boardroom: Strong deficit, we are underwater in many ways, and we have a responsibility to stabilize our budgets. However, I'm concerned about this particular approach.

905
02:07:09.500 --> 02:07:17.710
Boardroom: You know, relying on parking enforcement To, to raise money, Is regressive in nature.

906
02:07:17.810 --> 02:07:19.169
Boardroom: It just is.

907
02:07:19.280 --> 02:07:37.310
Boardroom: And at a time where people are being, nickel and dimed everywhere they turn, at a time where their streets are jammed full of rideshare companies, delivery companies, and they're not bearing the burden. These corporations are not bearing the burden of this economic need, the residents are.

908
02:07:37.500 --> 02:07:43.119

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Boardroom: And these residents pay incredible rents, And incredibly high property taxes.

909
02:07:43.620 --> 02:07:45.490
Boardroom: And we want them to pay more taxes.

910
02:07:46.120 --> 02:07:48.829
Boardroom: So, honestly, I feel they pay enough already.

911
02:07:49.270 --> 02:07:56.860
Boardroom: And I think that the freedom to live in your community, your very expensive community, comes with the ability to drive around and do stuff.

912
02:07:57.640 --> 02:08:05.019
Boardroom: Now… The small businesses that we have, I get a million emails every week.

913
02:08:05.290 --> 02:08:14.279
Boardroom: Ask for help, ask to support them, stop by them, bring them customers, or do anything to help them stay open, because they're all struggling, they're all on their last legs.

914
02:08:14.600 --> 02:08:18.240
Boardroom: And I'm worried that this, this approach

915
02:08:19.120 --> 02:08:37.099
Boardroom: of impacting the ability to park near them and go see them will impact them worse and make them shut down even sooner. At a time where jobs are threatened, as we know, by the encroaching technology, the war in Iran, and the threat to the stability of the dollars at play here.

916
02:08:37.100 --> 02:08:43.829
Boardroom: We have a lot of headwinds here, and I'm not sure that, we're supporting our people by drowning them in these fees.

917
02:08:44.340 --> 02:08:47.869
Boardroom: I'm curious about…

918
02:08:48.120 --> 02:08:54.260
Boardroom: The, the ratio, if there's any projections about this or thought about loss of business revenue.

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919
02:08:54.680 --> 02:09:11.379
Boardroom: Opposed to the $7 million in parking fines and fees increases, right, if that measures up. And also, I'm curious about the quality of life of persons, and that's sort of an intangible aspect, that is hard to measure, but I can tell you, people feel it.

920
02:09:11.970 --> 02:09:13.610
Boardroom: So…

921
02:09:13.890 --> 02:09:22.429
Boardroom: But, to work with you, you know, I would suppose, I would propose, sort of a middle ground here. A two-year.

922
02:09:22.570 --> 02:09:23.460
Boardroom: Pilot.

923
02:09:24.170 --> 02:09:25.260
Boardroom: We're in…

924
02:09:25.640 --> 02:09:45.600
Boardroom: We measure the results here, see how it's happening, check on, the compliance rates, the impacts of businesses, the result of this. And also tied to real economic metrics, and then a deeper understanding of the need to continue these metrics. Because the driving patterns we all know will be changing.

925
02:09:45.930 --> 02:09:50.270
Boardroom: I was in LA last week, every other car was an automated transport vehicle.

926
02:09:50.470 --> 02:10:04.879
Boardroom: It's coming here next. So, we may not need this much enforcement. Our whole street strategy will evolve, and in two years, we'll have a clearer picture. So, rather than commit these seniors getting caught out there trying to pay these fees to go to Walgreens.

927
02:10:05.030 --> 02:10:23.519
Boardroom: and commit these, small restaurants to having no business, and people going to Emeryville, and going to, Forestry private parking lot that's free, are going to other places to evade our overwhelming penumbra of cost.

928
02:10:23.850 --> 02:10:28.670

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Boardroom: do the business here, and live your life here, I suggest we look at this in 2 years.

929
02:10:34.370 --> 02:10:39.209
Boardroom: Councilmember Taplin? Thank you. I'm gonna say, like, pretty much the exact opposite of all that.

930
02:10:39.450 --> 02:10:43.260
Boardroom: But I first wanna… can you clarify how long we're on the hook for the parking garage?

931
02:10:45.900 --> 02:10:50.289
Boardroom: 2046. 2046. So, that's not gonna go away.

932
02:10:51.200 --> 02:10:55.640
Boardroom: We're talking about public space.

933
02:10:56.600 --> 02:10:58.889
Boardroom: Being used for car storage.

934
02:10:59.500 --> 02:11:05.560
Boardroom: just because… There are not currently fees. It does not mean that parking is free.

935
02:11:05.680 --> 02:11:07.620
Boardroom: The city pays to maintain it.

936
02:11:07.880 --> 02:11:12.100
Boardroom: People who don't drive, Pay to maintain this parking.

937
02:11:12.770 --> 02:11:13.710
Boardroom: And…

938
02:11:15.620 --> 02:11:28.560
Boardroom: For the people saying we should put this off another day, putting things off for other days is how we got here with the deficit in this fund, the deficit in the marina fund, the deficit in the general fund. And this isn't… this isn't a business.

939
02:11:28.820 --> 02:11:30.970
Boardroom: It is a fund.

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940
02:11:31.110 --> 02:11:34.560
Boardroom: that is supported by revenue collected

941
02:11:35.090 --> 02:11:37.849
Boardroom: In the associated use of this operation.

942
02:11:38.880 --> 02:11:45.000
Boardroom: And… It makes no sense to operate a deficit.

943
02:11:45.230 --> 02:11:48.189
Boardroom: It makes even less sense to willfully operate.

944
02:11:48.360 --> 02:11:49.640
Boardroom: a deficit.

945
02:11:49.940 --> 02:12:04.879
Boardroom: And I get that it's hard to do new things, and people want everything to be free, and people don't want to pay for parking, and they might get upset, but some of the choices we have to make are difficult, and they are necessary, and if we don't make those choices today.

946
02:12:05.110 --> 02:12:12.359
Boardroom: The choices we will make tomorrow will be even more difficult, so I will be supporting this, and I will make a motion to adopt the staff recommendation.

947
02:12:12.900 --> 02:12:32.660
Boardroom: I'll second that motion. Thank you, Councilmember. Yeah, Councilmember Humbert, you're up first. Anyway… Yes, thank you, Madam Mayor, and first I want to, associate myself 100% with the comments made by, Councilmember Taplin. He hit the nail on the head. Consistent with what I said before, I understand…

948
02:12:32.660 --> 02:12:40.829
Boardroom: That people feel nickel and dimed by things like additional metered parking days and longer hours to pay at parking meters.

949
02:12:41.050 --> 02:12:55.160
Boardroom: But, at the same time, we're talking about using 200 square feet of public space to store a private vehicle. That should carry a cost, for the reasons that Councilmember Taplin articulated, especially during high-demand times.

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950
02:12:55.810 --> 02:13:14.190
Boardroom: Free Sunday parking is a long, outdated holdover from a time when most businesses were closed on Sundays, we had blue laws, people were more likely to be at home or at worship. Sunday is now a very busy day for most commercial districts, so it makes sense to charge for parking for curb management. In fact.

951
02:13:14.300 --> 02:13:18.230
Boardroom: In my experience in downtown and in the commercial districts is

952
02:13:18.380 --> 02:13:26.439
Boardroom: folks from the surrounding residential neighborhoods park their cars and store them, all day Sunday, and that displaces

953
02:13:26.440 --> 02:13:38.920
Boardroom: you know, potential shoppers. So, you know, arguably, and I think this is probably correct, if we move those cars around and make parking available, the merchants on Sundays will likely do

954
02:13:39.130 --> 02:13:43.379
Boardroom: better. I also want to point out that the answer to the…

955
02:13:43.520 --> 02:14:03.390
Boardroom: question that I, my leading question, during the, the, the question period. The $100,000 delta, the, you know, for Sunday, you know, the $100,000, you know, essentially, they're not profits, but, positive, fund inflows.

956
02:14:03.910 --> 02:14:14.010
Boardroom: that's only the first year. After that, it's, it's, it's 300,000 plus, so that's very significant. That's not, that's not chicken feed.

957
02:14:14.460 --> 02:14:27.010
Boardroom: Parking availability and turnover are important for reducing circling, congestion, carbon burning of automobiles, and making it easier for people to quickly find parking

958
02:14:27.330 --> 02:14:33.080
Boardroom: And all-day parking that also contributes to double parking for pickups and deliveries. That's another problem.

959

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02:14:33.300 --> 02:14:42.070
Boardroom: I understand that businesses are concerned that paying for parking may dissuade people from visiting on Sundays, but if we look at Emeryville, which has paid parking in a garage.

960
02:14:42.090 --> 02:14:59.570
Boardroom: which is decidedly less convenient than street parking, it seems people are relatively willing to pay for parking, especially if finding a spot is relatively easy. And charging for street parking in the way we do it helps ensure spots are available on any given block. So overall, I'm supportive of the Sunday

961
02:14:59.800 --> 02:15:01.430
Boardroom: parking component.

962
02:15:01.620 --> 02:15:06.920
Boardroom: I also want to address the higher RPP fees.

963
02:15:07.140 --> 02:15:15.940
Boardroom: People may balk at higher RPP fees, especially if on a percentage basis we're looking at something like a 50% to 100% increase.

964
02:15:16.060 --> 02:15:30.829
Boardroom: But again, we're talking about being able to privately use 200 square feet of our public roadways. Our roadways belong to everyone, and could instead be used for green stormwater infrastructure, bike lanes, or just even expanded sidewalks for pedestrians.

965
02:15:31.030 --> 02:15:40.590
Boardroom: In what other situations can you essentially get 200 square feet of private storage space for the equivalent of $10 to $13 per month?

966
02:15:40.960 --> 02:15:52.570
Boardroom: For perspective, 150 feet of private self-storage space on San Pablo Avenue currently costs $418 a month. Granted, those are enclosed storage spaces, but even if we raise

967
02:15:52.570 --> 02:16:06.180
Boardroom: RPP to $150 a year, that would still be something like a 98% discount on what an equivalent amount of private storage space goes for. And many buildings in Berkeley charge hundreds of dollars a month for private parking.

968
02:16:06.550 --> 02:16:19.400

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Boardroom: Even at these higher rates, RPP remains a really kind of amazing bargain. So, for all these reasons, I plan to support this item. Thank you. Thank you, Councilmember Kessarwani.

969
02:16:19.860 --> 02:16:43.359
Boardroom: Thank you very much, Madam Mayor. Thank you for this presentation. You know, this has been a long time coming. I think, Elliot, you were maybe here? Was it 2019? Oh, you were not here, okay. I apologize. Well, I was here when we were trying to increase these fees, earlier in my… in my first term on council, I believe it was 2019, and we were not able to do so, and I think…

970
02:16:43.360 --> 02:16:45.590
Boardroom: There are…

971
02:16:45.650 --> 02:16:57.210
Boardroom: costs associated with that, right? We are underfunding our enforcement, for one. We have areas of our city where your report tells us we have

972
02:16:57.309 --> 02:17:12.060
Boardroom: high demand, people are circling, people are unable to get a parking space, where they feel that they need to be. You know, maybe it's close to a business, and so, so I think we need to…

973
02:17:12.209 --> 02:17:18.860
Boardroom: properly manage our streets, and I want to remind all of us, I think some of us have already said this.

974
02:17:19.270 --> 02:17:36.390
Boardroom: the streets, you know, are a… that's the public right-of-way. That's a public good. And so, when we give it away for free, sometimes that's appropriate because the demand isn't there, but what you're proposing here is to charge

975
02:17:36.690 --> 02:17:56.259
Boardroom: you know, a fair, reasonable fee to encourage turnover so that we can have more customers come to these businesses, and encourage people to move on and have less circling. So I think it's better for the environment, it's better for our management of the public right-of-way, which is a public good.

976
02:17:56.459 --> 02:18:04.150
Boardroom: And I'm going to say something that some people may disagree with. You do not own the street space in front of your home.

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977
02:18:04.260 --> 02:18:08.400
Boardroom: That's not yours. That is the public right-of-way.

978
02:18:09.219 --> 02:18:12.900
Boardroom: And you don't own the street space in front of your business.

979
02:18:13.889 --> 02:18:30.250
Boardroom: that belongs to everybody who's trying to move around our city, and I know this council has a commitment to enable everyone in our city to move around safely as well. So I think this is a really important thing, it's a long time coming.

980
02:18:30.290 --> 02:18:36.269
Boardroom: I also want to talk about RPP. I, I think, I was the one who did that referral.

981
02:18:36.370 --> 02:18:51.020
Boardroom: to ask for the graduated fee increases for RPP, because we, you know, in my district, we hear stories of people owning multiple, multiple cars, like 7 vehicles, that they are

982
02:18:51.100 --> 02:19:09.090
Boardroom: parking on the public right-of-way, the public good, so… so, if people want to choose to do that, you know, that is their choice, but we need to have that be reflected in our costs, and as we all know, we are facing a deficit. I think this parking fund you said had a million dollar…

983
02:19:09.450 --> 02:19:14.710
Boardroom: Deficit, so… so we… we need to rectify this, and…

984
02:19:14.709 --> 02:19:37.549
Boardroom: And I do understand this is hard. I think people have very strong feelings about parking, and, you know, I think this is just something that's been a long time coming and is a necessary change. I hope we can continue to expand once we… when, you know, in areas where we see that there… the occupancy is going above that 85% target threshold. Thank you very much.

985
02:19:38.780 --> 02:19:40.940
Boardroom: Thank you. Councilmember O'Keefe.

986

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02:19:42.150 --> 02:20:02.059
Boardroom: Thank you. A lot of what I wanted to say has already been said. I really want to associate myself with Councilmember Taplin's comments, especially, and I'll just highlight, a couple things that were mentioned by other Councilmembers. One is, I've really always thought it's ridiculous that we don't charge for parking on Sundays. This is irrespective of the revenue.

987
02:20:02.140 --> 02:20:05.739
Boardroom: benefits to it. I just think this isn't…

988
02:20:06.110 --> 02:20:11.090
Boardroom: the 19th century, this isn't Europe, like, we're a modern, secular place, and…

989
02:20:11.740 --> 02:20:27.809
Boardroom: And as Councilmember Humbert pointed out, it's not even a day when a lot of stores are closed anymore, so it doesn't make any sense for us to not charge for parking on Sundays. I think this is a great idea. Even if it was revenue neutral, I would say it was good just for the sake of logical consistency. It's good policy.

990
02:20:29.210 --> 02:20:37.769
Boardroom: So I wanted to say that. And then also, this has already been mentioned a little bit, but I really want to emphasize this is compatible with our city's climate goals.

991
02:20:37.930 --> 02:20:39.949
Boardroom: You know, I'm, I'm actually usually…

992
02:20:40.270 --> 02:20:50.059
Boardroom: one to defend parking and cars. I think it's a completely valid choice. I don't think there's anything wrong with people wanting to drive. However, it does…

993
02:20:50.230 --> 02:20:56.310
Boardroom: Have a cost that people don't pay when they drive, and it makes perfect sense.

994
02:20:56.460 --> 02:21:10.080
Boardroom: to make driving a little bit more expensive. I think that's a very, very appropriate way to discourage driving and thus encourage other kinds of mobility that have less of an impact. And I just want to remind everyone that,

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995
02:21:11.930 --> 02:21:24.410
Boardroom: people with, disability placards don't have to pay for parking, so that's one group that you do want to look out for, especially when you're saying things like that, but they're not, affected by this. So, that's an important detail.

996
02:21:24.890 --> 02:21:29.479
Boardroom: Those are my comments. I support this. Thank you very much, Vice Mayor Jacob.

997
02:21:30.340 --> 02:21:39.179
Boardroom: Thank you, and thank you again, Director Amiri, and to your team,

998
02:21:40.180 --> 02:21:48.320
Boardroom: I have to preface by, my statements with, a comment that I,

999
02:21:49.070 --> 02:21:57.800
Boardroom: I echo, my colleague's, remarks that, public streets are our shared resource.

1000
02:21:58.110 --> 02:22:04.750
Boardroom: And parking on the public right-of-way is a privilege. And,

1001
02:22:04.860 --> 02:22:12.300
Boardroom: For that reason alone, I generally support, this necessary increase in fees.

1002
02:22:12.420 --> 02:22:17.420
Boardroom: Just to address, some speakers and,

1003
02:22:18.040 --> 02:22:35.600
Boardroom: We are in a tough budget situation, but even if we weren't, the cost of putting this off for another year would be $1,349,486, and that's in fiscal 27 alone, and it would

1004
02:22:36.020 --> 02:22:46.089
Boardroom: balloon to $5,418,155 in fiscal 31.

1005
02:22:46.810 --> 02:22:58.780
Boardroom: As the downtown council member, it is certainly my experience, walking by, downtown, that there is,

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1006
02:22:58.970 --> 02:23:13.219
Boardroom: little to no available parking on Sundays, and, largely the same vehicles are there for longer than I think they would otherwise be.

1007
02:23:14.810 --> 02:23:23.679
Boardroom: That said, this is the area where I do have the most discomfort.

1008
02:23:23.680 --> 02:23:43.979
Boardroom: To be clear, I still support this. I do think the rollout needs to be particularly gentle and well-calibrated here. And I will note that Oakland did introduce Sunday parking, but only in the highest demand areas, so I really would like to, roll this out.

1009
02:23:43.980 --> 02:23:47.480
Boardroom: In a gentle way.

1010
02:23:48.490 --> 02:24:03.739
Boardroom: I also would like for us, and this obviously does not… it can't happen now, but I would like to have a discussion in the future to assess our fine schedule for severity.

1011
02:24:04.020 --> 02:24:10.560
Boardroom: double parking and parking, along, Red Corpse should be,

1012
02:24:10.980 --> 02:24:19.320
Boardroom: Assessed… the fine for that should be assessed, at a level that is, significantly higher.

1013
02:24:19.320 --> 02:24:31.489
Boardroom: then, simply, while we're staying a meter by a few minutes. And as Director Amiri, knows, because, he and his team

1014
02:24:31.620 --> 02:24:44.349
Boardroom: joined us for, an inspection of an intersection along with Councilmember O'Keefe a few days ago, and we heard from residents that, parking on Red Corps happens.

1015
02:24:44.440 --> 02:25:00.759
Boardroom: It happens in my district, it probably happens in every district. Double parking happens, frequently, and it is not getting

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enforced. So I actually also support this because the enforcement, I think, will go up across the board.

1016
02:25:01.610 --> 02:25:17.359
Boardroom: I would, like to make sure that we continue to think about wayfinding and signage. The Center Street and Alston, garages are far short of their capacity, including at peak hours.

1017
02:25:17.410 --> 02:25:34.540
Boardroom: That needs to change. I think we can change it if we continue to educate the public about their existence. And I know, it's challenging to keep the costs below the costs of street parking, looking at our 6 to 7 fund balance.

1018
02:25:34.540 --> 02:25:40.550
Boardroom: But, I think we need to really have a, just take a deeper dive

1019
02:25:40.620 --> 02:25:51.030
Boardroom: on that. Lastly, I would like to, this is not part of the motion, but I would like to encourage, staff

1020
02:25:51.100 --> 02:26:05.019
Boardroom: to do very targeted engagement with the business community, particularly business associations where these changes were being proposed, as well as the Chamber and Visit Berkeley across all districts.

1021
02:26:05.020 --> 02:26:22.119
Boardroom: And then, I would love to see if there's a way to schedule a one-year review, so probably at the end of FY27, to see how implementation is going, and any lessons we can, glean from it.

1022
02:26:22.120 --> 02:26:23.120
Boardroom: Thank you.

1023
02:26:26.700 --> 02:26:29.340
Boardroom: Thank you. Councilmember Blackby.

1024
02:26:29.690 --> 02:26:47.480
Brent Blackaby: Great, thank you, Madam Mayor, and thanks again to staff for all the work on this proposal. I'll say, I support the vast majority of what is here. I think, again, making the parking funds more solvent, we know, is critical. Getting ourself on firmer financial footing is critical, making sure that

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1025
02:26:47.540 --> 02:26:59.829
Brent Blackaby: We're getting circulation we need in our key commercial corridors. That's all critical, helping us reduce the amount of cruising around that has an impact on emissions.

1026
02:26:59.900 --> 02:27:13.030
Brent Blackaby: I will say, I just… I'm still… I'm just not comfortable that… I'm comfortable ready to move forward on Sunday. I'll just note that, you know, Oakland's proposal on Sunday is 12 to 6. It's not 9 to 8.

1027
02:27:13.320 --> 02:27:23.509
Brent Blackaby: You know, I'd be supportive of something that is potentially more limited in scope, or looking at particular neighborhoods, but not all neighborhoods, in terms of the meters.

1028
02:27:23.540 --> 02:27:37.980
Brent Blackaby: I just think we could… we could say this more, I'm just not convinced that the economic benefit is there relative to everything else that's in here. I mean, if you look at the… I also say that extending parking meters from 6 to 8 on days when we're already

1029
02:27:37.980 --> 02:27:46.129
Brent Blackaby: enforcing the meters until 6 is not as heavy a lift, right? I mean, that's not as big an expectation change, I think, for people.

1030
02:27:46.130 --> 02:27:58.379
Brent Blackaby: Adding meters in areas that are new and emerging commercial areas, not a surprise, and we should do that, right? I mean, all of the RPP fees, the updating the scheduled parking violations, all these things make complete sense to me.

1031
02:27:58.380 --> 02:28:12.340
Brent Blackaby: I just think that on Sunday, we could… we should apply a scalpel as opposed to kind of a hatchet here, and… and study that more. And frankly, we could, I think, look at everything and let everything run.

1032
02:28:12.590 --> 02:28:24.539
Brent Blackaby: and have a much better understanding of how much economic activity, how much revenue that we're generating from all of the other things before we sort of look at again what to do with Sunday. So…

1033
02:28:24.540 --> 02:28:37.559

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Brent Blackaby: The numbers to me just don't quite add up in the same way that the others do. Maybe if we had more time to sort of understand, dig into the economics a little more, I could support it, but I'm sort of not at that position right now.

1034
02:28:37.740 --> 02:28:40.420
Brent Blackaby: So, I think… so I'll offer…

1035
02:28:40.530 --> 02:28:53.289
Brent Blackaby: an amendment to the main motion, to, again, accept the main motion, but strike 1B, which is the Sunday parking for now, and give us more time to study it and deliberate before we, decide whether to move forward with that piece of it.

1036
02:28:55.020 --> 02:28:57.080
Boardroom: You're offering a friendly amendment?

1037
02:28:57.080 --> 02:28:59.809
Brent Blackaby: Not a friendly amendment, I'm just making an amendment to the main motion.

1038
02:29:01.860 --> 02:29:08.749
Boardroom: Yeah, we… let's, see, first of all, if there's a motion to close the public… So moved.

1039
02:29:09.880 --> 02:29:12.080
Boardroom: Can we take the roll on that, please?

1040
02:29:14.120 --> 02:29:24.169
Boardroom: Close the public hearing. Councilmember Kastarwani? Yes. Taplin? Yes. Bartlett? Yes. Traega? Aye. O'Keefe? Yes. Blackaby?

1041
02:29:24.310 --> 02:29:24.990
Brent Blackaby: Yes.

1042
02:29:25.300 --> 02:29:45.049
Boardroom: Unapara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay. Public hearing's closed. Thank you. A bunch of lights just popped up, so I'm gonna go first with, Councilmember Taplin. Thank you, Madam Mayor. So, since I made the motion during the public hearing, should I remake the motion now?

1043
02:29:45.340 --> 02:29:46.300

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Boardroom: Yes. Bye.

1044
02:29:46.470 --> 02:29:48.970
Boardroom: I move that we adopt the staff recommendation.

1045
02:29:49.560 --> 02:29:55.740
Boardroom: And I second that. Thank you. And I did wanna… I think, you know.

1046
02:29:55.900 --> 02:30:00.699
Boardroom: for the Sunday thing, it's gonna have one-time costs.

1047
02:30:01.720 --> 02:30:05.060
Boardroom: So that's, like, doing it later wouldn't change that.

1048
02:30:05.340 --> 02:30:08.659
Boardroom: And… Part of what we're doing is…

1049
02:30:09.360 --> 02:30:25.589
Boardroom: getting data through the survey or through the engagement to assess further expansion, so I don't see why we wouldn't be able to assess the impact of the Sunday charging, why we would not be able to do that as part of what's already recommended, but it wouldn't make sense to me to…

1050
02:30:26.080 --> 02:30:33.550
Boardroom: delay Sundays just to, like, have more years of the deficit growing, to then have the same

1051
02:30:33.970 --> 02:30:41.240
Boardroom: Upfront, one-time costs to then have to collect data we could have collected.

1052
02:30:43.130 --> 02:30:46.519
Boardroom: At the onset of adopting it? Oh, right.

1053
02:30:46.750 --> 02:30:54.299
Boardroom: So… Voila. Thank you. Councilmember Lunapara.

1054
02:30:55.880 --> 02:31:08.700

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Boardroom: I, I agree with what Councilmember Taplin has said, and Councilmember Kasarwani, and others, and I just wanted to point out that I think we're talking about

1055
02:31:09.200 --> 02:31:14.280
Boardroom: how this is going to affect people driving on Sundays, and how… how…

1056
02:31:14.720 --> 02:31:24.420
Boardroom: And how this isn't fair for people driving, and that really makes no sense to me, especially because when we're talking about the most,

1057
02:31:24.680 --> 02:31:28.320
Boardroom: Economically disadvantaged members of our community, they don't drive.

1058
02:31:28.420 --> 02:31:37.089
Boardroom: Most of the time they take public transportation, which isn't free on Sundays. So, I just wanted to point that out as another reason why I think this is a no-brainer.

1059
02:31:37.410 --> 02:31:38.150
Boardroom: Thanks.

1060
02:31:38.890 --> 02:31:46.190
Boardroom: Thank you. And so, just going back to what you were saying, Councilmember Blackaby, so you were proposing an amendment. Do you want to…

1061
02:31:46.190 --> 02:31:52.870
Brent Blackaby: Amendment to the main motion to, again, accept staff recommendation except strike 1B on the Sunday component.

1062
02:31:57.650 --> 02:32:00.319
Boardroom: I… will not accept that.

1063
02:32:00.320 --> 02:32:02.280
Brent Blackaby: No, I'm not offering it as a friendly amendment, I'm just saying.

1064
02:32:02.280 --> 02:32:02.740
Boardroom: You're.

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1065
02:32:02.740 --> 02:32:06.649
Brent Blackaby: I want to make an amendment to main motion that we vote on first, and then back to the main motion.

1066
02:32:06.650 --> 02:32:23.699
Boardroom: Councilmember Blackby's making a motion to amend the main motion. I see. Okay, a second from Councilmember… yeah, so I was like, what is he? Okay, so Councilmember, Bartlett is seconding. So, let's just take a vote on that.

1067
02:32:24.640 --> 02:32:29.369
Boardroom: There's no… okay. So that's amending the main motion.

1068
02:32:29.700 --> 02:32:31.790
Boardroom: to remove…

1069
02:32:35.070 --> 02:32:36.489
Boardroom: Which part of the motion?

1070
02:32:36.490 --> 02:32:39.330
Brent Blackaby: 1B, 1B, just the 1B piece.

1071
02:32:39.330 --> 02:32:52.850
Boardroom: Okay. Okay. Okay, so this, the motion is to whether or not to amend the main motion to remove, 1B from the staff recommendation. Councilmember Kesarwani? No.

1072
02:32:53.240 --> 02:32:58.249
Boardroom: Kaplin? No. Bartlett? Yes. Trey Gibb? Abstain.

1073
02:32:58.890 --> 02:33:00.410
Boardroom: O'Keefe? No.

1074
02:33:00.520 --> 02:33:01.840
Boardroom: Blackaby.

1075
02:33:02.080 --> 02:33:02.930
Brent Blackaby: Yes.

1076
02:33:02.930 --> 02:33:09.530

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Boardroom: Lunapara? No. Humbert? No. And Mayor Ishii? No. Okay, motion fails.

1077
02:33:11.130 --> 02:33:22.749
Boardroom: Okay. Main motion is not amended. Okay, I… oh, yes, Councilmember Lenopara. Thank you, sorry, I forgot to mention that I also, think that the RPP cost should be higher.

1078
02:33:23.200 --> 02:33:29.140
Boardroom: Especially in future years. I was looking up, Oaklands, and it's around 160.

1079
02:33:29.370 --> 02:33:33.730
Boardroom: Just an idea. And I think San Francisco's about 215 annually.

1080
02:33:34.810 --> 02:33:36.279
Boardroom: Thank you. Yeah.

1081
02:33:37.260 --> 02:33:41.519
Boardroom: Okay, thank you, Councilmember O'Keefe.

1082
02:33:41.700 --> 02:33:55.750
Boardroom: Yeah, I just want to piggyback on that. I think that the second and third ones should be way expensive. I think that was smart to, change it a little bit, although I think the difference that you're proposing is pretty minimal, but I think that

1083
02:33:56.030 --> 02:33:57.360
Boardroom: You know, one is…

1084
02:33:58.500 --> 02:34:15.849
Boardroom: should remain pretty accessible, but yeah, more is, a luxury good. And actually, while I have the floor, I just want to make another comment I forgot to make before. I just really wanted to thank, staff for, identifying Hopkins area for new meters. I was actually planning to

1085
02:34:16.030 --> 02:34:27.199
Boardroom: ask for that before I realized you had already done it, so I think that is a really important, needed improvement for that area. So I just wanted to say thank you for that, and I'm happy to be supporting that small aspect of this as well.

1086
02:34:28.110 --> 02:34:29.760

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Boardroom: Thank you, Vice Mayor Treykop.

1087
02:34:31.420 --> 02:34:41.900
Boardroom: Thank you. So I… I also… I just wanted… I did it before, but I wanted to, once again, echo my gratitude to staff. This is a…

1088
02:34:41.900 --> 02:34:53.739
Boardroom: very well calibrated. I mean, it's well thought out. Everything is well thought out. We may, agree or disagree with the numbers, and these are projections.

1089
02:34:53.740 --> 02:35:12.909
Boardroom: but I, absolutely understand, the decisions that were made based on, the conclusions you reached. And so with that said, while I am… I'm gonna be supporting the main motion, I'm not loath to propose any changes to it right now.

1090
02:35:12.930 --> 02:35:37.909
Boardroom: As part of, what will hopefully be a one-year review of the program, I would like for us to look at a more highly graduated fee schedule for RPP, as well as, increases to the fine schedule for things I already outlined that, to me, and I think to most people, are a bigger deal than

1091
02:35:37.910 --> 02:35:44.110
Boardroom: While we're staying a parking meter, such as parking, on a red, curb.

1092
02:35:44.110 --> 02:35:46.180
Boardroom: Or double parking. Thank you.

1093
02:35:46.710 --> 02:36:04.900
Boardroom: Yes, thank you, Councilmember Taplin. Thank you, and I wanted to wrap up my part of this by just really thanking you and your team for your diligence, and also, I also wanted to commend your resolve. I've seen this team tackle many contentious issues with clarity and alacrity and…

1094
02:36:05.080 --> 02:36:09.449
Boardroom: and fortitude, and I'm really, grateful to all of you, and thank you so much.

1095
02:36:11.160 --> 02:36:20.929

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Boardroom: Yeah, oh, sorry, Councilmember Humbert, and then Councilmember Kesarwani. Yeah, all I want to say is exactly what Councilmember Taplin just said to you. Thank you so much.

1096
02:36:22.540 --> 02:36:25.689
Boardroom: Thank you. Yeah, go ahead, Councilmember Kisarwani.

1097
02:36:25.870 --> 02:36:43.130
Boardroom: Thank you. I, you know, I just wanted to clarify, just, like, the fiscal bottom line. So, with RPP alone, even with these changes, you're saying that you're projecting a $1.3 million deficit annually at these fee levels, is that accurate?

1098
02:36:45.240 --> 02:37:04.649
Boardroom: That's slide 9? Yeah, I believe it's a… the $1.3 million deficit is existing, and so it would go down… so the $615,000 in net new would chip away at that? I'm sorry, I just couldn't hear you that well. Could you just say that again? Yeah, that, I'll pull up the slide, so…

1099
02:37:07.090 --> 02:37:10.939
Boardroom: Yeah, I mean, you're right, it's still a $1.3 million deficit moving forward.

1100
02:37:11.030 --> 02:37:22.630
Boardroom: we plan to revisit this next year, as it's been brought up. Okay. Every year. Okay, so I just want to make sure, so you will be coming back annually to do these increases and…

1101
02:37:22.670 --> 02:37:30.720
Boardroom: And it sounds like there's some… some support, although we haven't taken a formal vote on that, but… but this concept of

1102
02:37:30.720 --> 02:37:47.590
Boardroom: doing an even more graduated, greater increase for the second and third vehicle, that may be an option. Okay, I just wanted to clarify that. And then, so then on the… the meters, that, you're saying a $5.3 million annual surplus, or benefit.

1103
02:37:47.890 --> 02:37:53.969
Boardroom: Do I have that right? So you have the annual revenue and the annual cost, so you're left with the 5.3, correct?

1104
02:37:53.970 --> 02:38:08.550

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Boardroom: That includes everything. So that includes the RPP fee increases and the parking fines. Oh, okay, so that's cumulative, so just within RPP. So is there a reason why we would want the RPP alone to be self-sustaining if it's part of this larger…

1105
02:38:10.710 --> 02:38:24.820
Boardroom: I don't know if it's all one fund, or is RPP a separate fund? It's not a separate fund. It's not… it's not its own enterprise fund. Oh, okay. So it's technically not a problem that that area is running a deficit, because it's not…

1106
02:38:24.880 --> 02:38:39.389
Boardroom: On the… on the whole. Exactly. Okay. Okay. That… I just wanted to clarify those points. Thank you very much, and I do appreciate, that we are going to look at these fees on a more regular schedule. Thank you.

1107
02:38:39.600 --> 02:38:44.049
Boardroom: Thank you. I'm gonna be supporting it this evening, and it's…

1108
02:38:44.270 --> 02:38:55.850
Boardroom: a big part because basically what we're doing right now is we're subsidizing parking in our city by a million dollars a year. And so I want folks to really make sure they're understanding that.

1109
02:38:55.850 --> 02:39:05.799
Boardroom: The other thing I want to say is that I know I hear a lot of folks say that there isn't enough parking, in downtown, and I think it's because they don't know we have this

1110
02:39:05.880 --> 02:39:12.559
Boardroom: parking lot, that is really underutilized, on Center Street, you know, between Center and…

1111
02:39:12.750 --> 02:39:31.330
Boardroom: Addison? Alston? Oh my gosh, thank you. Addison, thank you. Between Center and Addison. So, so, you know, folks, please, go park in our parking lot. It's there, it's, it's, bright, there's always spaces available, and, yeah, thank you.

1112
02:39:31.350 --> 02:39:39.120
Boardroom: And then, I just generally wanted to also add my support because of climate reasons, and also because…

1113
02:39:39.210 --> 02:39:51.299

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Boardroom: as we were talking about, parking management, having one to two spaces kind of available enables more flow, and that is better for our businesses, so I want to make sure folks understand that, too.

1114
02:39:51.470 --> 02:39:54.309
Boardroom: I understand that… that…

1115
02:39:54.350 --> 02:40:15.770
Boardroom: an increase in parking costs people money, and I also want to remind folks that people don't have to drive. Not everybody has to. Of course, there are folks who need to take cars, and I understand that, but there are many people who don't need to take cars. They can take public transportation, they can walk, they can bike, and I believe that this will also help to encourage that. So, I will be supporting, the motion.

1116
02:40:15.770 --> 02:40:19.079
Boardroom: And with that, I will see if we can take the role in that, please.

1117
02:40:19.470 --> 02:40:21.730
Boardroom: Okay, this is to adopt the staff.

1118
02:40:22.220 --> 02:40:36.269
Boardroom: Recommendation on, item 24? Councilmember Kesarwani? Yes. Taplin? Aye. Bartlett? No. Trega? Aye. O'Keefe? Yes. Blackaby?

1119
02:40:36.540 --> 02:40:37.230
Brent Blackaby: Yes.

1120
02:40:37.540 --> 02:40:54.060
Boardroom: Unapara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay, motion carries. Thank you. Thank you all so much for your presentation and for your work on this. I could tell it was a lot of work. We are gonna take a break until 9 o'clock, and just so folks understand, so we have

1121
02:40:54.060 --> 02:41:07.260
Boardroom: one more fee, and then we have… oops, sorry, yep, which is number 25, and then we have an appeal, we have a conversation, which is discussion, about the desired qualifications for the next ODPA,

1122
02:41:07.460 --> 02:41:11.110
Boardroom: Director, which…

1123

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02:41:11.230 --> 02:41:23.709
Boardroom: It's repetitive, I'm realizing. And then also the CIP, so that's a pretty significant number of things left I just want to flag for folks, so thank you. We will take a break for the next 10 minutes and come back at 9 o'clock.

1124
02:41:32.830 --> 02:41:52.639
Boardroom: Okay, thank you everyone for your patience. I want to make an announcement and say that item number 28, I don't believe we'll have time for this evening, because there's a significant presentation involved, and I'm sure folks will have a lot of questions, so we will be moving that one to the meeting on the 16th.

1125
02:41:52.750 --> 02:41:54.910
Boardroom: And,

1126
02:41:55.600 --> 02:42:18.839
Boardroom: And we are moving on right now to item number 25, which is the zero-waste Plan Checks and Compliance Inspections fees. And that was also continued from May 19th, 2026, so also apologies to you all and your team for not being able to hear that item at the previous meeting and you having to come back tonight, so thank you very much for being here.

1127
02:42:18.840 --> 02:42:22.630
Boardroom: Mayor, why don't we make a motion to move item?

1128
02:42:22.720 --> 02:42:30.730
Boardroom: 28, because it's a public hearing, so… Oh. Yeah. Yeah, it just…

1129
02:42:30.990 --> 02:42:34.919
Boardroom: Quick. Yes, thank you. I would like to,

1130
02:42:35.900 --> 02:42:44.120
Boardroom: entertain a motion to move item number 28 to the meeting on the 16th. So moved. Thank you. Second.

1131
02:42:44.420 --> 02:42:46.890
Boardroom: Okay. Thank you very much. Can you take the role in that?

1132
02:42:47.380 --> 02:42:51.279
Boardroom: Okay… Councilmember Kisarwani?

1133

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02:42:52.400 --> 02:42:58.810
Boardroom: Yes. Yes. Taplin? Aye. Bartlett? Yes. Drago? Aye. O'Keefe?

1134
02:42:58.950 --> 02:43:01.040
Boardroom: Yes. Blackaby.

1135
02:43:01.040 --> 02:43:01.760
Brent Blackaby: Yes.

1136
02:43:01.960 --> 02:43:10.349
Boardroom: Unapara? Yes. Humbert? Yes. And Mary Ishii? Yes. Okay, thank you. Thank you. Alright, I'll pass it over to you.

1137
02:43:15.150 --> 02:43:27.039
Boardroom: Good evening, Mayor, Council Members, Wahit Amiri again, Interim Director of Public Works. Tonight, we're presenting, the proposed zero-waste fee updates for Council's consideration.

1138
02:43:27.260 --> 02:43:37.180
Boardroom: These fees are intended to better align cost recovery with the staff time and resources needed to review, inspect, and support compliance for zero-waste-related requirements.

1139
02:43:37.370 --> 02:43:45.400
Boardroom: Including plan reviews, construction, And demolition compliance, special events, and related programs.

1140
02:43:45.760 --> 02:43:54.789
Boardroom: I'll have, staff introduce themselves, and then Leticia will jump into the PowerPoint presentation, and we'll be happy to answer any questions from there.

1141
02:43:57.750 --> 02:44:09.500
Boardroom: Good evening, Mayor and Council Members. My name is Leticia Haute, Solid Waste and Recycling. A little closer, yeah, thank you. Solid Waste and Recycling Division, Manager

1142
02:44:09.500 --> 02:44:19.989
Boardroom: for Public Works Zero Waste Division. Tonight, we are presenting a proposed cost recovery fee for zero-waste Plan Checks and compliance inspection services

1143
02:44:19.990 --> 02:44:26.379

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Boardroom: That are already being performed by staff in support of state mandates and local ordinances.

1144
02:44:26.720 --> 02:44:41.220
Boardroom: The purpose of this item is to establish a more sustainable funding mechanism for the existing services while continuing to support local businesses in Berkeley's environmental and climate action goals.

1145
02:44:42.210 --> 02:44:53.249
Boardroom: And hi, I'm Johnny DeLar, I'm the Senior Field Representative for the Zero Waste Division. So I do conduct some of these inspections and plan checks, so I'm here for support.

1146
02:44:55.160 --> 02:44:57.369
Boardroom: In this brief presentation.

1147
02:44:57.770 --> 02:45:06.419
Boardroom: We will, cover our staff recommendations, the proposed fee revenue table, and fiscal impact assessments.

1148
02:45:09.840 --> 02:45:16.300
Boardroom: Staff recommends adopting a cost recovery fee for existing zero-waste compliance activities.

1149
02:45:16.380 --> 02:45:32.619
Boardroom: These activities include construction and demolition recycling reviews, trash room and space allocation reviews, special event, waste reduction plans, foodware ordinance inspections, and SB 1383 food recovery.

1150
02:45:32.660 --> 02:45:40.249
Boardroom: compliance activities. These are all existing support services currently being provided by staff.

1151
02:45:45.050 --> 02:45:46.720
Boardroom: The bottom line…

1152
02:45:47.050 --> 02:45:57.919
Boardroom: Is that staff currently performs a significant amount of technical review and compliance-related work without a dedicated cost recovery mechanism.

1153
02:45:58.160 --> 02:46:10.840

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Boardroom: In 2025 alone, staff estimates spending over 3,000 hours conducting plant checks and inspections, with annual costs exceeding approximately $400,000.

1154
02:46:11.120 --> 02:46:20.069
Boardroom: Current plan checks and compliance inspection costs increasingly impacts a declining zero-waste Enterprise Fund.

1155
02:46:20.210 --> 02:46:37.520
Boardroom: Without a dedicated recovery mechanism, these costs continue to be absorbed within the Zero Waste Enterprise Fund, increasing fiscal pressure over time. Staff is recommending a flat $250 fee per activity to support

1156
02:46:37.520 --> 02:46:41.829
Boardroom: Partial cost recovery for these existing services.

1157
02:46:46.750 --> 02:46:54.010
Boardroom: Our funding gap, the projected deficit without action, is $419,000.

1158
02:46:54.250 --> 02:46:58.690
Boardroom: dollars combined for zero-waste Plan and Inspections.

1159
02:46:59.050 --> 02:47:06.390
Boardroom: These are specialized one-time technical review services that support construction projects, special events.

1160
02:47:06.660 --> 02:47:10.989
Boardroom: Food recovery programs, and the implementation of local ordinances.

1161
02:47:11.180 --> 02:47:17.590
Boardroom: These services are separate from direct refuse collection services funded through existing rates.

1162
02:47:17.600 --> 02:47:31.649
Boardroom: Without a dedicated cost recovery mechanism, these costs will continue to be absorbed within the Zero Waste Enterprise Fund, increasing ongoing fiscal pressure on the fund over time.

1163
02:47:39.710 --> 02:47:50.430

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Boardroom: The proposed fee amount is based on an average of approximate 2 hours of staff time required for review, coordination, inspection, documentation, and follow-up.

1164
02:47:50.650 --> 02:47:59.809
Boardroom: The objective is To establish a reasonable cost recovery mechanism for specialized services already being performed by staff.

1165
02:48:03.890 --> 02:48:14.009
Boardroom: This chart details the increase in growth of compliance checks and plan reviews from fiscal year 2022 to fiscal year 2025.

1166
02:48:14.110 --> 02:48:19.919
Boardroom: The number of plan checks and inspections is growing steadily over a year.

1167
02:48:20.060 --> 02:48:25.670
Boardroom: Over year, with no fee implementation or cost recovery mechanism in place.

1168
02:48:34.290 --> 02:48:37.909
Boardroom: Our fiscal impact assessment.

1169
02:48:38.330 --> 02:48:47.979
Boardroom: It's an estimated annual revenue of $419,000 per year. The purpose of this recommendation is straightforward, to establish

1170
02:48:48.440 --> 02:48:51.729
Boardroom: A recovery mechanism for these specialized services.

1171
02:48:51.940 --> 02:49:01.790
Boardroom: It's based on 2020… 2025 activity levels. The proposed fee structure is estimated to generate approximately $419.

1172
02:49:02.060 --> 02:49:05.260
Boardroom: Annually, the proposed fee would support

1173
02:49:05.520 --> 02:49:12.969
Boardroom: direct cost recovery and help offset operational and staff costs currently absorbed by the Zero Waste Enterprise Fund.

1174
02:49:13.540 --> 02:49:31.599

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Boardroom: while supporting the city's continued implementation of required state, unfunded, mandated programs. Staff is recommending implementation effective July 1st, 2026, with fees incorporated into existing permit review and compliance service processes.

1175
02:49:33.720 --> 02:49:37.720
Boardroom: I'll turn it over to, our interim director.

1176
02:49:38.730 --> 02:49:55.250
Boardroom: So before we jump into the staff recommendation slide, I do want to go on the record indicating that staff will be adding the following language to Exhibit A of the resolution, adopting the Zero Waste Plan Check and Compliance Inspection Schedule.

1177
02:49:55.570 --> 02:49:59.680
Boardroom: The language that is being added to Exhibit A is as follows.

1178
02:49:59.920 --> 02:50:15.759
Boardroom: Notwithstanding any other provisions of this fee schedule, fees associated with solar permit applications shall be applied in a manner consistent with government code 66015, where applicable.

1179
02:50:15.760 --> 02:50:21.030
Boardroom: The Zero Waste Plan Review and Compliance Inspections shall be adjusted.

1180
02:50:21.140 --> 02:50:22.310
Boardroom: reduced…

1181
02:50:22.420 --> 02:50:34.199
Boardroom: were waived as necessary to ensure that total permit-related fees do not exceed the maximum amounts permitted by state law. With that said, and recorded.

1182
02:50:34.240 --> 02:50:42.770
Boardroom: We'll move forward to staff recommendations. So tonight, staff has provided feedback, presentation data to support.

1183
02:50:43.060 --> 02:50:52.540
Boardroom: We're asking Council tonight to, support, adopting the resolution establish… establishing zero-waste Plan Check and Compliance Inspection fees.

1184

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02:50:52.740 --> 02:51:00.659
Boardroom: And also authorized Public Works to implement fee collections effective July 1st, 2026.

1185
02:51:03.670 --> 02:51:08.450
Boardroom: Thank you. Thank you. Thank you. Thank you, both… excuse me.

1186
02:51:08.580 --> 02:51:14.240
Boardroom: Thank you all so much. Does anyone have any questions? Yes, Vice Mayor Treyko.

1187
02:51:15.210 --> 02:51:24.469
Boardroom: Thank you so much. Yeah, I had more, but I'm going to, focus on, I think, 3 questions.

1188
02:51:24.580 --> 02:51:29.239
Boardroom: One that, just the statement you read,

1189
02:51:29.520 --> 02:51:33.279
Boardroom: That is a government code section that,

1190
02:51:33.440 --> 02:51:42.590
Boardroom: is a photovoltaic system fee cap? What is the relationship between this cap and…

1191
02:51:42.690 --> 02:51:45.420
Boardroom: Zero waste collection fees.

1192
02:51:50.880 --> 02:51:57.890
Boardroom: So the relationship may be that, There might be an overlap.

1193
02:51:58.040 --> 02:52:05.690
Boardroom: I'll give you an example. If a… Someone pulls a roofing permit.

1194
02:52:05.790 --> 02:52:17.239
Boardroom: And… and that activity, generates waste that needs to be either recycled or disposed, but that roofing permit, it's tied into some… a solar permit.

1195
02:52:17.410 --> 02:52:27.660

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Boardroom: Then that's where there's an overlap, and we need to make sure that we stay within the cap as we adjoint our, our, our fees to the,

1196
02:52:28.110 --> 02:52:29.230
Boardroom: To this code.

1197
02:52:30.340 --> 02:52:34.319
Boardroom: Got it. Thank you for clarifying that.

1198
02:52:35.620 --> 02:52:41.270
Boardroom: The report mentioned that certain inspection responsibilities,

1199
02:52:41.850 --> 02:52:49.920
Boardroom: appear to have shifted to public works due to staffing shortages. Do you anticipate this being a permanent change?

1200
02:52:53.140 --> 02:52:54.150
Boardroom: Yes.

1201
02:52:54.460 --> 02:52:55.360
Boardroom: Okay.

1202
02:52:56.020 --> 02:53:06.449
Boardroom: And if these fees are adopted, are there any additional compliance, education, or technical assistance efforts that staff would like to pursue in the future?

1203
02:53:08.550 --> 02:53:22.690
Boardroom: At this… at this time, we're pursuit. There are other compliance, inspections, but those are covered under our, regular rates, under regular scheduled collection services for…

1204
02:53:22.690 --> 02:53:30.169
Boardroom: our, you know, our resident community and our business community. These fees are… are for a small group.

1205
02:53:30.340 --> 02:53:40.359
Boardroom: of, of general contractors, architects. These are for ancillary services, things that are typically,

1206
02:53:40.660 --> 02:53:47.480

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Boardroom: We're not able to recover the cost because they're not covered under the regular scheduled service rates.

1207
02:53:48.580 --> 02:53:49.720
Boardroom: Thank you very much.

1208
02:53:51.190 --> 02:53:56.230
Boardroom: Thank you. Other questions from my Council colleagues? Councilmember Blackbee.

1209
02:53:57.220 --> 02:54:10.660
Brent Blackaby: Thanks. Real quick, question to the City Manager. Have… have we ever had to deploy, kind of, general fund transfers to the Zero Waste Enterprise Fund to, kind of make the fund solvent, cover these negative balances? Has that happened in the past?

1210
02:54:10.850 --> 02:54:12.479
Boardroom: No, it hasn't, Councilmember.

1211
02:54:12.680 --> 02:54:21.470
Brent Blackaby: Without this, is there a chance that as this… as the fund kind of diminishes, we might have to consider that in the future if we didn't pass something like this?

1212
02:54:21.860 --> 02:54:32.239
Boardroom: Yes, that's one of the things we really want to prevent from happening, is any kind of a general fund transfer, as we're already struggling with the budget and other general fund transfers, so yes.

1213
02:54:32.440 --> 02:54:34.029
Brent Blackaby: Okay, thank you, that's it.

1214
02:54:35.780 --> 02:54:37.820
Boardroom: Thank you. Other questions?

1215
02:54:37.950 --> 02:54:44.560
Boardroom: Is there any public comment on this item, item number 25, which is the Zero Waste Plan Checks and Compliance Inspection Fees?

1216
02:54:53.010 --> 02:55:04.860
Boardroom: It's, as I mentioned in the previous comment, it… we really do have to look at 1343 and starting to enforce it, providing warnings, and then…

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1217
02:55:05.490 --> 02:55:19.180
Boardroom: fines for noncompliance, and that goes with not only businesses, but also, apartment buildings. We need revenue right now to save our essential services. We have to do this.

1218
02:55:19.530 --> 02:55:30.639
Boardroom: Nobody likes paying more money in an uncomfortable time such as we're in right now. But it's just… it's just the reality. We have to do these things. Thank you.

1219
02:55:31.720 --> 02:55:40.950
Boardroom: Thank you. Any other public comment on this item online? There's one hand-raised, caller with a phone number ending in 211s.

1220
02:55:50.260 --> 02:55:58.039
Boardroom: Caller with a phone number ending in 211, this is for item 25, Zero Waste Plan Checks and Compliance Inspection Fees.

1221
02:56:01.970 --> 02:56:08.099
Boardroom: Alright, well… Okay. I guess not.

1222
02:56:08.300 --> 02:56:11.589
Boardroom: We'll, okay. …continue on. All right.

1223
02:56:11.990 --> 02:56:17.689
Boardroom: Thank you very much. Are there any, comments from my Council colleagues, starting with Vice Mayor Treykop?

1224
02:56:17.980 --> 02:56:26.190
Boardroom: Yeah, I, I will move the staff recommendation as amended.

1225
02:56:26.350 --> 02:56:30.380
Boardroom: And I would just,

1226
02:56:30.700 --> 02:56:35.700
Boardroom: I… I hope that this increase will,

1227
02:56:35.920 --> 02:56:43.299
Boardroom: bring the fund balance to, cost neutral, but…

1228

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02:56:43.570 --> 02:56:57.279
Boardroom: it is, exactly cost-neutral, and so, I, you know, just, wanted to… if this…

1229
02:56:57.580 --> 02:57:16.149
Boardroom: if expenses continue to outpace, revenue, even with this fee collection, I would be interested in this coming back to us at the end of next fiscal year. Thank you. I second Councilmember Trigube's speaking motion.

1230
02:57:17.370 --> 02:57:19.979
Boardroom: Vice Mayor Tragube's speaking motion.

1231
02:57:20.400 --> 02:57:26.050
Boardroom: And we need a motion to close the public hearing as well. Thank you. Is there a motion to close the public hearing? So moved. Second.

1232
02:57:26.450 --> 02:57:35.149
Boardroom: Can we take the roll on that, please? Okay. Closed public hearing. Councilmember Kesarwani? Yes. Taplin? Aye. Bartlett? Yes. Drago?

1233
02:57:35.450 --> 02:57:38.380
Boardroom: Aye. O'Keefe? Yes. Blackaby?

1234
02:57:38.380 --> 02:57:39.180
Brent Blackaby: Yes.

1235
02:57:39.690 --> 02:57:49.710
Boardroom: Lunapara? Yes. Humbert? Yes. And Mary Sheep? Yes. Okay, motion carries. Public hearing's closed, and there's a… the motion has been made to… on the item.

1236
02:57:51.400 --> 02:57:55.320
Boardroom: Yes, let's take the roll on that, please. Oh, well, okay. Are you ready?

1237
02:57:55.690 --> 02:58:00.320
Boardroom: Okay, this is, to adopt the,

1238
02:58:01.680 --> 02:58:06.529
Boardroom: Resolution for zero-waste plan checks and compliance inspection fees with the…

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1239
02:58:06.640 --> 02:58:12.030
Boardroom: Inclusion of the language that was read into the record for Exhibit A.

1240
02:58:12.810 --> 02:58:16.760
Boardroom: On the motion, Councilmember Kastarwani? Yes.

1241
02:58:16.860 --> 02:58:23.790
Boardroom: Kaplan? Aye. Bartlett? Yes. Trega? Aye. O'Keefe? Yes. Blackaby?

1242
02:58:23.790 --> 02:58:24.630
Brent Blackaby: Yes.

1243
02:58:25.030 --> 02:58:26.420
Boardroom: Luna Parra? Yes.

1244
02:58:26.620 --> 02:58:31.269
Boardroom: Humbert? Yes. And Mary Ishii? Yes. Okay, motion carries.

1245
02:58:31.400 --> 02:58:33.799
Boardroom: Okay, thank you very much.

1246
02:58:33.910 --> 02:58:39.680
Boardroom: Alright, thank you so much for the presentation, thank you for being here, thank you for coming back.

1247
02:58:40.230 --> 02:58:57.579
Boardroom: And, moving on to item number 26, which is Appeal of the Housing Advisory Commission decision to deny the appeal and affirm the determination by the building official for 1615 Fairview Street regarding the applicability of exterior elevated elements inspection requirement.

1248
02:58:57.810 --> 02:59:04.250
Boardroom: Okay. This is for staff, so… Stand up. Yeah.

1249
02:59:04.510 --> 02:59:17.660
Boardroom: You're welcome to pull up a chair. If you'd like to sit right there, you can. So the way that this is going to go, so we're opening the public hearing for this item, and we will have a presentation from the planning staff.

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1250
02:59:17.750 --> 02:59:25.749
Boardroom: And then an appellant comment period, which will be 7 minutes. And then public comments, 1 minute per speaker.

1251
02:59:26.350 --> 02:59:40.039
Boardroom: yield up to a maximum of 2 minutes. We will then take Council questions, close the public hearing, have council comments, and then take a vote, and there are 3 different options below, which I will get into later.

1252
02:59:40.040 --> 02:59:47.310
Boardroom: So, we're gonna start off with a presentation from the planning staff. So, if you'd like to sit while you wait, please feel free, and…

1253
02:59:47.870 --> 02:59:52.239
Boardroom: Or if someone can get you a chair, that would be helpful too, I think.

1254
02:59:52.810 --> 02:59:53.840
Boardroom: Go ahead.

1255
02:59:56.480 --> 03:00:14.510
Boardroom: Thank you, Mayor. Good evening, Councilmembers. I'm Jordan Klein, Director of Planning and Development, joined at the staff table by Jeff Jensen, the Assistant Building and Safety Manager, and Galadriel Burr, who's a Community Services Specialist in the Special Projects Unit of Building and Safety, and she will be making the presentation.

1256
03:00:16.050 --> 03:00:26.659
Boardroom: Thank you, Jordan. Good evening, Mayor, Council Members. So, I'm just gonna jump right into it. I know it's a long night. Let's see…

1257
03:00:29.060 --> 03:00:30.200
Boardroom: Apologies.

1258
03:00:31.880 --> 03:00:39.110
Boardroom: My first slide… is not… Okay.

1259
03:00:39.380 --> 03:00:40.870
Boardroom: Alright, my apologies.

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1260
03:00:40.920 --> 03:00:50.850
Boardroom: So, in immediate response to the balcony collapse at 2020 Kittredge Street on Jan… June 16th, 2015, which resulted in the death

1261
03:00:50.850 --> 03:01:05.200
Boardroom: Of 6 students and seriously injured 7 others. An emergency ordinance was adopted requiring inspection and certification of weather-exposed exterior elevated elements for all buildings containing 3 or more dwelling units.

1262
03:01:05.300 --> 03:01:16.120
Boardroom: In 2018, the state adopted inspection requirements under the California Health and Safety Code, and these were subsequently codified under Berkeley Municipal Code 19.40.

1263
03:01:16.350 --> 03:01:34.129
Boardroom: Both state and local laws require that all buildings containing 3 or more dwelling units with exterior elevated elements that are located 6 feet or more above grade to be inspected on a cyclical basis, and that they require certification by licensed professionals

1264
03:01:34.130 --> 03:01:42.830
Boardroom: And neither state nor Berkeley Municipal Code provide exemptions for owner occupancy, vacancy, or income level.

1265
03:01:44.680 --> 03:01:57.919
Boardroom: So this slide shows examples of exterior elevated elements. It includes weather-exposed wood and metal decks, walkways, balconies, stairway systems, guardrails, and handrails.

1266
03:01:58.000 --> 03:02:07.030
Boardroom: Berkeley's inspection requirements are, managed under the City's Exterior Elevated Elements Program, or E3 program for short.

1267
03:02:07.200 --> 03:02:11.729
Boardroom: And these inspections must be performed by licensed or certified professionals.

1268
03:02:14.190 --> 03:02:14.940
Boardroom: Thanks.

1269
03:02:16.070 --> 03:02:17.840
Boardroom: I added. Okay.

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1270
03:02:18.430 --> 03:02:27.990
Boardroom: So the appellant's property at 1615 Fairview Street is a 4-unit building with existing exterior elevated elements.

1271
03:02:30.940 --> 03:02:37.400
Boardroom: In 2016, Mr. Merowitz first submitted an E3 exemption declaration form

1272
03:02:37.580 --> 03:02:53.529
Boardroom: that declared under penalty of perjury that his property did not have exterior elevated elements. Later that same year, he submitted a certification form verifying that his property did, in fact, have exterior elevated elements.

1273
03:02:53.800 --> 03:03:08.619
Boardroom: In 2021, the next E3 program cycle, Mr. Merowitz again submitted an exemption declaration form stating that his property did not have exterior elevated elements, and that his building had fewer than 3 dwelling units.

1274
03:03:09.420 --> 03:03:16.900
Boardroom: In September of 2025, staff issued a notice of violation and a warning of administrative citation.

1275
03:03:17.070 --> 03:03:34.950
Boardroom: Mr. Merowitz then claimed exemption from inspection requirements and requested a formal determination. In October of 2025, the building official issued a determination stating that the property was not exempt from E3 inspection requirements.

1276
03:03:35.210 --> 03:03:48.600
Boardroom: Mr. Merowitz then appealed the determination to the Housing Advisory Commission, and on January 15, 2026, the HACC denied Mr. Merowitz's appeal, and affirmed the building official's determination.

1277
03:03:49.550 --> 03:04:07.269
Boardroom: So, for the sake of brevity, I have summarized duplicative points from the appeal, and they've been combined, in 5 different issues. So the first issue that was raised by the appellant was the assertion that the rental housing safety program

1278
03:04:07.340 --> 03:04:18.360

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Boardroom: Provides annual inspections for exterior elevated elements, and that there are provisions for self-certification and exemptions for vacant and owner-occupied units.

1279
03:04:18.450 --> 03:04:28.700
Boardroom: Staff's response is that the Rental Housing Safety Program and the E3 inspection Program are two distinct programs that are mandated under separate legislation.

1280
03:04:28.760 --> 03:04:40.579
Boardroom: Any exemptions that are applicable to RHSP are not relevant to the E3 inspection program, and per state law, E3 inspections cannot be performed by city employees.

1281
03:04:40.640 --> 03:04:55.539
Boardroom: The Rental Housing Safety Program Ordinance requires inspection of rental units, meaning units that are either rented or are available to rent. Therefore, if a unit is owner-occupied, it may qualify for an exemption under the RHSP program.

1282
03:04:55.610 --> 03:05:14.740
Boardroom: In contrast, state and local laws mandating E3 inspection requirements require that all buildings containing 3 or more dwelling units with existing exterior elevated elements are to be inspected on a cyclical basis, regardless of whether the building or any of the units are owner-occupied or vacant.

1283
03:05:16.860 --> 03:05:23.050
Boardroom: The next issue that the appellant raised is that existing provisions and pro… oh, sorry.

1284
03:05:23.470 --> 03:05:24.400
Boardroom: Yikes!

1285
03:05:24.830 --> 03:05:25.990
Boardroom: My apologies.

1286
03:05:26.300 --> 03:05:33.260
Boardroom: The next… I apologize, I'm nervous.

1287
03:05:33.400 --> 03:05:45.340
Boardroom: The appellant asserts that the building department and planning department were the creators of the balcony collapse, and that the balcony collapse was due to too much weight and too many people.

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1288
03:05:45.620 --> 03:05:59.859
Boardroom: So, staff's response is that the balcony at 2020 Kittredge failed due to severe dry rot and water damage. This was determined through multiple investigations by subject matter experts, including city staff.

1289
03:05:59.860 --> 03:06:05.839
Boardroom: third-party licensed professionals, and independent investigations by the California State Licensing Board.

1290
03:06:05.840 --> 03:06:10.530
Boardroom: This determination was also confirmed by the District Attorney's findings.

1291
03:06:10.530 --> 03:06:33.379
Boardroom: The design of the balcony that failed was also found to have been compliant with the building code at the time it was constructed. And regardless of the details that led to the tragedy, or that precipitated adoption of the legislation that mandates the E3 inspection requirements, the Building and Safety Division is responsible for enforcing local and state codes, and staff have properly

1292
03:06:33.380 --> 03:06:37.889
Boardroom: applied E3 inspection requirements in the case of 1615 Fairview Street.

1293
03:06:40.450 --> 03:06:57.200
Boardroom: The appellant has also asserted, that the… or has questioned the application of the hardship exemption for low-income property owners who cannot afford the appeal fee, and asserts that the building official imposed a $1,000 fee.

1294
03:06:57.350 --> 03:07:07.800
Boardroom: Staff's response is that the laws governing E3 inspection requirements do not provide an exception for low-income property owners. And to clarify.

1295
03:07:11.210 --> 03:07:12.050
Boardroom: Thank you.

1296
03:07:12.520 --> 03:07:16.110
Boardroom: So this would be the fourth issue. My apologies.

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1297
03:07:16.610 --> 03:07:22.190
Boardroom: So, the… the hardship exemption for low-income property owners,

1298
03:07:22.190 --> 03:07:38.000
Boardroom: The laws that govern the E3 inspection requirements do not provide an exception for low-income property owners, and the $1,000 fee that was actually addressed here was for the HACS appeal fee, and there's not an additional fee that was assessed for this council appeal.

1299
03:07:41.340 --> 03:07:48.619
Boardroom: And… the final issue raised here is the appellant questions the impartiality of staff and prior hearing bodies.

1300
03:07:48.770 --> 03:08:06.660
Boardroom: Staff's response is that E3 inspection requirements universally apply to all buildings with 3 or more dwelling units that contain exterior elevated elements. Staff have correctly identified and applied E3 inspection requirements for 1615 Fairview Street.

1301
03:08:08.190 --> 03:08:26.029
Boardroom: Staff recommends that Council deny the appeal and affirm the building official's determination that 1615 Fairview Street is not in compliance with the City's E3 inspection program, and to uphold the associated fees consistent with Council adopted policy and state law.

1302
03:08:34.560 --> 03:08:37.039
Boardroom: Thank you, that concludes the staff presentation.

1303
03:08:45.680 --> 03:08:48.940
Boardroom: Got it. Okay.

1304
03:08:49.110 --> 03:09:01.849
Boardroom: Thank you. We will… let me go look at the script. We will now, hear from Mr. Marowitz, the appellant. Oh, first, are there any questions for…

1305
03:09:02.020 --> 03:09:04.039
Boardroom: Are there any questions for staff?

1306
03:09:05.800 --> 03:09:22.680
Boardroom: Okay, I'm gonna yield back to the mayor. Sorry, so I actually need to recuse myself. I just realized that this house, I think, is too

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close to my house. So, and I didn't realize, because it's on a different street, but…

1307
03:09:22.750 --> 03:09:35.490
Boardroom: Just geographically. So, I'm gonna give the process over to you, Vice Mayor, and then you will have to lead it. So I'm gonna send it to you right now, I think… Okay, I have it pulled up. You have it? Yes.

1308
03:09:35.650 --> 03:09:37.270
Boardroom: Okay, great.

1309
03:09:37.760 --> 03:09:38.680
Boardroom: Aight.

1310
03:09:38.840 --> 03:09:40.430
Boardroom: Thank you,

1311
03:09:40.990 --> 03:09:47.820
Boardroom: Okay, we will now hear from the appellant. Appellant, you have up to 7 minutes to speak.

1312
03:09:48.030 --> 03:09:53.120
Boardroom: Justice can't be served in 7 minutes, I'm just putting that out front. You all are intelligent people.

1313
03:09:53.300 --> 03:09:55.340
Boardroom: One attorney, as far as I know.

1314
03:09:55.630 --> 03:10:04.780
Boardroom: So you're not going to have a great grasp of what I'm about to introduce, and I wanted to introduce it first, because I may run out of time, rather than what I really want to focus on.

1315
03:10:05.070 --> 03:10:13.100
Boardroom: I'm gonna read this, and I don't know… I submitted this to you guys today, so you might not have had an opportunity, so I'm just… it's my oral arguments.

1316
03:10:13.430 --> 03:10:30.020
Boardroom: So I'm just gonna read verbatim. And if you… the one you have in your mailbox, you can keep as a record to refer back to. Do you mind pulling the mic a little closer to you? Oh, thank you. Ms. Triple E is based on several fronts. I have and continue to call into question.

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1317
03:10:30.170 --> 03:10:39.629
Boardroom: actual virtual certainty that every aspect of this appeal by Housing Advisory Commission, Building Officials, City Attorney's office, and subsequently the City Mayor are without

1318
03:10:39.630 --> 03:10:55.460
Boardroom: required fairness and impartiality, as required by the 14th Amendment of the U.S. Constitution. The creation of the Triple E mandate violates the U.S. Constitution. This is true and accurate for not only the local ordinance for Triple E, but also the California State Bill 721.

1319
03:10:55.880 --> 03:11:01.109
Boardroom: I introduced this first rather than later to prevent my time allotment of 7 minutes from running out.

1320
03:11:01.290 --> 03:11:09.699
Boardroom: These balcony laws violate the Fourth Amendment against unconsented, unwarranted searches of a property, especially the property's curtilage.

1321
03:11:09.970 --> 03:11:17.160
Boardroom: The Fifth Amendment and the property's owner's right to exclude government is violation and protected civil right as well.

1322
03:11:17.420 --> 03:11:33.030
Boardroom: And the 14th Amendment, for a complete disregard of due process, including fair and impartial due process by a fair and impartial trier effect, is also a violation. As such, the EEE mandate is illegal and unenforceable on its face.

1323
03:11:33.530 --> 03:11:51.950
Boardroom: An interesting and illuminating factual reality of lawmaking is that there is no mandated requirement that any proposed law must first assure and guarantee that before being enacted, any such law must not be in conflict with the U.S. Constitution, and must not deprive the citizen's civil rights.

1324
03:11:52.490 --> 03:12:10.840
Boardroom: Gee, I wonder why it is that there isn't a legal requirement mandating that. Where is the accountability of our legislators, city staff, and in government, when there's no requirement of constitutional affirmation? Interesting, each of these entities have immunity from accountability, be it qualified, municipal, or legislative immunity.

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1325
03:12:11.200 --> 03:12:19.069
Boardroom: But conversely, full and strict accountability is required from the citizens and the taxpayers. There is nothing but hypocrisy in our systems.

1326
03:12:19.500 --> 03:12:31.590
Boardroom: Then there is the issue of city staffs changing the rules of the appeal, as set forth in the HAC Appeals in Chapter 19.90. The city changed the rules twice in their relentless effort to gang up strategies.

1327
03:12:31.820 --> 03:12:45.100
Boardroom: In fact, I recently discovered that in reference to the HAC hearing and its video of that hearing, city staff is allowed to transcribe the video, eliminating anything that city staff wants eliminated, as determined by the city, of course.

1328
03:12:45.280 --> 03:12:59.359
Boardroom: For instance, at the very beginning of my hearing with the HAC, I asked point blank, can you all be fair and impartial as a trier of fact? Not one, not even one of the HAC responded to that immediate question.

1329
03:12:59.370 --> 03:13:06.690
Boardroom: Isn't that curious? As you might expect, these specific exchanges were eliminated by city staff. Justice, which…

1330
03:13:06.910 --> 03:13:23.719
Boardroom: with such unlimited discretion by city staff as legislatively provided by city council, city staff can manipulate the facts and the omission of the facts any way they see fit to win, no matter what the truth might be. There is… this is not fair or an impartial

1331
03:13:24.000 --> 03:13:25.750
Boardroom: It is injustice.

1332
03:13:26.050 --> 03:13:38.019
Boardroom: When, if ever, will city council hold city staff strictly accountable as the city holds the citizens, voters, taxpayers strictly accountable, based on the historical track record? Never.

1333
03:13:38.840 --> 03:13:54.800
Boardroom: They then consult with the city attorney and the building official designates to formulate the HAC decision. That's in my prior

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documents. So, there's a threefold. One dating back to February, one dated back a few weeks ago, and this one.

1334
03:13:54.820 --> 03:14:04.449
Boardroom: And I included exhibits, etc. So the question is, do you guys want to even question the constitutionality of Triple E?

1335
03:14:04.750 --> 03:14:23.500
Boardroom: It violates both the Fourth, the Fifth, and the 14th Amendment. And it's unenforceable. It must be declared unenforceable. So that's the primary focus now, because it's the strongest argument. As far as the RHSP, it's a… it was effective for decades. Now, suddenly, it's archaic.

1336
03:14:23.920 --> 03:14:41.340
Boardroom: This was an extension, and I expect the argument when I go to federal court, because I expect I'll be denied. So I'm going to federal court, I'm putting out the word, as opposed to state court, because the impact of the state law 721 won't be impactful in a federal court at all.

1337
03:14:41.730 --> 03:14:51.930
Boardroom: But, that being said, I wanted to focus more so on, the extension of

1338
03:14:52.380 --> 03:15:01.799
Boardroom: the rules that they've applied to the, EEE that was not just to protect balconies, it was to protect everything.

1339
03:15:02.260 --> 03:15:18.359
Boardroom: And they're gonna argue… I anticipate their argument's gonna be, safety is always the magic word, when in fact, they're fishing for safety violations. And you can't do that without good, probable cause. These are all lawyers' words.

1340
03:15:18.590 --> 03:15:23.080
Boardroom: I've become a somewhat proficient, non-licensed attorney.

1341
03:15:23.180 --> 03:15:32.049
Boardroom: And I will embarrass the city attorney when it comes to this case, because they can't fight constitutionality unless you have a basis.

1342
03:15:32.220 --> 03:15:44.409

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Boardroom: And they're gonna say, well, the safety, and… but the case precedents reflect the idea of it must be narrowly construed to minimize the impact on property owners.

1343
03:15:44.530 --> 03:15:58.869
Boardroom: And they're not going to be able to do that, because what they did is exceeded the balcony, they exceeded the decks, they went… and whether it's a triplex or whether it's a rental property, it's a triplex is a rental property. So they're just using semantics to confuse people.

1344
03:15:58.870 --> 03:16:06.040
Boardroom: I want to focus on the abuse of process and the unfairness and injustice by city staff.

1345
03:16:06.280 --> 03:16:09.130
Boardroom: There's so many ways they've just plain…

1346
03:16:09.410 --> 03:16:24.919
Boardroom: ganged up on me in a variety of ways. They didn't announce to me that, Mr. Newman, Newmanville, didn't indicate why he brought Jordan Klein, the planning director, in, why he brought in the city manager's office.

1347
03:16:24.920 --> 03:16:37.470
Boardroom: And so, all of a sudden, it extended from beyond the building official and Ms. Burr, then it's now all these three heads of departments, so they can gang up on me some more, and accelerate and expand.

1348
03:16:37.730 --> 03:16:45.130
Boardroom: It's just a game to win. It's not about fairness, and it's not about impartiality. It's about breaking me down.

1349
03:16:45.680 --> 03:16:52.959
Boardroom: It's, and I have… I asked you to read this, because I'm… I'm out of time, already.

1350
03:16:55.160 --> 03:17:02.379
Boardroom: This… that's… 7 minutes is not justice. Thank you. Thank you, that is your time. Thank you so much.

1351
03:17:02.760 --> 03:17:10.609
Boardroom: We are… I'm now going to ask if there are any public comments from members of the public.

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1352
03:17:15.350 --> 03:17:19.190
Boardroom: If there are none in the room, and…

1353
03:17:19.390 --> 03:17:26.390
Boardroom: Mr. Pellin, I'm actually going to ask you… for you to step away from the dice. Thank you.

1354
03:17:26.660 --> 03:17:39.910
Boardroom: Okay. Are there any comments on my… I don't see any hands raised. Members of the public, if you're wishing to comment on this item, please raise your virtual hand.

1355
03:17:40.620 --> 03:17:43.300
Boardroom: Seeing no virtual hands.

1356
03:17:43.900 --> 03:17:50.310
Boardroom: We are going to bring this back to the Council for questions. Are there any questions?

1357
03:17:53.760 --> 03:18:04.030
Boardroom: Here, seeing no questions, we will go to Council comments,

1358
03:18:05.210 --> 03:18:11.330
Boardroom: Oh, we need to close the public hearing, thank you. I'm going to entertain a motion to close the public hearing. So moved.

1359
03:18:12.380 --> 03:18:27.610
Boardroom: Okay. There's been a motion and a second. Clerk, please call the roll. Okay, to close the public hearing, Councilmember Kesarwani? Yes. Taplin? Aye. Bartlett? Yes. Tregeb? Aye. O'Keefe? Yes. Blackaby?

1360
03:18:27.610 --> 03:18:28.350
Brent Blackaby: Yes.

1361
03:18:28.470 --> 03:18:33.870
Boardroom: Lunapara? Yes. Humbert? Yes. And Mary, she is recused.

1362
03:18:34.070 --> 03:18:43.860
Boardroom: Public hearing is closed. Okay, thank you. We're on to Council comments and possible action, and for this appeal,

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1363
03:18:43.880 --> 03:18:59.060
Boardroom: The Council may do any one of the following, continue the public hearing, remand the matter to the Housing Advisory Commission, or reverse or reform wholly or partly modify any decision, determination, or requirement of the Commission.

1364
03:19:01.330 --> 03:19:03.420
Boardroom: Councilmember Bartlett.

1365
03:19:04.790 --> 03:19:22.109
Boardroom: Thank you, Vice Mayor Tragob. And thank you for your presentation, and thank you for your presentation as well. You are my constituent, so of course I am sympathetic and all ears to you. We have spoken on the phone many times about this. I've walked over and seen the place myself as well.

1366
03:19:22.660 --> 03:19:34.290
Boardroom: You know, looking through this, right, and discussing this earlier, and having an early familiarity with the issue as well, I have to… I want to share some context with you here.

1367
03:19:34.330 --> 03:19:50.229
Boardroom: So, the law that this E3 is born from, and all that, it comes from here when this balcony collapse happened. And it happened in a building where my father and I had a business, a coffee shop, and every time it rained, the rain would flood down

1368
03:19:50.230 --> 03:20:04.509
Boardroom: the back of the building, inside the parking area, it's the inside of the building. Like, torrential columns of water would come down every time it rained. And I knew the program, too, that had kids from Ireland come over here, that building, they're my customers.

1369
03:20:04.520 --> 03:20:07.550
Boardroom: So, when the balcony collapsed.

1370
03:20:07.630 --> 03:20:09.980
Boardroom: Due to this rot of the wood.

1371
03:20:10.140 --> 03:20:17.839
Boardroom: From the water inside the building, we were caught in the wares, and it was tragic, it was terrible, and, never again.

1372

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03:20:17.960 --> 03:20:24.289
Boardroom: Right? So, I say this because in your, in your… In your legal analysis, that…

1373
03:20:24.450 --> 03:20:38.569
Boardroom: 14th Amendment, Fifth Amendment, your constitutional analysis here, and I'm welcome… I welcome your approaching us from a constitutional point of view and going to the, the appropriate, courts. However, you should know that

1374
03:20:38.570 --> 03:20:53.160
Boardroom: you know, governments have broad, broad powers for health and safety protocols, right? To protect their citizens, to protect their property. And unless those decisions are, you know, arbitrary or capricious, as they say, random or bad.

1375
03:20:53.290 --> 03:21:02.940
Boardroom: Right? Then they tend to hold sand, or they exceed the statute, right? In this instance, I would argue that, it wasn't arbitrary.

1376
03:21:04.300 --> 03:21:11.679
Boardroom: You had… looking at this, you have 6… Six elements that are direct

1377
03:21:12.150 --> 03:21:15.789
Boardroom: directly applicable to the E3 law.

1378
03:21:15.950 --> 03:21:18.040
Boardroom: Which is 6 feet above the ground.

1379
03:21:18.470 --> 03:21:23.089
Boardroom: Because if that falls, someone gets hurt. And that's our mission, to prevent that from happening again.

1380
03:21:23.640 --> 03:21:28.779
Boardroom: We also… It's not capricious, it's not bad.

1381
03:21:30.130 --> 03:21:32.140
Boardroom: What do we have to do? We didn't single you out.

1382
03:21:32.590 --> 03:21:37.600

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Boardroom: Everyone in the city that has a balcony above 6 feet is subject to this investigation.

1383
03:21:38.530 --> 03:21:40.060
Boardroom: Into these requirements.

1384
03:21:41.100 --> 03:21:43.460
Boardroom: And we didn't penalize you above others.

1385
03:21:44.900 --> 03:21:49.579
Boardroom: We gave you chances, we did what we do what we can do. As the staff said, we do not control

1386
03:21:50.760 --> 03:21:53.860
Boardroom: This process, this is a state-mandated operation.

1387
03:21:55.040 --> 03:21:59.469
Boardroom: That, obviously, is to good effect, as we've not had another balcony drop.

1388
03:21:59.710 --> 03:22:03.680
Boardroom: Since then, And… Hopefully never again.

1389
03:22:04.390 --> 03:22:08.979
Boardroom: So, I gotta say, I appreciate your passion.

1390
03:22:09.120 --> 03:22:17.170
Boardroom: and and your effort to embrace the law, but I would encourage you To take that same passion.

1391
03:22:17.640 --> 03:22:19.560
Boardroom: And embrace the safety of your tenants.

1392
03:22:21.840 --> 03:22:25.430
Boardroom: Because, just as you're my constituent, so are they.

1393
03:22:26.110 --> 03:22:26.890
Boardroom: Okay.

1394
03:22:27.100 --> 03:22:28.639
Boardroom: I refuse to be a landlord anymore.

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1395
03:22:29.290 --> 03:22:40.809
Boardroom: I think you will. Show me the building, I'll take it over. There will be no crosstalk. Please continue, Councilmember. Thank you, Vice Mayor. So, so with that being said, you know, I just, again.

1396
03:22:40.830 --> 03:22:51.990
Boardroom: I understand these are, these are tough, these are tough things to deal with, but they are necessary. And I encourage you to re-enter the business of providing shelter for people, because we need it.

1397
03:22:54.010 --> 03:22:55.720
Boardroom: Okay, now.

1398
03:22:56.050 --> 03:23:08.060
Boardroom: No, but I'm addressing you. But anyway, so listen, with that, I'm going to move to adopt the staff recommendation, because there just is not a basis to deny

1399
03:23:08.240 --> 03:23:09.340
Boardroom: The findings.

1400
03:23:10.390 --> 03:23:16.799
Boardroom: Okay, is there a second? There's a second. Okay, it's been moved and seconded. Any further comments?

1401
03:23:19.090 --> 03:23:23.810
Boardroom: Okay. I,

1402
03:23:25.200 --> 03:23:32.579
Boardroom: I will make a brief comment, because this is an issue near and dear to my heart.

1403
03:23:33.260 --> 03:23:46.030
Boardroom: The tragic, terrible accident that led to, 6 people, losing their lives in the prime of their lives happened in my district.

1404
03:23:46.960 --> 03:23:53.560
Boardroom: last year, I had a chance to absorb that tragic event.

1405
03:23:53.770 --> 03:24:01.150

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Boardroom: with a delegation from Ireland, including some of the parents And…

1406
03:24:01.880 --> 03:24:07.270
Boardroom: When I looked in their eyes, I vote.

1407
03:24:07.520 --> 03:24:17.449
Boardroom: I was able to tell them that I… I will never imagine what, they have to go through, and are still going through.

1408
03:24:17.580 --> 03:24:23.790
Boardroom: But one thing that I can promise is that on our watch.

1409
03:24:23.970 --> 03:24:34.929
Boardroom: We will do everything possible to ensure that there will be no such tragedies ever again.

1410
03:24:35.830 --> 03:24:42.960
Boardroom: I followed the E3 ordinance closely, while I served on the Housing Advisory Commission.

1411
03:24:43.740 --> 03:24:56.979
Boardroom: And I was grateful for the city's, prompt response to that tragedy. And in fact, the city's, prompt response and the E3 ordinance

1412
03:24:57.180 --> 03:25:03.120
Boardroom: Became a model for what later became state law.

1413
03:25:04.340 --> 03:25:23.110
Boardroom: I think the city's police powers and the state's are very clear on this matter. We do have the power to regulate, E3, and I will be supporting this motion. If there are no other comments, Clerk, would you please call the roll? Okay, to…

1414
03:25:23.110 --> 03:25:39.570
Boardroom: Affirm the decision of the Housing Advisory Commission, deny the appeal, and uphold the associated fees on the motion. Councilmember Kesarwani? Yes. Taplin? Aye. Bartlett? Yes. Trega? Aye. O'Keefe? Yes. Blackaby?

1415
03:25:39.570 --> 03:25:40.300
Brent Blackaby: Yes.

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1416
03:25:40.800 --> 03:25:47.669
Boardroom: Lunapara? Yes. Humbert? Yes. And Mary Ishi is recused, and the motion, carries.

1417
03:25:48.320 --> 03:25:55.179
Boardroom: Thank you very much. We're going to briefly recess for the mayor to return.

1418
03:26:23.160 --> 03:26:23.899
Boardroom: Very good.

1419
03:26:24.690 --> 03:26:27.679
Boardroom: Do you need… do you need to take a recess?

1420
03:26:27.900 --> 03:26:30.220
Boardroom: Okay. All right, well, we will continue then.

1421
03:26:31.220 --> 03:26:40.259
Boardroom: Okay, thank you very much, Vice Mayor, for handling that. And apologies, folks, for not realizing earlier.

1422
03:26:40.640 --> 03:26:42.499
Boardroom: Alright, so we are moving on.

1423
03:26:42.640 --> 03:26:50.900
Boardroom: Excuse me, to item number 27, discussion about the desired qualifications for the next Director of Police Accountability. So…

1424
03:26:51.410 --> 03:26:55.510
Boardroom: For those of you that don't know, or… Actually…

1425
03:26:56.190 --> 03:27:07.089
Boardroom: I feel like everyone here knows. But just so, just so, folks know, we have hired WBCP Inc, which is a recruiter.

1426
03:27:07.120 --> 03:27:21.199
Boardroom: And they are helping us to recruit for the Director of Police Accountability position. So far, they have had conversations with community members. We actually have a survey that's out.

1427
03:27:21.310 --> 03:27:28.550

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Boardroom: And this is our opportunity as council members to let this recruiter know

1428
03:27:28.630 --> 03:27:31.730
Boardroom: About the qualifications that we would like to see.

1429
03:27:31.730 --> 03:27:51.770
Boardroom: in our, in our new Director of Police Accountability. So this is a really exciting opportunity, and, one thing I did just want to say before, I'm going to pass it over to Lauren, who is on the line. Lauren's been doing a great job. Thank you very much, Lauren. And Lauren, actually, if you could raise your hand as well, so that our city clerk can find you.

1430
03:27:53.270 --> 03:28:07.510
Boardroom: what I'd like to focus this conversation on is, like, aspirational, what is it that we want, as opposed to what is it that we don't want, if… I think that that will be a helpful framing for us as we're… as we're having this conversation, so,

1431
03:28:08.460 --> 03:28:14.440
Boardroom: I think, hopefully, Lauren is… Okay.

1432
03:28:17.710 --> 03:28:20.329
Boardroom: And I will let Lauren, help us.

1433
03:28:20.560 --> 03:28:25.830
Boardroom: walk through this process. There she is. I see you, Lauren. Thank you so much for being here.

1434
03:28:26.220 --> 03:28:45.650
Lauren Gerson-Greene: Absolutely. Thank you, Mayor Ishii. And Council Members, thank you very much for the opportunity to join you. I'm sorry that I'm not able to be there in person. I do look forward to meeting you all in person, when I'm there for interviews. But I, thank you, Mayor Ishii, for the introduction.

1435
03:28:45.860 --> 03:28:51.810
Lauren Gerson-Greene: I know you've covered a lot of ground this evening, so I'm gonna try to keep this concise, but…

1436
03:28:51.880 --> 03:29:01.209

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Lauren Gerson-Greene: As Mayor Ishii mentioned, I have been working with her and Councilmembers Lunapara and Humbert to begin the recruitment for the Director of Police Accountability.

1437
03:29:01.210 --> 03:29:14.329
Lauren Gerson-Greene: And, we're at this critical juncture in the recruitment process where we're taking a lot of feedback, and as the Mayor mentioned, we did have a community meeting. We do have a survey running, which is still, open for…

1438
03:29:14.330 --> 03:29:23.359
Lauren Gerson-Greene: For responses, so for anyone who is online or in the building listening, that will… that survey will be open through at least tomorrow.

1439
03:29:23.360 --> 03:29:34.090
Lauren Gerson-Greene: And the information for the survey is posted on the news section of the City's website, so definitely still opportunities to participate, and to provide community feedback.

1440
03:29:34.090 --> 03:29:53.239
Lauren Gerson-Greene: But I'm excited to hear from you all on the Council this evening about what you would like to see in candidates for this role. This is going to inform the ideal candidate profile that I'll use to prescreen candidates, that the subcommittee will use to screen candidates, that will ultimately help us form interview questions and inform the process in a variety of ways.

1441
03:29:53.350 --> 03:30:07.600
Lauren Gerson-Greene: In your council, in your agenda packet was a few broad questions that I offered up for you to consider, the most central of which is, what are the competencies, interpersonally and technically, you're looking for in candidates?

1442
03:30:07.620 --> 03:30:22.250
Lauren Gerson-Greene: But also, what would you identify as challenges and opportunities for a candidate stepping into the role, and what would you identify as the most critical priorities for a new director stepping into this role in the next, I would say, like, 12 to 18 months?

1443
03:30:22.280 --> 03:30:26.400
Lauren Gerson-Greene: Those would be things that it's important for me to understand. So…

1444
03:30:26.650 --> 03:30:40.410

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Lauren Gerson-Greene: Mayor Ishii, I am sure that you have a preferred organized way that you'd like to do this, but I would love to just hear from the Council, and I'll take avid notes and ask questions, and would just love to hear your feedback.

1445
03:30:41.140 --> 03:30:50.309
Boardroom: Thank you, I appreciate that, Lauren. First I just want to check in with my Councilmember colleagues to see if you all have any questions about this process, or, like, what we're asking you to do today.

1446
03:30:51.980 --> 03:30:58.440
Boardroom: Okay, very good. So, Lauren, is it actually, is it possible to maybe put the questions up, and…

1447
03:30:58.440 --> 03:30:59.650
Lauren Gerson-Greene: Yes.

1448
03:30:59.800 --> 03:31:07.360
Boardroom: I think that might be helpful, and then we can have the council members, address those questions. It just will be easier, I think, if everyone can see them.

1449
03:31:07.920 --> 03:31:08.660
Lauren Gerson-Greene: Yes.

1450
03:31:19.840 --> 03:31:22.589
Lauren Gerson-Greene: Okay, is my screen up?

1451
03:31:23.290 --> 03:31:24.480
Boardroom: Yes.

1452
03:31:24.560 --> 03:31:32.579
Boardroom: Excellent. Do you mind making it a bit bigger, just doing a, yeah, a few… couple more. That's great, that's great, thank you.

1453
03:31:32.580 --> 03:31:50.920
Boardroom: Thank you so much. Okay, so, Council colleagues, if you can just press your buttons, and I will have you each go through and answer these questions, I think that will be great. I imagine that as folks are speaking, you might have more ideas, so it's okay if we need to kind of come back around again. Alright, I'm going to start us off with Councilmember Taplan.

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1454
03:31:51.950 --> 03:31:54.220
Boardroom: Thank you very much.

1455
03:31:55.500 --> 03:32:04.729
Boardroom: I'm, so I think… Going down the questions here. If my time can start, that would be great.

1456
03:32:05.320 --> 03:32:06.949
Boardroom: Thank you.

1457
03:32:07.530 --> 03:32:22.010
Boardroom: Yeah, I think for me, it's really important that the new director work with the… the commission and the department and the charter officers to implement the, the regulations.

1458
03:32:23.780 --> 03:32:26.620
Boardroom: Fixed.

1459
03:32:26.890 --> 03:32:31.330
Boardroom: What would be the biggest challenges and areas where we can't… I think…

1460
03:32:31.830 --> 03:32:37.290
Boardroom: Sorry, I'm trying to synthesize both my notes and the questions.

1461
03:32:37.400 --> 03:32:50.270
Boardroom: I think… I think having familiarity with California sworn officer personnel and record access laws, as well as Berkeley, local law enforcement policies is important.

1462
03:32:50.530 --> 03:32:58.310
Boardroom: Having, objectivity, I think a challenge sometimes might be, when…

1463
03:32:58.820 --> 03:33:04.020
Boardroom: There is a complaint or, potentially a policy…

1464
03:33:04.200 --> 03:33:12.810
Boardroom: that is not being complied with. Sometimes there might be a tendency to assume an outcome, whether desired or undesired.

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1465
03:33:13.100 --> 03:33:16.100
Boardroom: And then, when that occurs.

1466
03:33:16.430 --> 03:33:26.430
Boardroom: That presents a barrier to when the results of an investigation or a course of action is otherwise from what one might assume might be the outcome.

1467
03:33:26.750 --> 03:33:38.090
Boardroom: But we're focusing on what we do want and what we don't want. So, someone who will be able to be objective and keep an open mind along throughout each step of the process there.

1468
03:33:38.590 --> 03:33:48.020
Boardroom: And then my last one, response to the final question, for me.

1469
03:33:48.390 --> 03:34:00.709
Boardroom: having a collaborative approach to working within the city organization and alongside the companion components of the city, those being the Department of the PD and the charter offices.

1470
03:34:00.850 --> 03:34:06.570
Boardroom: To, like, work in tandem instead of working against or…

1471
03:34:07.340 --> 03:34:09.720
Boardroom: Just really leading into the…

1472
03:34:10.110 --> 03:34:16.349
Boardroom: Ability to leverage the close working relationships we have, both inside the city and with the community.

1473
03:34:17.170 --> 03:34:18.070
Boardroom: Thank you.

1474
03:34:19.130 --> 03:34:20.119
Lauren Gerson-Greene: Thank you, Councilmember.

1475
03:34:20.600 --> 03:34:24.439
Boardroom: Thank you. Okay, moving on to Councilmember Humbert.

1476
03:34:25.560 --> 03:34:40.450

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Boardroom: Yes, thank you, Madam Mayor. And since I serve on the Ad Hoc Selection Committee, and had the opportunity to share thoughts at the recent community meeting, I'm going to be mainly listening to others. I appreciate Councilmember Taplin's comments, and I'll be listening to my

1477
03:34:40.560 --> 03:34:54.509
Boardroom: other colleagues with great interest. I wanted to say thank you to Lauren and her organization for their work on the public outreach efforts and the recruitment materials. They're really good. And thank you to the mayor for placing this item on the agenda.

1478
03:34:54.520 --> 03:35:13.979
Boardroom: So that we could do this publicly as a full body. I know we're all very interested in finding a strong candidate who has the management skills, public safety and criminal justice expertise, and overall right and collaborative attitude for our community. And I'm grateful for this opportunity to hear more from all of you. Thank you.

1479
03:35:15.070 --> 03:35:17.710
Boardroom: Thank you. Moving on to Councilmember O'Keefe.

1480
03:35:19.740 --> 03:35:31.200
Boardroom: That was sooner than I expected. I'm not gonna answer all four questions, and I… I think I'm… I'm expecting to broadly agree with a lot of comments people will make, so I'm just gonna make two comments that I think other people might not make.

1481
03:35:31.310 --> 03:35:37.069
Boardroom: One is, I guess this is in response to the third question.

1482
03:35:37.400 --> 03:35:44.359
Boardroom: We all saw, last month how much fear and uncertainty there is in our community around police surveillance.

1483
03:35:44.580 --> 03:35:53.920
Boardroom: And this is a really serious issue, and the person who occupies this role can, really do a lot to help. They can…

1484
03:35:55.520 --> 03:36:02.140
Boardroom: They can look out for the fears and concerns that the public has, and, you know, really keep an eye on

1485
03:36:02.330 --> 03:36:07.509
Boardroom: Making sure that, people are… are safe from the…

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1486
03:36:07.630 --> 03:36:26.550
Boardroom: the threats, the perceived or real, of, from police technology. So I would really like to see someone who actually has, competency around that and really understands how the technology works, and I think that could be a really, really powerful, skill, just based on the kinds of new issues that we're facing in this community that are very serious.

1487
03:36:26.990 --> 03:36:39.059
Boardroom: And, so that's one thing that I'd really like to see. I'd like to, yeah, to know any candidate that we see. I'd like to know what their level of understanding of that world is. And then the second thing, this is related, but more broad.

1488
03:36:39.060 --> 03:36:47.190
Boardroom: I really want to see someone who's really good at communicating with the public. This is really… this job is really important for the public to feel…

1489
03:36:47.260 --> 03:36:56.830
Boardroom: To feel like… Our law enforcement is… That they're safe from…

1490
03:36:56.960 --> 03:37:02.530
Boardroom: our law enforcement, for lack of a better way to say that. And I think that,

1491
03:37:03.070 --> 03:37:16.189
Boardroom: if this person can really communicate with the public and really build that trust, that's actually the most important part of the job, so I'd really want to see really strong public communication skills and a real commitment to building that trust in the community.

1492
03:37:17.570 --> 03:37:18.320
Lauren Gerson-Greene: Absolutely.

1493
03:37:19.990 --> 03:37:23.310
Boardroom: Thank you very much. I'm gonna go online to Councilmember Blackaby.

1494
03:37:25.850 --> 03:37:39.439
Brent Blackaby: Thanks, Madam Mayor, and thank you, Lauren, and subcommittee, for all the work on this really important search. I will do my best to go through each of the four questions. In terms of priorities.

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1495
03:37:39.630 --> 03:37:52.549
Brent Blackaby: First one, and hopefully we're close, but it's certainly just to get the final regulations over the finish line. Again, I know there's multiple people involved in that, like, it's not just ODPA, but it's also department, BPA.

1496
03:37:52.670 --> 03:38:03.859
Brent Blackaby: city staff, but to do her or his part to kind of get the operating regulations done is really important, because so much of what is possible with a PAB

1497
03:38:03.930 --> 03:38:22.020
Brent Blackaby: keeps getting held up by the fact that this stuff isn't done. It's a time sink, it's a money sink, it's a resource sink for the city and for the… for the PAB. Get them done. Like, that has to be a priority. Second is then, making enough time then to focus, like, the most… one of the most important functions of the PAB is to do really effective

1498
03:38:22.170 --> 03:38:35.029
Brent Blackaby: investigations about complaints, making sure you have the time and the resources to do that. And again, a sub-bullet on here is also then the ability to sort of triage or

1499
03:38:35.030 --> 03:38:50.289
Brent Blackaby: to the extent it's possible, I know that the charter language is… there's some kind of precision here, but to the extent you can identify things that can be administratively closed sooner in the process, so you can spend more of those investigative resources on

1500
03:38:50.290 --> 03:39:08.599
Brent Blackaby: investigations that need to be investigated, that's really important, because not every issue, not every complaint is the same, right? At some point, if you need to figure out, do some initial work, and decide, hey, this is something I really need to spend time on, maybe this one is one we should administratively close, that will help.

1501
03:39:09.070 --> 03:39:15.849
Brent Blackaby: If you do the first two things, then you also have time to do things like the policy reviews, as Councilmember O'Keefe and others have alluded to.

1502
03:39:15.860 --> 03:39:35.129

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Brent Blackaby: you know, some of the surveillance technology, participating in the RFP process, all of this could… they could be very effective thought partners, but to be able to have the time for that, you need to have the first two things under control. But that is a… you know, that is a priority. This is… this can be a center of expertise in this area, to do the policy work.

1503
03:39:35.280 --> 03:39:50.509
Brent Blackaby: And then fourth, is, the ability to do some better and ongoing kind of community outreach. And by that, I really mean to broaden the engagement to a wider swath of the public. I think right now, we're still kind of talking to

1504
03:39:50.590 --> 03:40:09.820
Brent Blackaby: kind of very narrow, you know, parts of our population. I think this is something, potentially, that more… these are conversations that more of the community should be involved in, and we should figure out how to do that. The director could be effective. So, those are four priorities, in order, I think, in that order. Challenges and opportunities,

1505
03:40:10.220 --> 03:40:11.930
Brent Blackaby: Certainly,

1506
03:40:12.130 --> 03:40:18.570
Brent Blackaby: You know, we're all in a budget environment, so how do you make the most out of existing resources funding budget?

1507
03:40:18.930 --> 03:40:31.409
Brent Blackaby: a challenge and an opportunity. Building relationships with all of the stakeholders, as people have alluded to, this is a really tough job. Part of what makes it tough is you've got lots of

1508
03:40:31.730 --> 03:40:43.259
Brent Blackaby: lots of plates to keep spinning, and then lots of people to navigate. And so, again, that's a challenge. You've got to be good at being able to sort of build those relationships.

1509
03:40:43.480 --> 03:40:46.589
Brent Blackaby: Across the organization and beyond the organization with the public.

1510
03:40:46.710 --> 03:40:49.880
Brent Blackaby: And I think an opportunity is…

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1511
03:40:50.270 --> 03:40:54.609
Brent Blackaby: really to make our Police Accountability Board more of a center of expertise.

1512
03:40:54.720 --> 03:40:56.830
Brent Blackaby: in this area,

1513
03:40:57.250 --> 03:41:06.359
Brent Blackaby: Be a center of excellence. Be, you know, someone that's certainly relied upon in the city, but maybe even more broadly in terms of people that do this work really, really well.

1514
03:41:07.310 --> 03:41:14.669
Brent Blackaby: Alright, technical competencies, I would say, obviously, previous police accountability work would be really…

1515
03:41:14.850 --> 03:41:19.989
Brent Blackaby: I think essential. I don't think you just sort of step into this job not having had some experience there.

1516
03:41:20.080 --> 03:41:23.880
Brent Blackaby: You've got to be a good manager of people,

1517
03:41:23.880 --> 03:41:42.550
Brent Blackaby: And by that, I think that's managing your staff, but it's also managing laterally, and it's also managing upward. You've just got to be really good at sort of managing in all of those directions. And I think, as Councilmember O'Keefe said, a really effective public communicator. This is a position that, when it comes to issues around public safety, you're going to hear from

1518
03:41:42.550 --> 03:41:58.109
Brent Blackaby: the mayor, you're gonna hear from the city manager, you're gonna hear from the police chief, and you'll be hearing from the director of police accountability in the press, and those, you know, you need to be a respected voice and a responsible voice in those sorts of public dialogues. And then lastly, I'd say for the interpersonal leadership competencies,

1519
03:41:58.650 --> 03:42:09.150
Brent Blackaby: like a lot of the charter offices, like us and others, you've got to be both independent, but also collaborative. And again, I know that's a difficult balance.

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1520
03:42:09.150 --> 03:42:21.059
Brent Blackaby: You've got to be able to be independent, and again, this setup in the Charter to be an independent oversight body, so no one is questioning that. That needs to be… that needs to be clear. But all of us.

1521
03:42:21.200 --> 03:42:32.900
Brent Blackaby: have some amount of independence, and all of us also have to be able to work with everybody else to get anything done. So you have to, again, figure out how to be both independent and collaborative, and have those sort of interpersonal skills.

1522
03:42:32.900 --> 03:42:33.429
Boardroom: Yeah, go ahead.

1523
03:42:33.430 --> 03:42:33.979
Brent Blackaby: And then, like…

1524
03:42:33.980 --> 03:42:35.069
Boardroom: My time. Go ahead.

1525
03:42:35.070 --> 03:42:36.659
Brent Blackaby: Almost, almost done. Last thing is in…

1526
03:42:36.660 --> 03:42:37.020
Boardroom: Go ahead.

1527
03:42:37.020 --> 03:42:41.810
Brent Blackaby: Yeah, last thing I'd say is then recognize that, You do have,

1528
03:42:42.130 --> 03:42:51.910
Brent Blackaby: many stakeholders to manage, I mentioned before, the council, the department, BPA, the public, city staff, city manager, HR, all those things.

1529
03:42:52.310 --> 03:42:53.689
Brent Blackaby: So, there you go.

1530
03:42:54.010 --> 03:42:55.220
Brent Blackaby: That's it. Thank you.

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1531
03:42:55.360 --> 03:43:12.900
Boardroom: Thank you so much for your very thoughtful answers to the questions, and, yeah, I do want to encourage folks, like, to say what you need to say, because, you know, this is our opportunity to talk about it, and I want to make sure that the subcommittee, and also Lauren, that we really have a good sense of what everyone wants to see, so…

1532
03:43:12.900 --> 03:43:16.329
Boardroom: Don't feel rushed. Okay, go ahead, Councilmember Bartlett.

1533
03:43:16.540 --> 03:43:35.619
Boardroom: Thank you, Madam Mayor, and thank you for doing the hard work here, Mrs. Ms. Gerson Green, finding this person, and the committee as well, thank you. You know, so Berkeley, of course, you may or may not know this, but Berkeley is the home of police accountability. We're the first ever.

1534
03:43:35.680 --> 03:43:42.239
Boardroom: And so, we have a responsibility to do it right, and to be a place of leadership for the country.

1535
03:43:42.640 --> 03:43:47.240
Boardroom: So, I mean, so going through your list here, merging with my original notes,

1536
03:43:47.560 --> 03:43:53.130
Boardroom: The priorities immediately, so we're restoring public trust in the office.

1537
03:43:53.340 --> 03:44:00.330
Boardroom: Very important. Professionalize the, sort of, processes that were there.

1538
03:44:00.430 --> 03:44:09.480
Boardroom: Repair relationships, that were… that have been ruptured, over the last few years. And,

1539
03:44:10.220 --> 03:44:17.479
Boardroom: And, of course, I bring further transparency, and more diligent reporting that's,

1540
03:44:17.890 --> 03:44:25.290

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Boardroom: I'll say, I'll just leave it at that. The biggest challenges, and there's opportunities, so,

1541
03:44:25.340 --> 03:44:43.839
Boardroom: again, the challenge is that trust in the office has been strained, trust between the office and other departments of the city has been strained, trust between the office and us have been strained, and trust between the community at large, with all of us has been strained around this topic. So again, getting to that.

1542
03:44:44.030 --> 03:44:52.529
Boardroom: Another challenge, this town is, of course, very, active, very sophisticated politically, and expectations are very high.

1543
03:44:53.170 --> 03:45:08.720
Boardroom: Another challenge is that this role is very, very complex, is that it sits at the intersection of law, labor laws, labor relations, politics, public safety, race, homelessness, mental health, and civil rights.

1544
03:45:09.160 --> 03:45:16.689
Boardroom: all that in one role. And, the, the… another one opportunity… opportunities, good opportunities now,

1545
03:45:16.930 --> 03:45:27.480
Boardroom: You know, again, this is a chance for someone to be a leader. This role, in the right hands, is a game changer for their lives. They can really do something big from this position.

1546
03:45:28.940 --> 03:45:42.050
Boardroom: And, opportunity to really deploy new methods of data, data gathering, new technologies, I think my colleague mentioned that. An opportunity to really take us to the next level, and embrace the future, of modern policing.

1547
03:45:44.060 --> 03:45:55.390
Boardroom: So, yeah, the competencies you need, you definitely need, you need experience in civilian oversight. It's too hard to jump into this thing. You need investigative competence.

1548
03:45:55.390 --> 03:46:05.180
Boardroom: She's done investigations, you know how to run an investigation. You need to understand all the police practices, the laws around policing, the laws around.

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1549
03:46:05.200 --> 03:46:07.860
Boardroom: Around labor,

1550
03:46:08.320 --> 03:46:26.080
Boardroom: And really, those are the two strong ones. And also, and also constitutional laws as well, and the nuances around constitutional protections as well, and there are sometimes limitations. You understand policy and systems, so municipal systems, you have to understand that.

1551
03:46:26.260 --> 03:46:44.060
Boardroom: You need data skills, again, and, public reporting elements, and communication… communication powers, so you can communicate effectively, the data you're gathering, and the work you're doing, and the changes that you are promoting and implementing. You need to work, you need to learn how to work with,

1552
03:46:44.060 --> 03:46:49.450
Boardroom: Politicians. I mean, not including myself.

1553
03:46:49.450 --> 03:47:02.520
Boardroom: These 8 people, and others, you gotta know how to work with them. You need, you need, I'll get with interpersonal. What's the next one? Interpersonal competencies, where are we here?

1554
03:47:03.010 --> 03:47:20.760
Boardroom: Yes, yes, yes. So here, this is the most important one here, because, you know, you need to… this person needs to operate, in ambiguous or unstable environments, with limited and often conflicting guidance and hostility.

1555
03:47:20.900 --> 03:47:29.750
Boardroom: They have to be able to really be centered in that maelstrom and stay the course for this role. Very difficult.

1556
03:47:29.750 --> 03:47:44.690
Boardroom: And they need to be diplomatic with their independence, is with their mission directive as well. They need to gain… be able to earn credibility across divergent populations and divergent elements.

1557
03:47:46.190 --> 03:48:04.909
Boardroom: Low ego leadership, you have to be able to work with the team, even though you are the person, you still have a team, and the city itself is your team. The police are your team, we're your team, the city

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manager's your team, city attorney's your team, you have to… the person has to really understand how to work with the team and quarterback it.

1558
03:48:05.090 --> 03:48:22.749
Boardroom: And crisis communication, these scandals come up, incredibly violent things happen, heartbreaking things happen. They have to be able to communicate a crisis effectively, to the community. And of course, this is the most important one, they'll need cultural competence.

1559
03:48:23.350 --> 03:48:28.770
Boardroom: and a fluency in racial equity, because that is the core of police oversight in America.

1560
03:48:29.810 --> 03:48:30.670
Boardroom: Thank you.

1561
03:48:31.840 --> 03:48:32.989
Lauren Gerson-Greene: Thank you so much, Councilmember.

1562
03:48:33.350 --> 03:48:38.180
Boardroom: Thank you. Oh, Vice Mayor Trey Gubb.

1563
03:48:40.570 --> 03:48:43.049
Boardroom: Okay, thank you, Madam Mayor.

1564
03:48:43.150 --> 03:48:47.929
Boardroom: I'm gonna start with challenges and opportunities, and…

1565
03:48:48.050 --> 03:49:06.149
Boardroom: I think the acronym VUCA is fitting. That stands for Volatility, Uncertainty, Complexity, and Ambiguity. And I think we, at times, and especially someone in that world at times, has to navigate,

1566
03:49:06.220 --> 03:49:08.990
Boardroom: All of these attributes,

1567
03:49:09.420 --> 03:49:24.980
Boardroom: So that is both a challenge and an opportunity. There is a challenge and opportunity to navigate a highly dynamic landscape of emergent and existing strengths, weaknesses, opportunities, and threats.

1568
03:49:24.980 --> 03:49:30.220

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Boardroom: associated with surveillance technologies and policies.

1569
03:49:30.260 --> 03:49:35.830
Boardroom: As well as, ever-changing regulations at the state level.

1570
03:49:35.920 --> 03:49:49.680
Boardroom: Such as a recent change in reporting requirements that, Berkeley then had to, look at how, our own requirements fit within that framework.

1571
03:49:49.790 --> 03:49:54.579
Boardroom: Another challenge and opportunity is,

1572
03:49:54.680 --> 03:50:05.929
Boardroom: That this would be a new director, within a, relatively, new department, working with a mostly new, pub.

1573
03:50:06.430 --> 03:50:17.429
Boardroom: And then finally, it is a tight budget year for all of us, and all DPA is not,

1574
03:50:19.280 --> 03:50:32.460
Boardroom: not unique in that… having to navigate that challenge. So, there will be a need for this role to… someone in that role to understand and set priorities.

1575
03:50:33.160 --> 03:50:47.170
Boardroom: Speaking of priorities, to me, some of the critical priorities are to finalize regulations governing the PAB and ODPA. Working with the PAB, to evaluate the,

1576
03:50:47.170 --> 03:50:53.759
Boardroom: Now what will be a contracting process for,

1577
03:50:53.920 --> 03:51:09.289
Boardroom: items related to the safety technology ordinance, as well as other tools and reporting requirements and cadences that are or may be under review in the future by the Council.

1578
03:51:10.090 --> 03:51:28.930
Boardroom: Of course, I already mentioned, that, this is a challenge, an opportunity, and a priority. They would need to work closely with the

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PAB, much of whom, will be new. And, a priority for me is for their ability to work collaboratively with various stakeholders

1579
03:51:28.930 --> 03:51:38.490
Boardroom: Including, but not limited to PAB, BPD, City Manager, Charter Officers, Mayor, and the Council, as well as their, respective reports.

1580
03:51:39.180 --> 03:51:42.290
Boardroom: So that brings me to,

1581
03:51:42.720 --> 03:51:53.649
Boardroom: desired qualifications. So, I come from, an independent oversight, role. That is something I did,

1582
03:51:53.960 --> 03:52:08.810
Boardroom: in the regulatory space, in the federal government, and, likewise, I, I see this role as, in part, a role that dispenses independent oversight.

1583
03:52:08.810 --> 03:52:23.269
Boardroom: And that means it's very important for whoever is in that world to be impartial, to get to the truth. And I think we know what that is not, so that is not playing gotcha.

1584
03:52:23.900 --> 03:52:45.380
Boardroom: or reflexively assuming the worst without, getting data. But it's also not someone who goes along merely to get along. It is vital that, someone in an independent oversight role maintains respect for everyone's roles.

1585
03:52:45.380 --> 03:52:50.680
Boardroom: Even when there is a professional difference of opinion.

1586
03:52:50.680 --> 03:52:56.289
Boardroom: It is also someone who should have strong knowledge and understanding of all relevant regulations.

1587
03:52:56.410 --> 03:53:11.789
Boardroom: Someone who seeks to listen to all perspectives, and yes, maintains a cultural competency, as has been said, develops a deep understanding of the issues and acts based on that understanding.

1588
03:53:11.910 --> 03:53:17.069

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Boardroom: An understanding of how different stakeholders operate and interact.

1589
03:53:17.420 --> 03:53:34.680
Boardroom: would be a plus. In addition to that, as mentioned with, the budget and other constraints on resources, they have to be a good program and project manager, and, should be able to set priorities.

1590
03:53:34.690 --> 03:53:50.090
Boardroom: I'm almost done here. Ideally, they would have experience working in a jurisdiction with significant challenges that underwent meaningful improvement under the leadership, and,

1591
03:53:50.090 --> 03:53:57.369
Boardroom: Finally, and this is probably the most important, is, as has been stated by others, They need to have

1592
03:53:57.460 --> 03:54:16.030
Boardroom: Sound communication skills, and they need to be strong in communicating with the public, both the entire public as well as broad swaths of the community that may disagree on certain things, as well as internally, within their own department, and cross-cutting through the city.

1593
03:54:16.170 --> 03:54:18.860
Boardroom: That is all. Thank you so much.

1594
03:54:19.120 --> 03:54:23.970
Boardroom: Thank you very much, Vice Mayor. We are moving on to Councilmember Kesarwani.

1595
03:54:26.620 --> 03:54:42.370
Boardroom: Thank you so much, Madam Mayor, and thank you for, initiating this, this conversation with the full Council, and, thank you to the Mayor and Councilmember Humbert and Councilmember Lunapata for being part of that, or being the group that is,

1596
03:54:42.500 --> 03:54:59.329
Boardroom: making more of these decisions for us, because this is such an important role, that has been authorized by the voters of Berkeley to create this Office of… a Department of Police Accountability. And, so I'll… I'll just quickly run through these questions, because I think

1597
03:54:59.430 --> 03:55:09.609

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Boardroom: everything I wanted to say has already been covered, but I just do want to share it from my perspective. So, in terms of the first 12 to 18 months, I,

1598
03:55:09.680 --> 03:55:18.080
Boardroom: think it will be important to rebuild trust and visibility that, this office has a new permanent director, and I think

1599
03:55:18.080 --> 03:55:30.280
Boardroom: One good way to do that, is to conduct listening sessions with the community, and to make sure that the director does outreach to

1600
03:55:30.330 --> 03:55:48.970
Boardroom: the diverse range of community members who interact with our police department. I also think that it would be useful to strengthen public reporting so that the public can track patterns and outcomes and the work that's going on.

1601
03:55:48.990 --> 03:55:53.960
Boardroom: In this office, and better understand the role that it plays

1602
03:55:54.390 --> 03:55:56.970
Boardroom: Okay, so then, let me look at…

1603
03:55:57.110 --> 03:56:16.029
Boardroom: the biggest challenges and areas of opportunity, and so… so I think, there are many members of our community who are very engaged, and so I think that can be an opportunity. And I talked about doing listening sessions. I think it'll also be important and… and,

1604
03:56:16.130 --> 03:56:27.409
Boardroom: I thought a lot about this when I first got elected in my first term, is thinking about how to outreach to people who, are very busy, and are not likely to…

1605
03:56:27.900 --> 03:56:44.460
Boardroom: go to you. They're not going to come to you, to your… you know, the Berkeley Police Department has coffee with a cop, only certain people are going to do that. So, how can you come to people where they are and engage with them? I think that will be very important.

1606
03:56:44.470 --> 03:56:51.669
Boardroom: To, you know, for the director to have a broad understanding of the community's

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1607
03:56:51.720 --> 03:56:58.560
Boardroom: sense of police accountability and its importance, because I think in this space.

1608
03:56:58.860 --> 03:57:15.660
Boardroom: there do tend to be activist voices that are very loud and strong, and I would want this person to know that they have a responsibility to represent the entire city's interests, and to actively pursue

1609
03:57:16.090 --> 03:57:30.980
Boardroom: voices that, you know, they may not necessarily get a chance to hear from unless they do that proactive outreach. And so… okay, let me keep going. In terms of technical competencies, background, and experience.

1610
03:57:31.460 --> 03:57:39.170
Boardroom: I, you know, I think this is, as others have said, a very… Technical…

1611
03:57:39.280 --> 03:57:54.850
Boardroom: role, you know, with important technical competencies, like having expertise in how impartial investigations are conducted, somebody who understands the California legal framework, I think that's already been said as well.

1612
03:57:54.850 --> 03:58:02.100
Boardroom: And, and, you know, I think this is going to be a pretty broad search, so it may be somebody who's not from California, but somebody who has

1613
03:58:02.370 --> 03:58:14.140
Boardroom: Demonstrated the ability to, come up to speed on the technical and legal understanding that is needed to be effective in the role.

1614
03:58:14.260 --> 03:58:22.470
Boardroom: And then finally, I think the last question is probably most important, the interpersonal leadership competencies.

1615
03:58:22.620 --> 03:58:28.840
Boardroom: I almost would think of this role, even though it's not an elected position.

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1616
03:58:28.980 --> 03:58:43.260
Boardroom: It's that level of importance and visibility and, challenge, and I… so I do think, as others have said, communication will be very important. I think what Councilmember Blackaby said about being independent

1617
03:58:43.600 --> 03:58:49.380
Boardroom: but collaborative, independent, and collaborative, that's very much what we have to do on the dais.

1618
03:58:49.510 --> 03:59:07.249
Boardroom: you know, I think we all have very strong views, but we need to get to 5 votes. And that person is not part of those vote counts, but, you know, I would love to see a Director of Police Accountability who can, work collaboratively with the Council, because

1619
03:59:07.310 --> 03:59:17.220
Boardroom: We are often wanting the input of that director on the various public safety policy issues that we're grappling with.

1620
03:59:17.370 --> 03:59:25.199
Boardroom: And, and so that's gonna be important to be collaborative, and also to bring,

1621
03:59:26.550 --> 03:59:38.299
Boardroom: an objective… oh, fact-based… wow, the time really goes by fast. The… an objective, fact-based perspective to things, and…

1622
03:59:38.550 --> 03:59:48.200
Boardroom: let me just see if I haven't left anything out here. And I also think, you know, in terms of likening it to a political role, somebody who has had to…

1623
03:59:48.410 --> 03:59:57.779
Boardroom: navigate a political environment and has done so successfully. Somebody who understands the importance of relationships.

1624
03:59:58.090 --> 04:00:04.279
Boardroom: As the director, and not just with the council, but other city staff, you know, somebody who can…

1625
04:00:04.650 --> 04:00:16.600

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Boardroom: work collaboratively with the police chief. You know, that's really what's required to… to be able to be independent, but also,

1626
04:00:17.460 --> 04:00:33.539
Boardroom: also just be able to understand that this is an organization with a lot of different people serving in it, and they need to learn how to navigate that. And then there's going to be tension in that.

1627
04:00:33.540 --> 04:00:40.210
Boardroom: Naturally, but to be able to do that in a respectful and productive way is very important.

1628
04:00:40.370 --> 04:00:47.459
Boardroom: Thank you. Thank you. Thank you all so much for your thoughtful comments. Councilmember Taplan, did you have something you wanted to add?

1629
04:00:48.040 --> 04:00:52.369
Boardroom: Yes, thank you very much. I just wanted to add, very briefly.

1630
04:00:52.600 --> 04:00:55.780
Boardroom: In addition to all the political acumen.

1631
04:00:55.890 --> 04:01:06.019
Boardroom: that this role requires. I think it's important to recognize that this is also a position for a city employee. So having someone with experience

1632
04:01:06.230 --> 04:01:17.920
Boardroom: Leading, a department, managing a department budget, especially in a public agency, non-academic institution, non-nonprofit.

1633
04:01:18.900 --> 04:01:22.530
Boardroom: But a public agency is really important. Thank you.

1634
04:01:24.650 --> 04:01:49.040
Boardroom: Thank you so much. I know that my Councilmember colleagues on the subcommittee and I have already given plenty of our opinions, and I… so I did just want to say, thank you to everyone who… who spoke and who shared their opinions and their thoughts. I think that your feedback is really, really important. And I also want to let you know that this really mirrors what we heard a lot in the community meeting as well.

1635

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04:01:49.040 --> 04:02:12.810
Boardroom: So just so folks know, like, that gives me a really, strong sense that we are very aligned on, like, the kind of person we're looking for, and the kind of skills that we want them to have, and abilities, and also what we see as areas of challenge and opportunity. And, just so, my fellow council members know, too, we had folks there who have been very supportive of.

1636
04:02:13.040 --> 04:02:22.910
Boardroom: the ODPA position, folks who have been more critical, we had folks, we had the BPA president, he was there, we also had former,

1637
04:02:22.970 --> 04:02:47.949
Boardroom: members of the PRC, let me think… and then folks online, you know, from League of Women Voters, and… and, yeah, so I just wanted to let folks know, I really felt that there was a good representation of folks from different perspectives, and that our consultant has done a really excellent job leading those conversations, and also making sure that we're moving through this process. So, speaking of, Lauren, I'm gonna pass it back

1638
04:02:47.950 --> 04:02:56.500
Boardroom: to you, and if there's anything else you want to say, and if you could also just walk us through kind of what the next steps are, so that folks know what to look forward to going forward.

1639
04:02:56.980 --> 04:02:59.109
Lauren Gerson-Greene: Absolutely. Thank you, Mary Ishii.

1640
04:02:59.110 --> 04:03:24.080
Lauren Gerson-Greene: I have appreciated hearing from all of you. This is very helpful, and I do want to echo what the Mayor said, that it's very encouraging to see that there's so much alignment between what you all and the Council are looking for and what your community members have said they're looking for. That's encouraging for me, both going out there and looking for candidates, and that's also encouraging to candidates who are interested in the role, who can get a clear sense of what they might be looking at stepping

1641
04:03:24.080 --> 04:03:25.539
Lauren Gerson-Greene: Into a role like this.

1642
04:03:25.680 --> 04:03:28.250
Lauren Gerson-Greene: So that is… that is very encouraging.

1643

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04:03:28.710 --> 04:03:38.720
Lauren Gerson-Greene: So, I'm gonna stop sharing my screen so that I can see the other things that I have pulled up for you. I do want to walk you through, kind of, where we are headed next.

1644
04:03:38.960 --> 04:03:47.780
Lauren Gerson-Greene: So, as I mentioned, we have been spending time doing a lot of community engagement early on in the process, and

1645
04:03:48.390 --> 04:03:59.989
Lauren Gerson-Greene: At this stage, we have scheduled interviews for an initial round of virtual interviews. That'll be the candidates' first opportunity, top candidates to interview on July 17th.

1646
04:03:59.990 --> 04:04:15.929
Lauren Gerson-Greene: That will be… the subcommittee will meet prior to that and put forward a group of candidates to those interviews. The makeup of the participation in those interviews is still being finalized, but will involve community members as well as the PAB.

1647
04:04:16.130 --> 04:04:31.130
Lauren Gerson-Greene: And finalist candidates selected by the subcommittee to move forward from those interviews will be put forward to a closed session interview with all of you at the end of July. We are currently finalizing that date, and I believe that we are close

1648
04:04:31.210 --> 04:04:42.810
Lauren Gerson-Greene: So stay tuned for, for that date. But that's kind of where we are, and from there, I will be working through the mayor's office to,

1649
04:04:43.790 --> 04:04:46.140
Lauren Gerson-Greene: to finalize,

1650
04:04:46.980 --> 04:05:02.439
Lauren Gerson-Greene: processes with your selected candidate. Hopefully, the outcome of the interview with the full council is that you'll arrive at a candidate you'd like to make an offer to, and I will assist in that process and work through the mayor's office and your city attorney, etc. So…

1651
04:05:02.780 --> 04:05:12.140
Lauren Gerson-Greene: That's where we are. Currently, the recruitment has recently been opened, so we are taking applications. It will remain open until at least June 24th.

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1652
04:05:12.240 --> 04:05:26.219
Lauren Gerson-Greene: It's a national search, as you might have guessed, and we do a pretty robust outreach campaign. Currently, we have 44 applicants for the role, and I would say there are

1653
04:05:26.360 --> 04:05:41.120
Lauren Gerson-Greene: some very interesting folks in there. I definitely think that there's, there are some strong contenders in the mix, and so I am encouraged and, optimistic about, the candidate pool so far, and…

1654
04:05:41.350 --> 04:05:46.639
Lauren Gerson-Greene: That is where we are at the moment. I would love to know if any of you have questions about the process.

1655
04:05:47.020 --> 04:05:49.919
Boardroom: Any other questions for my Council colleagues?

1656
04:05:50.800 --> 04:05:53.080
Boardroom: I am not seeing any questions.

1657
04:05:53.150 --> 04:05:55.969
Boardroom: Okay, and then I did want folks to know that

1658
04:05:56.020 --> 04:06:20.960
Boardroom: Lauren is also basically doing the same process with the PAB, so they will also be able to give their feedback on, you know, what they want to see in this, Director of Police Accountability. And then there are a few other things, just to give you all updates on this topic generally. I know we've been talking a lot about building trust, and that's absolutely something that's very important. In the past, we had also talked

1659
04:06:20.960 --> 04:06:22.920
Boardroom: We talked about making sure that we have.

1660
04:06:22.920 --> 04:06:41.199
Boardroom: a full PAB. I think that we only have two vacancies right now, and I think those of us who have vacancies, actually, our folks are already in the process, but they need to go through, background checks and paperwork, et cetera, and so, those should hopefully be coming on,

1661
04:06:41.390 --> 04:06:53.330

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Boardroom: soon. And, so I just wanted to let folks know about that, because that is really important, Lauren, for the person to know that they will have a full PAB to work with, because before we had many vacancies.

1662
04:06:53.370 --> 04:07:12.059
Boardroom: And then, I have been meeting basically weekly, every week or one and a half weeks or so, with our Interim Director of Police Accountability, so just so folks are aware of that, and been working with her very closely on the budget process, and checking in to see if she needs anything administratively,

1663
04:07:12.450 --> 04:07:36.950
Boardroom: And then, the PAB regulations was also brought up, so I did just want to mention before I forget, that that is also moving through. I think that there's just one issue that's remaining, and I know it's very challenging because there are so many folks in those meetings to get internal alignment, but we are moving forward with that as well, so just to give you all, some updates. And that's also important, Lauren, because those PAB regulations, I think having those settled before

1664
04:07:36.950 --> 04:07:45.810
Boardroom: before the new person comes in, or very soon after, will make their job easier and have… they'll have more clarity in the work that they'll be doing and how to do it, so…

1665
04:07:45.810 --> 04:07:48.369
Boardroom: Just wanted to share that with everyone.

1666
04:07:48.550 --> 04:07:56.640
Boardroom: Okay, I think that that is it for this item. So thank you so much, Lauren, thank you for being here so late in the evening, and we will be in touch with you soon.

1667
04:07:57.280 --> 04:08:05.219
Lauren Gerson-Greene: All right, thank you so much, Mayor, and thank you to the Council. It's been great meeting you all, and like I said, I look forward to meeting you all in person when I'm done there for interviews.

1668
04:08:05.470 --> 04:08:06.180
Boardroom: Thank you!

1669
04:08:06.180 --> 04:08:06.900
Lauren Gerson-Greene: Thank you.

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1670
04:08:06.900 --> 04:08:24.530
Boardroom: Thank you very much. Okay, so, we did move item 28 to the, June… to the meeting on the 16th, but usually what I do is if there's comments on the CIP, an item that we removed, I just want to see if anyone has any public comment on that.

1671
04:08:26.080 --> 04:08:27.420
Boardroom: Anyone online?

1672
04:08:28.820 --> 04:08:37.500
Boardroom: Oh, sorry. There's one… commenter online.

1673
04:08:37.950 --> 04:08:40.280
Boardroom: Kathy Fogel? Yes.

1674
04:08:40.390 --> 04:08:50.750
Boardroom: I just realized we also didn't take public comment on the item previously. Yeah, this… so this is for Public Common Director of Police Accountability? We should take that first. Okay. Kathy Fogel?

1675
04:08:51.410 --> 04:08:52.210
Boardroom: Oh.

1676
04:08:53.610 --> 04:08:54.230
Boardroom: Deloitte.

1677
04:08:54.850 --> 04:08:58.540
Cathy Fogel: I wanted to speak to the CIP, so…

1678
04:08:58.540 --> 04:09:01.369
Boardroom: We'll come back to you, Kathy, I'm sorry about that.

1679
04:09:01.370 --> 04:09:02.130
Cathy Fogel: No worries.

1680
04:09:04.040 --> 04:09:07.470
Boardroom: I don't see any hands raised for the director.

1681
04:09:07.950 --> 04:09:10.730
Boardroom: Okay. Please… Okay. Please accountability.

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1682
04:09:11.450 --> 04:09:15.529
Boardroom: Thank you. So we'll go back to Kathy then for comment on CIP.

1683
04:09:22.120 --> 04:09:23.170
Cathy Fogel: am… am I…

1684
04:09:23.170 --> 04:09:24.149
Boardroom: Yep, go ahead.

1685
04:09:24.320 --> 04:09:37.120
Cathy Fogel: Oh, you can hear me? Okay. Great. Hi, my name is Kathy Fogle, and I live on McGee Avenue. McGee Avenue between Cedar and Rose Street is a failed street. Four years ago, this street has had a

1686
04:09:37.150 --> 04:09:48.149
Cathy Fogel: Paving condition index of 11. Now it's probably a 7. The street is dangerous, it's rutted, there's dirt and gravel everywhere. Bike riders can't use it.

1687
04:09:48.260 --> 04:09:57.499
Cathy Fogel: My neighbor's car's dashcam switches to emergency mode when she drives here. The road is so bumpy and uneven, her car thinks she's in an accident.

1688
04:09:58.030 --> 04:10:13.730
Cathy Fogel: Street sweeping doesn't clean the street, it just raises up gravel and dust. 54 neighbors and I submitted a letter and photos of McGee Avenue for the intended agenda item. It's in your supplemental agenda. We'll resubmit it for the next meeting.

1689
04:10:13.980 --> 04:10:27.509
Cathy Fogel: McGee Avenue is currently in staff's recommended 2027-32 5-year paving plan using Measure FF funds, and funding for these streets is included in the capital improvement plan.

1690
04:10:27.550 --> 04:10:38.440
Cathy Fogel: Please do not remove McGee Avenue from the final 5-year paving plan, Measure FF, and CIP plans. McGee Avenue desperately needs paving.

1691
04:10:38.610 --> 04:10:53.789
Cathy Fogel: McGee Avenue is included by staff in the five-year plan because of need. Some streets need to be prioritized simply because of

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need. McGee Avenue is one of those streets. Please help us and ensure that it can be paved. Thank you very much.

1692
04:10:53.820 --> 04:11:06.460
Boardroom: Thank you, Kathy. Anyone else want to comment on item 28, which is the CIP, the Capital Improvement Program? We won't be hearing that item this evening, but if folks are on still, I want to give them an opportunity to comment.

1693
04:11:09.910 --> 04:11:11.400
Boardroom: Okay.

1694
04:11:11.660 --> 04:11:13.580
Boardroom: I think that's it, then.

1695
04:11:13.680 --> 04:11:18.240
Boardroom: Is there any other public comment for items not listed on the agenda?

1696
04:11:18.890 --> 04:11:24.810
Boardroom: Yes, has Carol Morasovic, has the,

1697
04:11:25.360 --> 04:11:38.460
Boardroom: commissions are beginning to go hybrid. My understanding is they will not be posted, but staff can… the staff secretary can receive requests

1698
04:11:38.670 --> 04:11:51.170
Boardroom: For the recording. I… really, if there's any way that the website can manage it, it's more transparent to post it. People may want to listen to meetings.

1699
04:11:51.290 --> 04:12:14.979
Boardroom: Because they're otherwise engaged at that time. And once you have a controversial issue, do you really want to take up that much staff time with the number of requests that can go to a staff secretary asking for the recording? It just seems as if it would be much more efficient to just post those recordings so that people can go back and listen to meetings.

1700
04:12:15.080 --> 04:12:17.930
Boardroom: on issues that they're interested in. Thank you.

1701

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04:12:17.930 --> 04:12:41.420
Boardroom: Carol, Carol, thank you. I mean, we talked about this at the Land Use Committee meeting, remember? That's actually not correct information. Well, the City Clerk's office said… Okay, sorry, Carol, we're not gonna have a back and forth, but is there anything you wanted to add to that, just to… So, the meetings will be posted. Yeah, okay. So, and, okay. Is there any other public comment for items not listed on the agenda? There's two…

1702
04:12:42.180 --> 04:12:45.689
Boardroom: Hands raised. First is Kelvin Ward.

1703
04:12:47.340 --> 04:12:49.509
Boardroom: For non-agenda public comment.

1704
04:12:50.350 --> 04:12:51.210
Kelvin Ward: Yes.

1705
04:12:51.670 --> 04:12:55.069
Kelvin Ward: Thank you. My name is Kelvin Ward, I'm a community organizer.

1706
04:12:55.300 --> 04:13:02.879
Kelvin Ward: with Live… Live Free California, and I wanted to, just show my support.

1707
04:13:03.200 --> 04:13:08.970
Kelvin Ward: for, continued funding for the Berkeley's, Community Violence Intervention Program.

1708
04:13:10.170 --> 04:13:13.020
Kelvin Ward: So when we talk about public safety,

1709
04:13:13.390 --> 04:13:17.439
Kelvin Ward: I realize, I think a lot of us realize that we have to invest

1710
04:13:17.710 --> 04:13:21.019
Kelvin Ward: And what's actually working, this program has.

1711
04:13:21.180 --> 04:13:22.669
Kelvin Ward: Help to save lives.

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1712
04:13:22.860 --> 04:13:26.300
Kelvin Ward: Interrupt cycles of violence and create pathways.

1713
04:13:26.520 --> 04:13:30.129
Kelvin Ward: To healing and stability for individuals and families most.

1714
04:13:30.330 --> 04:13:33.380
Kelvin Ward: impacted by gun violence.

1715
04:13:33.890 --> 04:13:36.590
Kelvin Ward: Results speak for themselves. We've seen…

1716
04:13:36.710 --> 04:13:41.000
Kelvin Ward: Significant reductions, in violence and homicides.

1717
04:13:41.100 --> 04:13:43.539
Kelvin Ward: In the, Berkeley area.

1718
04:13:43.710 --> 04:13:49.900
Kelvin Ward: And so I respectfully urge the Berkeley City Council to continue Funding this, proven

1719
04:13:50.140 --> 04:13:56.040
Kelvin Ward: Strategy and demonstrate, that community-based solutions remain a priority.

1720
04:13:56.350 --> 04:13:59.190
Kelvin Ward: Public safety is strongest when communities

1721
04:13:59.310 --> 04:14:02.560
Kelvin Ward: and government work together to save lives. Thank you.

1722
04:14:03.110 --> 04:14:05.230
Boardroom: Thank you, Calvin.

1723
04:14:06.210 --> 04:14:09.670
Boardroom: Caller with a phone number ending in 211.

1724
04:14:16.830 --> 04:14:18.990
1510****211: As far as the parking problem.

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1725
04:14:19.650 --> 04:14:23.159
1510****211: Many strongly, using bus number 67.

1726
04:14:23.290 --> 04:14:32.319
1510****211: And 65 for anybody who lives in Kensington, like I do, for Berkeley Health. It takes 10 minutes to go anyplace safe and quick.

1727
04:14:36.290 --> 04:14:40.210
1510****211: The word thematic refer to group language, including Hebrew.

1728
04:14:41.550 --> 04:14:49.720
1510****211: It does not include, Yiddish. Yiddish is the European language. By the way, John Habit University.

1729
04:14:50.610 --> 04:14:52.410
1510****211: and Israelis.

1730
04:14:52.820 --> 04:14:55.740
1510****211: Israelis came 0 to 2%.

1731
04:14:56.010 --> 04:15:08.670
1510****211: Most of them are Khazars. They come from Central Europe, Ukraine, and so on. Palestinians came 78%. We have to be… we're all the same people. We never have a choice when we come to this horrible earth, so let us pray for peace.

1732
04:15:09.000 --> 04:15:09.919
1510****211: Just pink.

1733
04:15:14.710 --> 04:15:19.049
1510****211: Thank you, and great… have a great night. You had very good,

1734
04:15:19.190 --> 04:15:21.500
1510****211: I'm meeting tomorrow. Take care. Good night.

1735
04:15:22.010 --> 04:15:22.870
Boardroom: Thank you.

1736
04:15:23.140 --> 04:15:25.540
Boardroom: Last is Kelly.

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1737
04:15:26.980 --> 04:15:28.619
Kelly’s iPad: Can you hear me?

1738
04:15:29.470 --> 04:15:30.070
Boardroom: Yes.

1739
04:15:30.230 --> 04:15:31.190
Kelly’s iPad: Okay.

1740
04:15:31.900 --> 04:15:38.710
Kelly’s iPad: So, as far as the Zoom recordings of the meetings, those are not

1741
04:15:38.920 --> 04:15:44.780
Kelly’s iPad: available unless they are requested, and I have been requesting them

1742
04:15:44.950 --> 04:15:50.549
Kelly’s iPad: So that I have… so that I can watch the Zoom recording.

1743
04:15:50.960 --> 04:16:00.660
Kelly’s iPad: There still are some problems with, commissions that do not record their meeting, and that would be the hack.

1744
04:16:00.880 --> 04:16:08.479
Kelly’s iPad: I requested, the recording from the hack meeting, and they evidently didn't do it.

1745
04:16:09.110 --> 04:16:21.780
Kelly’s iPad: I was able to get the recording from the Planning Commission, and I was able to get the recording from the Landmarks Preservation Commission. So this is inconsistent.

1746
04:16:21.880 --> 04:16:29.189
Kelly’s iPad: It's also inconsistent in terms of being able to, save the Zoom transcript.

1747
04:16:29.250 --> 04:16:44.160
Kelly’s iPad: during the meeting, and I would like to see this made consistent across all boards and commissions, that the Zoom recording is

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saved, and that it is available for the time that you defined in your ordinance.

1748
04:16:44.260 --> 04:16:52.600
Kelly's iPad: And that the transcript is always available to be recorded during the meeting, if someone so chooses to do so. Thank you.

1749
04:16:54.030 --> 04:16:58.559
Boardroom: Thank you. Anyone else have public comment for items not listed on the agenda?

1750
04:16:59.400 --> 04:17:00.140
Boardroom: Nope.

1751
04:17:00.500 --> 04:17:03.560
Boardroom: Okay, is there a motion to adjourn? So moved. Second.

1752
04:17:04.370 --> 04:17:11.870
Boardroom: Can we take the roll on that, please? Okay, to adjourn the meeting, Councilmember Kesarwani…

1753
04:17:12.080 --> 04:17:22.389
Boardroom: She's gone. She's gone. Taplin? Verily? Aye. Bartlett? Yes. Trey Gibb? Aye. O'Keefe? Yes. Blackaby?

1754
04:17:22.390 --> 04:17:23.090
Brent Blackaby: Yes.

1755
04:17:23.790 --> 04:17:25.190
Boardroom: Luna Parra? Yes.

1756
04:17:25.320 --> 04:17:32.490
Boardroom: Humbert? Yes. And Mary Sheen? Yes. Okay. Meeting's adjourned. Meeting is adjourned. Thank you all so much.

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